

CORUSCATIO QUINTA

It bathes in the clearest light the well-founded jurisdiction of the Holy Portuguese Inquisition for prohibiting the aforesaid erroneous practice and for punishing its assertors.

1 The doctrine having been established and confirmed, namely, that it is not licit in any way to inquire after the names of accomplices for correction, or for gathering other goods, or to compel penitents thereto, it follows by necessary consequence that the Tribunal of the holy Faith has, and has had, unshaken power to condemn that practice, to punish its abettors, and to order that they be denounced. Muratori, either deceived, or led on by his own mind, took up the aforesaid Tribunal to be torn to pieces. We shall demonstrate that he did this by no right. He himself, however, that he might fill up the measure of his name, gnawed at it most minutely. The Areopagus of the Faith is a wall by which the holy city of the Church is fortified against the incursions of enemies, and defended by a thousand bulwarks. But Muratori, after the fashion of a mouse, crushes these foundations with his teeth, that he may drag them into ruin; yet he labors in vain.

2 I know not what cause impelled and moved him to so great a deed, that, placed afar off, he should so shake, so provoke conspicuous men in nothing hostile to him. No one hitherto has irreverently assailed that most upright support of the Faith, except one who has been made its debtor in something. Let Muratori look to it, lest he be burdened with this debt. And that we too may pass judgment, I shall not seem to have strayed from the mark if we recall to the balance certain doctrines which he intermixes in his work *Lamindi Pritanii de ingeniorum moderatione*. That I may attain this, before we come to the proposed matter, it has come to mind to divert the discourse for a little while to other things. Therefore let there be

RADIUS PRIMUS

It utterly destroys certain doctrines which Muratori propounds in the aforesaid book.

1 Muratori is wholly intent, in the aforesaid work, on teaching his readers the moderation of minds in the business of faith. But the doctrine which he strove to furnish to others he did not take up for himself; for he plainly and fully displays his own immoderate spirit in this little work, and shows thereby a hatred against the Holy Office conceived long since and turned over in his mind. For already in the cited book, *fol. 230.*, he inveighs against it abundantly, and gnaws it with a black tooth. He accuses the Portuguese Inquisition of excessive rigor, as though he fully knew its manner of proceeding, or had experienced it. It must indeed be attributed to his levity, and to a mind prepared for the worse, that he

lends faith to certain querulous Jews, whether fugitives or punished; and that he does not hold himself persuaded that all things in the aforesaid Tribunal have been accustomed to be done according to the prescribed rules of the sacred Canons and of the Pontifical Constitutions; and thus always, the governance of Themis being preserved, to temper justice with mercy, the sword with the olive, so that it seems to incline especially to the side of piety and charity. I do not doubt that someone, or several, could have erred, and leaned toward the harder side; yet this office is to be committed not to Angels but to men, of whom some, by a certain force implanted by nature, are more prone to justice and rigor, others to piety and mercy. Yet the peculiar genius or temperament of these private persons is not to be charged as a fault of the Tribunal, whose equity and benignity has always been its most singular emblem.

2 Under the pretext of counsel and admonition to be given to the Inquisitors (I know not by what right, or by what authority, so great a province is entrusted to him) he supposes our men to be entangled in the crime of *turbid affection* and of *ambition to exercise power*, desirous of *displaying zeal*, of *courting fame*, and of *obtaining offices*, to be turned to the ruin of the accused, and to sin through excessive rigor. How foreign these things are from that most incorrupt Office and most mild Tribunal, all who see, who experience it, unanimously testify. There is nothing which Muratori proposes as to be observed which our Inquisitors do not execute to the letter. If perchance someone has fallen into some error, whether through ignorance or through rashness, or has uttered some less sound proposition which has been a scandal to the faithful people, he is called in secret, admonished, instructed, taught, that he may return to his senses, that he may be amended; and for the most part he is ordered publicly to sing a palinode, if he has dared to spread the error publicly: otherwise he is sent back in peace so cautiously, so kindly, that, taking counsel for the reputation of the one erring, they do not allow these things to become known abroad. But if, contumacious in error, he does not acquiesce in the warnings, and pertinaciously retains or defends the false opinion, then they execute what the canons decree, according to the debt of their office and of justice. Yet, exhibiting all diligence, all solicitude, all charity, they strive exceedingly that that delinquent may be led back to wholesome pastures: and if they attain this, applying either a graver or a lighter penalty, according as the quality of the crime or of the pertinacity demands, with benignity kept before their eyes, they release him.

3 They never consign to prison, as Muratori would suppose, those stained with only some light suspicion. Denunciations, inquisitions, and most mature deliberations are always wont to precede, lest perchance the innocent be visited with any infamy: and when they proceed to further steps, at least sufficient proof, as the canons prescribe, precedes; and then not otherwise than with the Fiscal first promoting the cause is the business most prudently carried forward. Those who accuse themselves, and humbly beg pardon, they never punish; in secret they most piously admonish them, in secret they absolve them from the censure perchance contracted, in secret they dismiss them, nor is

what has been done ever divulged. They never pronounce men suspect in faith, unless the suspicion is founded in law. Toward the convicted and contumacious they expend every effort, that, contumacy laid aside and legitimate confession made, they may withdraw from error and obtain mercy, which they most benignly bestow upon all who confess and beg pardon; nor do they ever coerce with the penalty of the last punishment any but the convicted and contumacious, or the relapsed, according to the sacred canons, when no hope of amendment now remains, nor can or ought by right to be hoped for. In what, then, do our Inquisitors go to excess, that they should earn ill credit with a foreign man utterly ignorant of our custom; and that he himself, under the appearance of sound caution, should sharpen his pen against our Inquisition and the Spanish? To that immoderation of mind which he himself desires to cure will this have to be attributed.

4 Very many things are found written in the cited book, published at Paris and destitute of Theological censures, and translated into the Latin tongue from not very trustworthy dissertations written in French, all of which to refute is not the business of the present office. Some, however, I shall touch upon with what brevity I can, that we may see with what man our contention is, or what defender the most rigid Confessors of our time would seek — a man, namely, inclining toward rigid opinions, and diminished in head, in that he suffered himself to be sold, so that he did not fear to lift up his head against the innocuous and ever venerable Tribunal, and to puff up his gullet.

5 And first of all, in *lib. 1. cap. 18. pag. 147.*, he undertakes to prove this, namely, that this proposition does not pertain to faith: *This man, or that, is the true Roman Pontiff*, raised by the more recent Theologians. And in this he is already deceived; for of that opinion seem to have been *D. August. tom. 6. in epistol. contr. potest. Donat. & tom. 2. epist. 115. Irinæus lib. 3. cap. 3. Basilius, Hieronym. & Ambros. quos refert, P. Manc. 2. 2. q. 1. art. 10. de Auctorit. Papæ n. 5.* Very many Councils confirm it, decreeing that the Pontiffs existing at that time are true Pontiffs. Among the ancients it was held against others by *Valent. 2. 2. disp. 1. q. 1. punct. 7. Aragon. 2. 2. q. 1. art. 10. tract. de Concil. dub. princip. ad 3. principal. ubi etiam Ludovicus de Leon. Martinez art. 10. 2. p. princip. dub. 1. ad 2. P. Bonaventur. tract. de Auctorit. Papæ dub. 3. Albertin. tom. 1. princip. 3. corolar. 3. dub. 2. Suares de Fid. disp. 1. sect. 5. & alii.* He himself in another place asserts that they are not to be condemned at once who lay down certain doctrines and opinions, even such as can be probable, so long as they are not disapproved by the supreme Head of the Church. Why then does he himself strive to weaken and reprove a doctrine in no way prohibited by the holy See, when nevertheless he knows it to be defended by many and excellent men? By what degree of magistracy is he supported, that he should undertake so great a matter? So far as I know, by no other than the reading of Authors perhaps, under the mask of religion, most hostile to the holy See. Assuredly, in Theological matters the most learned Fr. Ferdinand Castro Palao is to be held of greater authority, who, defending the same opinion which we uphold, *tract. 4. disp. 1. p. 2. num. 11.*, although he asserts it to be most certain, nevertheless did not have it in mind to

brand the contrary with any grave mark, since so many and so grave Doctors have defended it. But Muratori himself dares what none of the distinguished Theologians has dared. And shall this not have to be ascribed to an immoderate mind? What harm can that opinion of the more recent authors bring upon the Church, or upon true Religion, that it should be cut to pieces by Muratori with too free a pen? None, assuredly. Nay, even his negative opinion will be liable to certain dangers.

6 A most abundant harvest of erudition was springing up, did not my purpose in this work constrain me to hasten to other things. But, occasion being given, I cannot altogether contain myself from bringing forward some things which come to mind at first view. He says: *Concerning this question there is deep silence among the Fathers and the ancient Theologians.* He imitates that disposition of the heretics, who think nothing is to be believed which is not found expressed in the Fathers. But this is by no means to be admitted. How many things did the ancient Fathers pass over in silence, which afterwards either the Church defined, or the Theologians who followed taught? Is God to be said to have delivered the keys of knowledge to the first Doctors of the Church alone? That He has always preserved this key of knowledge in His Church and in her Doctors, unlocking true doctrines according to the opportunity of the times, is beyond doubt certain. *They who today despise their own Doctors, if of old they had lived with the ancients, would equally have despised them,* says the Author of the unfinished work, *Hom. 42. in Matth.* Muratori, with his immoderate mind, despises the more recent; he would despise the more ancient also, whenever they did not patronize his fallible judgment. New heresies spring up most frequently — doctrines not sound, scandalous, temerarious, offensive to pious ears, schismatic, suspect of heresy, favoring excessive liberty — which, even before the final definition of the holy See, it is given to Theologians to brand with theological censure; although this cannot be called infallible, so long as it does not receive from the supreme Head the final apex of infallibility.

7 There was no need for the ancient Fathers to raise this disputation, because at that time no doubt was agitated concerning it; but concerning the true election of the Roman Pontiff, and that the one duly elected is the true Supreme Pontiff, no one doubted. We read of no one who left us any traces of doubting that a duly elected Roman Pontiff is the true Pontiff — nay rather the contrary, which we might follow. The Supreme Pontiff Siricius, *in Epist. 1.* to Himmerius, Bishop of Tarragona, acknowledges Damasus as the true Pontiff, and calls himself, and his predecessors and successors, heirs of Peter, whom he himself, the standard-bearer of the first See and of the Faith, protects. The Council of Nicaea more than once acknowledges Silvester, then presiding over the Church of God, as the successor of Peter and true Roman Pontiff. The Bishops of Gaul, in their Synodical Epistle to Leo I, profess him the true Pontiff, and Leo himself, in Epistle 3 to the same Bishops, asserts that he exercises the authority of Peter. The Supreme Pontiff Gregory II names himself administrator of the sacred See, and affirms that he is supported by the authority of Blessed Peter. And, lest I waste oil on a well-worn matter,

nowhere is it read that the Fathers, or the Church, ever doubted at any time whether this or that Pontiff, duly elected, was the true Pontiff. If, therefore, the Church has always held to be true Pontiffs as many as she knew to be duly elected, why shall he err who asserts that to be of faith which the Church, through the courses of so many ages, has always held and never doubted, and who, on the contrary, [asserts that] she has never acknowledged schismatics, and those not duly elected, as true Pontiffs? Certainly he does not err who so holds: and the reason is clear; namely, because, from the fact that the Church, which cannot err in a matter so grave, recognizes any given man to be the true Pontiff, we ought to believe that he is the true Pontiff.

8 I do not undertake to treat this matter theologically. Let him who desires to have a foretaste of the question go to Cardinal Bellarmine, the Eximious Fr. Suárez, Valentia, Castro Palao, Palanco, who discusses the matter excellently, Delbene, Ardeskin, Bernini, Matteucci, (1) and others. {marg. (1) Bellarm. tom. 1. lib. 2. de Cleric. Suar. de Fide disp. 10. sect. 4. Valent. supr. Castr. Palao ubi sup. Palanc. tr. de Fid. Theolog. disp. 3. q. 9. per tot. Delben. de locis Theolog. dub. 150. Ardeskin. & alii ubi sup.} Yet, according to my small measure, I turn upon Muratori thus. If it is not of faith, or at least proximate to faith, that this or that Roman Pontiff is the true Pontiff, then neither will many things be of faith which we hold as of faith. It is of faith that the Catholic Church is the Congregation of all the faithful under one visible head, namely, the true Roman Pontiff. This article of faith is contained in the Apostles' Creed: this truth we learn from childhood: this our Fathers handed down to us: this the Council of Alexandria, the Lateran Council, and others teach us. Why, then, shall I tarry over a matter certain and defined? Let the heretics bark in vain, until their voices stick in their throats. With the same firmness of faith we ought to believe that the one holy Catholic and Apostolic Church has always existed, and that, even unto the end of the world, though ever tossed by contrary winds, she shall infallibly exist. Thus the Fathers understand that saying, *Matth. 16. Thou art Peter, and upon this rock I will build my Church, and the gates of hell shall not prevail against her.* That is, she shall remain ever firm and unshaken. And that saying, *Matth. cap. 28. Behold, I am with you even unto the consummation of the world.* Thus the Council of Alexandria defined in these words: *Moreover, we acknowledge the one and only Catholic Apostolic Church, which, as it can never be stormed, even though the whole world should set about to assail her.* [?] Further, that this Church is visible, and under one visible head, was defined by the Council of Sens, Clement VII ruling the Church, held at Paris in the year 1528, against Luther, who perversely asserted that the Church is invisible, and therefore unknown to us.

9 Although, however, this truth needs no other proof among the orthodox, let it be permitted, out of abundance, to cite here an elegant passage of Sander: (2) {marg. (2) Lib. de visibil. Monarch. cap. 4.} „First, (says he) lest by far the most excellent kind of government (such as Monarchy is) be thought absent from the Church of Christ, in which the Apostle teaches that all things ought to be done according to order. Next, that

the state of the Church may cohere with that mode of government which is observed in all other creatures, which are wont to be referred to one principle of their nature and condition, as is evident of the heavens, the stars, living creatures, bodies, and flocks. Then, that the Church militant may in its kind be like the Church triumphant, which no one denies to be so governed by the one Christ that Christ is seen by that same Church face to face. Whence also over this militant Church one militant Pastor ought to preside, who can be seen by the same Church. Moreover, that the rule of the Church of Christ may answer to the state which the same Church had under the Patriarchs, of whom only one, in the same age and at the same time, held the first place, and to whom all the rest yielded as to a Primate, as is evident of Melchisedech, who blessed Abraham, an inferior Patriarch. And also, that the state of the Church of Christ might answer to the state of the Mosaic law, under which one Pontiff alone presided over all the synagogues that were in the world. That the state of the Church of Christ may not dissent from the doctrine of the Prophets, who foretold that she would be like an ordered battle-line of a camp, in which there is one first Leader, or Commander. That it may answer to the doctrine of Christ, who [set forth] the Church as a Kingdom, a sheepfold, a lodging or inn, in which one King, Lord, or Shepherd — and he visible, and of the same condition as his subjects — presides. That it may answer to the doctrine of the Apostles, who said the Church is like a body, of which there is one principal member, and like a house, in which one father of the family bears rule. That the government of the Church may agree with itself, and that there may be no less one militant Pastor in the whole militant Church, as in the several militant Provinces and Parishes there are several militant Pastors. That the eternal Monarchy may be shown forth through one Pastor for a time. For Ignatius teaches, in the Epistle to the Smyrnaeans, that the Bishop bears the figure of God in the Church. Let there be, therefore, one Supreme Pontiff in the Church, to figure the unity of God. That the visible Monarchy, which Christ, while living on earth, began by His very self, and by which unto the present day He governs the Church, may be continued and persevere on earth through His Vicar. Nor let the Church now be thought other than she was under Christ. For she would be another, and not one and the same Church, if the form of rule, which under Christ living on earth was none other than regal, were now changed into an Aristocracy or a Democracy. That the unity of Christ, the one Pastor unto eternity, may here meanwhile be figured. For since the Church is an image of the very things that shine forth in the heavens, as there it is established that the one Christ is the eternal Pastor of His Church, so it was fitting that that presidency of Christ be figured on earth through the primacy of one Pastor. That also the visible unity of the Church may be designated by this visible primacy of one Pastor — which is Cyprian's reason in the book *On the Unity of the Church*. From that visible connection by which Priests, Bishops, Primates, and the Supreme Pontiff cohere among themselves, it is easily understood how great is that spiritual unity which obtains between the Church and Christ her head, as well as with the rest of His members. That the external unity and peace of the Church militant may be preserved through one Pastor, and schisms taken away — which is the reason of Optatus

in book 2 On the Schism of the Donatists, and of St. Jerome against Jovinian. That there be not lacking in the Church one who by divine right may punish the sins of inferior Pastors, and supply the negligence of Prelates — which is the reason of Gregory the Great, book 7, epistle 8. That, when a Synod cannot be gathered on account of external persecution, there may nevertheless be one who by his own authority may decide those matters — which is the reason of Basil the Great in epistle 78. That, since to each Pastor some portion of the flock is assigned, nor are they bound to undertake the care of those who are not committed to them, there may nevertheless not be lacking one who both bears the care of propagating the Gospel, and appoints new Bishops for those who are newly converted to the faith. For unless this care pertained to some one man before all others, so many nations would not have received the faith of Christ after the times when the Apostles departed from this life. That there may be one who may either divide or unite Episcopates previously constituted, according as the matter itself shall seem to demand; which, unless it were done chiefly by one, either would not be done at all, or would often be done with grave scandal. That it may be certain which Councils are legitimate: and who may either convoke them, as is fitting, or who, on the contrary, may dissolve them — which is the reason of Damascene against the Council of Ariminum. That the things which are written in the Gospel concerning one greater among the Apostles, and a predecessor, may be believed to be true, and perpetual in the government of the Church. That the things which are so clearly narrated in the Gospel concerning the primacy of Peter, and expounded by the holy Fathers, may not be thought vain. That the Church of Christ be not judged inferior to the society of the demons, if she should lack that visible primacy of one which the Prince of the demons has obtained. That it be not doubted that those things are true which the holy Fathers and the Ecumenical Councils with so great consensus teach concerning the primacy of the Roman Pontiff.

10 Now thus. If this or that Roman Pontiff — for example, if our Most Holy Lord Benedict XIV — were not to be believed the true Pontiff, neither would his predecessor be believed such, and likewise the rest of his antecessors; neither also should we believe as of faith that in these times the true Church has existed, joined to her legitimate visible spouse: which would likewise have to be asserted of all of them singly; because, if of this Pontiff of the series [?] we ought not to believe that he is the true Pontiff, we shall be bound to believe it of none in the individual. Therefore it is not of faith that the Church has always existed true, joined to her legitimate head, or spouse. Behold, we destroy the certain and infallible succession in the Chair of Peter, whereby we might confound the wiles of the heretics and the falsity of their Churches. Behold, we favor the Confession of the Calvinists, *art. 31*. Behold, we make false the promise of Christ, *Matth. 18. 20*. Behold, at some time the gates of hell shall prevail against a Church destitute of her true Pastor. On the contrary, if we say, as we ought, and as the true dogma holds, that the Church is derived from the beginning even to these our times, and has always existed true, we ought also to hold that all the Supreme Pontiffs whom the Church herself has recognized, and has had as spouses even to these times, have been true Vicars of Christ,

true successors of Peter. For what is asserted of the whole must be asserted of a part altogether necessary, and without which the whole cannot subsist. From this succession of the Roman Pontiffs, derived from one to another, all the Controversialists deduce the infallibility of the Roman Church. Let Ardeskin, *p. 1. cap. 3. & 4.*, be seen after others; for I, without allegations I run through, that I may dispatch the matter more briefly. If you take away this continued legitimate succession, the firmness of the Roman Church will seem to totter. If, accordingly, you remove from the midst all manner of truth concerning this or that Pontiff, that unshaken truth of the continued succession will be utterly imperiled.

11 What do I say — the truth of the succession? All the ecumenical Councils, and their definitions in matters of faith, will be subject to uncertainty and fallibility. That the true Catholic Church is the true and infallible rule of faith, and can never err in defining matters, is beyond doubt among the orthodox. This is evident from that saying of Christ the Lord, *Matth. 16. Thou art Peter, and upon this rock I will build my Church*. But this most firm foundation, established in Peter and in his successors (for that divine utterance is verified of them all), would collapse, if the Church should at some time err in defining matters of faith, or of morals regarding the universal Church; for the whole firmness of the Church is placed in the integral truth of the faith. Likewise the same first divine Pontiff of the Church promised that *the gates of hell shall not prevail against her*. But this promise would be fallible, if she should at any time admit heresies, or be stained with uncertain doctrines. It is evident, further, from that saying of the Apostle, *1 ad Timoth. 3. That thou mayest know how thou oughtest to behave thyself in the house of God, which is the Church of the living God, and the ground of truth*. But that this is to be understood of the true Church, insofar as she coalesces from her true head and members, shines forth clearer than the noonday sun.

12 That the Church receives this infallibility from her true head, the Roman Pontiff, is beyond doubt certain. For although a very few Doctors, as Duvallius says, (3) doubt of this truth; yet there is no one who denies this infallibility to the Church, provided she adhere to her legitimate head: from which it follows that she receives it from the head itself beyond controversy. {marg. (3) Tract. de Roman. Pontif. potest. p. 4. q. 7.} This is evidently clear from the saying of Christ uttered to Peter and to his successors. *Luc. 22. I have prayed for thee, that thy faith fail not; and thou, being once converted, confirm thy brethren*. From that of *Joan. 21. Peter, lovest thou me? Feed my sheep*; and that of *Matth. 16. Thou art Peter, etc*. No less conclusive is the Fourth Synod, that of Chalcedon, in which nothing else was necessary, in order that what had been decreed should be held as of faith, than that Leo should define it antecedently. The Fathers cried out, *act. 2. Anathema to him who does not so believe: Peter has spoken through Leo*. The like is found in the Second Council of Constantinople, *act. 4.* with regard to Agapetus. The like in the Sixth Synod, *act. 18.* with regard to Agatho. The like in the Eighth Synod, *act. 5.* with regard to Adrian II and Nicholas I. The same did the Council of Florence

decree, p. 2. coll. 22. *We define that the holy Apostolic See and the Roman Pontiff is the successor of Blessed Peter, the chief of the Apostles, and the true Vicar of Christ, and the head of the whole Church, and that he is the Father and Teacher of all Christians, and holds the primacy over the whole world, and that to him, in Blessed Peter, full power was delivered by our Lord JESUS Christ to feed, rule, and govern the universal Church. The same the Council of Trent expressly taught and defined, concerning Baptism, sess. 7. can. 3. But the Roman Church is not the mistress of the others except by reason of the Pontiff.*

13 I could draw out my discourse at very great length in proving this matter, if I were to recall to memory the Councils and the Fathers, or open the authors treating of the subject. But for our purpose, from these things said in passing, there is already drawn, unless I am mistaken, what I had said, namely, that the articles of faith defined by Councils could lack infallibility, nor be believed indubitably as of faith, if we did not hold as certain, with a credence more certain than human moral credence, that this or that Roman Pontiff is the true successor of Peter and Vicar of Christ. There is no greater reason concerning this or that one, than concerning Gelasius, Damasus, Lucius, Julius, Sylvester, Alexander, Innocent, Leo, Agapetus, Gregory, Martin, Eugene, Pius, etc. If it is not of faith that they, or any one of them, was a true Roman Pontiff: then neither will it be of faith that the Councils congregated by them were true ecumenical Councils: therefore whatever things were there decreed will not be to be believed of faith: for this infallibility depends entirely upon the true Church legitimately congregated in the Holy Spirit, and upon her true head, the true successor of Peter; for God did not promise this firmness of faith to a headless Church, or to a Pontiff who is not true; but to His Church, and to Peter, and to his true and legitimate successors. Therefore no certitude of faith could be present in those articles, if we did not acknowledge a true Pontiff decreeing them. This the heretics eagerly desire; this the Lutherans babble. Let us take away this certitude, and they will dare against us the more freely. Nor would it suffice to observe them by force of obedience, as the heterodox intend; since the Church, when she defines these articles, proposes them not only as to be observed, but as to be believed: otherwise whoever doubted of them would have to be held merely disobedient, but not a heretic. Behold how easily the whole faith would be placed in the greatest peril: behold how wide a gate would be opened to heretics, that they should not give assent to Conciliar definitions; for it would be ready at hand [to allege] that the Councils congregated were not true, nor those who congregated them true Pontiffs.

14 How near is that assertion of which we are treating to that error, namely, that after Urban VI there is no true Pope. This error of Wycliffe the Council of London condemned as heretical, in the year of our Lord 1382, in this manner: *That after Urban VI no one is to be received as Pope, but men are to live after the manner of the Greeks, under their own laws: we grant that this is heresy.* Therefore it is heresy, that no one is a true Pope, nor to be received as such. Since, then, a heresy is opposed to some article of faith, it

follows that it is an article of faith, that some Pope is a true Pope. Of what Pontiff, then, is this article to be understood? There is no assignable reason why it should be understood rather of this or that one than of others: therefore only of the one duly elected and received by the Church: therefore of all duly elected and received by the Church: therefore of this or that one. So defines Martin V in the Council of Constance, where he decreed that heretics, when they are converted to the Church, are not otherwise to be admitted than if they believe and profess that the existing Pope is the true Pontiff.

15 Moreover, we ought to believe that Christ promised His Church that He would not fail her by His peculiar providence: otherwise He would not fully satisfy the office of invisible head. It is certain also that He sent His Holy Spirit, to teach the Apostles all truth. But since from certain principles of certain faith conclusions of faith are deduced, it follows infallibly that it pertains to the faith that this or that Pontiff is a true Pontiff: otherwise He would not rightly provide for His Church in so grave a matter; since He would permit her, deceived perhaps for many years, to remain joined to an illegitimate spouse, a false Teacher to be reputed a true one, one to be believed His Vicar who in truth was not His, and would have exposed His beloved spouse to the other harms thence arising; which it will be an impiety and a sin to think of His love, His vigilance, His infallible and indefectible providence. Why, then, does Muratori strive to expel this belief from us? Why, by the allurements of words, by the apparatus of rhetoric, and by the wrappings of sophisms, does he busy himself to draw over to his own side those whom he sees going over to that opinion? In following his opinion many dangers may lie hidden; none in ours. I am persuaded that he who maintains that our Most Holy Lord Benedict XIV is infallibly the true Roman Pontiff will pay no penalties; but he who asserts that he is not the true Pontiff, I judge, is to be subjected to some punishment. I said “I judge,” and infallibly I judge: since this proposition, *This individual Supreme Pontiff is not a true Pontiff*, is a proposition temerarious, scandalous, schismatical, ill-sounding, and suspect of heresy, and he who utters it is to be punished as a heretic, as Bañes and Castro Palao teach. (4) {marg. (4) Bañes 2. 2. q. 1. art. 10. dub. 2. Palao loco supra cit. & alii.} It does not escape me that it is one thing to assert, *This Pontiff is not a true Pontiff*; and another to affirm, *It is not of faith that this Pontiff is a true Pontiff*. But that first proposition is suspect of heresy for this reason, that he who utters it seems to deny that there is in the Church the power of electing a true Pontiff (let Muratori see to it that he does not stumble into this error, when he says that it is not established for us that the promotion of the Supreme Pontiff must be made by election). Therefore the other will likewise also be suspect of heresy, because he who utters it seems to hold that in a matter of such grave moment the Church can be deceived, and that God would have permitted it. Some have said, as I recalled above, that after Adrian VI there was no true Pontiff, nor is one to be received as such: others asserted that after Gregory X no true Pontiff existed: others have dared to babble about other Roman Pontiffs: others have affirmed it of all after the third century. But who? None other than heretics, or schismatics. Yet all those whom the catalogue of Pontiffs holds in its diptychs as true

Pontiffs, no orthodox man has doubted; the Church has never doubted. Why, then, shall we not believe what the Church, which could not err, has always retained, what confirms the infallibility of the Councils, what establishes most solidly the Pontifical succession?

16 That he may spurn this infallibility, Muratori denies that the rule set down above is a certain dogma, namely: *Every Pontiff duly elected is a true Pontiff*. I do not recall having read any orthodox writer daring so expressly; the heterodox I do not admit. If he himself speaks rightly, then the Third Lateran Council erred, and with it Alexander III, when it established: *Let him, without any exception, be held Pontiff by the universal Church, who shall have been elected by the two parts, and received*. The general Council of Lyons erred, and with it Gregory X, when it decreed the same. The Council of Florence erred, when it defined: *That the Roman Pontiff is the successor of Blessed Peter, the chief of the Apostles, and the true Vicar of Christ, and the head of the whole Church, and that he is the Father and Teacher of all Christians, and holds the primacy over the whole world, and that to him, in Blessed Peter, full power was delivered by our Lord JESUS Christ to feed, rule, and govern the universal Church*. Of what Pontiff did it define this, if not of one legitimately elected and received by the Church? The Council of Vienne erred, and with it Clement V, when it confirmed the Constitutions of Alexander III and Gregory X. Clement VII erred in his Constitution *Cum charissimus* in the year 1529; Paul IV in his Constitution *In eligendis* in the year 1562; Gregory XV in his Constitution *Æterni* in the year 1621; Urban VIII in his Constitution *Ad Romanum* in the year 1625. Martin V erred in his Constitution *Inter cunctas*, which is contained in the Council of Constance, in which he established *that it is to be required of heretics who desire to be reconciled to the Church, that they believe the Pope who shall be for the time being to be the true Pontiff*, as writes Delbene, *de Loc. Theolog. dub. 250.*, who is altogether to be consulted.

17 How absurd this is, everyone sees. *That the Roman Pontiffs in their Canons, or Constitutions, have never erred; because, according to the Prophet, neither is balm lacking in Galaat, nor a Physician*, taught the Holy Father Leo X against the most impious Luther, in his Bull which begins *Exurge Domine*, in the year 1520. *Against the Decrees of the Supreme Pontiffs, against the statutes of Councils, against the sanctions of the orthodox Fathers, in which three the highest authority, the highest truth, and the highest sanctity consist: and, That the Emperor of all gave authority to the Decrees of the Supreme Pontiffs, saying to Peter in the Gospel of Matthew: Whatsoever thou shalt bind upon earth shall be bound also in heaven*, dogmatically wrote John, Archbishop of Canterbury, to Edward, King of England, in the year 1281. *The Decrees of the most holy Roman Pontiffs we ought, if we could, to venerate and observe even more studiously than those four Councils, since even the Councils themselves would lack all firmness, if the Pontiffs of the Apostolic See had not decreed, by Apostolic authority, to congregate and corroborate them...* *If, therefore, the four Councils would lack all authority, unless they obtained firmness principally from the decrees of the Roman Pontiffs, who will be able to deny how much more worthy of veneration the decrees promulgated by those Apostolic*

men themselves are deservedly judged, than the Councils themselves.... Therefore the reverence, or obedience, which according to Saint Gregory we deservedly show to the four most sacred Councils, we ought by no means to deny to the decrees of the Apostolic See, nay rather, if it is possible, to bestow it more studiously; since without their authority it would not be lawful to receive even the Councils themselves, decreed the orthodox Fathers congregated in the Holy Spirit in the First Roman Council under Gregory VIII in the year 1074. That even to the very dogmas of the faith (which argument I was assuming above) concerning the Holy and undivided Trinity, detriments can be generated, if we do not concede all strength of firmness to the decrees of the Pontiffs, wrote Pope Adrian II to the Synod of Troyes in the year 8[?]7. If, therefore, the same faith is to be given to ecumenical Councils as to the four Gospels: if the same faith is to be given to the decrees of the Pontiffs as to the Councils themselves: if the things which the Gospels, which the ecumenical Councils decree, are to be believed of faith; why is credence not to be given to the Pontiffs decreeing that a Pontiff duly elected is the true and legitimate Roman Pontiff? With what does Muratori confound these things? With inept and frivolous argumentations.

18 What seems to be of greater weight, and in which Muratori most trusts, as though he may be seen to rest upon it, is Constitution 19 of Paul IV, in which the Pontiff says: *If at any time it shall appear that anyone, before his assumption to the Roman Pontificate, had deviated from the Catholic faith, or fallen into some heresy... the promotion, or assumption, made of him, even in concord, and even with the unanimous consent of the Cardinals, shall be null, invalid, and void; nor can it be said to have gained force, or be able to gain force, through the enthronization of the same Roman Pontiff, or his adoration, or through the obedience rendered to him by all, and the course of whatever length of time in the premises.* From which Constitution of the Pontiff Muratori infers: *Therefore an assent of supernatural faith cannot be exacted, whereby anyone should be believed to be the true Supreme Pontiff, even if he has been received by the universal Church, since Paul IV himself by no means judges the Church immune from this error in this affair.* Yet the argument concludes nothing. And in the first place, it in no way strikes against that thesis: *Every Pontiff duly elected is a true Pontiff.* Since, if perchance a heretic be elected, he is not duly elected; and consequently the Constitution deals with a Pontiff not duly elected, inasmuch as there stands against him a nullity, which the Theologians teach to be present by divine law. That the aforesaid thesis is most certain and to be held of faith, is taught even by those who hold that it is not of faith *that this or that Roman Pontiff is a true Pontiff*; so much so that Palanco, and Palao, and the others cited above, say that no orthodox Doctor doubts of it. Whence, since Muratori not only doubts, but absolutely denies, it seems to be inferred that he, although he may seem such, is in reality not orthodox.

19 Then, to the Constitution of Paul IV we oppose the Constitution of Martin V, of which above, in which the heretics there in question are not otherwise reconciled to the Church, unless they have professed that they believe the present Pontiff to be the true Pontiff. Therefore Martin *judges the Church immune from that error in this affair*. We oppose the Lateran Council, the Synod of Florence, Alexander III, and the others cited above, defining that all duly elected according to the form there established are to be held as true Pontiffs. Therefore all these *judge the Church immune from that error*. What then? Shall we say that Paul IV stood contrary to all these, or defined contrary things? Far be it. Paul IV, therefore, must be explained. Certainly he in no way defined that the whole Church can err in the acceptance of a Pope, as Muratori wishes to deduce; but he was wholly occupied in setting forth the form, which being observed, the election would beyond doubt come out certain; and on the supposition of the opinion asserting that it can happen that the electing Cardinals might at some time err, he proposed the nullity arising from this, that the one elected was, or had been, an occult heretic; which nullity so intrinsically, and by divine constitution, renders the Pontifical election null, that at no time, not even by the acceptance of the whole Church, can it be healed; in contrast to the other exceptions of positive law, which can be opposed to a Pontifical election, and which, after the election has been made and the Church's acceptance, are not admitted. Yet Paul did not understand that this could in fact happen — a thing which, from the beginning down to these times, is neither known to have occurred, nor has God at any time permitted it. Nay, if he thought so, he would be said to have fallen into another absurdity, namely, that God had left His Church destitute of His infallible providence in a necessary affair. Whence Paul spoke by a certain exaggeration: just as, in a similar case, the other Paul, namely the Apostle and Doctor of the Gentiles, *ad Galat. 1.*, spoke thus: *Though we, or Angels from heaven, preach a gospel to you besides that which we have preached, let him be anathema*. The Apostle did not teach, or understand, that he, or Angels from heaven, could preach something contrary to the truth which he himself had preached; but he only wished to say that his doctrine was so certain and infallible, that if, *per impossibile*, an Angel should announce different things, he would in no wise be to be believed. So Paul IV wished to teach nothing else than that the exception of heresy so obstructs, or is repugnant to, the legitimate election of a Pontiff, that even if, *per impossibile*, God should permit the Church to elect a heretic, and to recognize him as true Pontiff, this could not bring it about that such a heretic should be a true Pontiff, or that the election should at any time gain force from length of time, or from the Church's acceptance.

20 *Wheresoever there shall be two or three gathered together in my name, there am I*, promised the Supreme Truth in the Gospel. This must altogether be believed. The indefectible and most truthful Lord can neither be deceived nor deceive, nor will He in any measure suffer His Church at any time to be deceived. The Cardinal Electors are congregated in the name of the Lord to accomplish a most arduous matter, upon which the whole government, security, and doctrine of the Church and of the faithful depends.

In so arduous and grave an affair, shall the Spirit of the Lord be lacking, directing wills, kindling hearts, and illuminating minds? Let heretics hold this; let Muratori judge that this can happen. For us Catholics, to doubt it would assuredly be the greatest sin. *The congregation of Priests testifies the presence of the Holy Spirit. For that is true which we read, since Truth, whose sentence in the Gospel is: Where two or three shall be gathered together in my name, there am I also in the midst of them, cannot lie. Since this is so, if the Holy Spirit is not absent even from so small a number, how much more do we believe that He is present now, when so great a throng of Priests has come together in one?* So wrote Celestine to the Synod congregated at Ephesus in the year 431. *Who would believe that God inspires the justice of examination in any single man, and denies it to innumerable Priests congregated in Council,* said the Fathers of the African Council in the year 424; and we may refer this to a matter of so great moment. It would be easy to adduce innumerable authorities on the point; let these suffice. If we did not believe this to be true, the universal Church would be deceived, acknowledging a true Pontiff not inspired by God, nor accepted by Him. That this election of the Pontiff is a divine work, Scipio Amiratus proves with many and conclusive arguments, *in Dissert. Polit. lib. 3. cap. 1.*, and Franciscus Hallier, *de Sacris Electionib.* That the suffrages of the Electors have many times been at variance, the many schisms that have arisen in the Church most openly proclaim; but not even thence does an efficacious argument result against what has been said above. The turbid affections of men many times burst forth into dissensions; nor can it happen otherwise, where not true charity, but the private will of each one is at work. So it is in sacred elections, God permitting it, that the little bark of Peter may be tossed, and that His faithful and admirable providence may be acknowledged, which amid the very whirlpools of schisms does not desert His Church. Meanwhile, while contentions wholly human strive to take upon themselves the parts of the election, the infallible assistance of the Holy Spirit has no place, nor does He at any time flow into schismatics, He who loves peace and concord, Christ the Lord Himself commanding: *Into whatsoever house you enter, first say: Peace be to this house;* and: *Peace I leave with you, my peace I give unto you;* and the Apostle teaching: *Love peace and truth.* Yet amid these whirlwinds of contentions the universal Church has never held schismatic Pontiffs to be true and legitimate Pontiffs, nor were these to be called legitimately elected. We speak, therefore, of a canonical election, unto which, according to the prescripts of the ecclesiastical laws, the concordant votes of the electors, or of the two parts, combine [?], and which the universal Church without doubt receives and approves: which being posited, we confess unshakenly, with the Church herself, that the elected and received Pontiff is the true Vicar of Christ and successor of Peter.

21 It is the concordant opinion of all Theologians and Canonists, that the Pontiff duly elected receives confirmation, power, and jurisdiction over the universal Church not from men, but immediately from God. Either, then, Christ the Lord bestows this supreme power upon the Pontiff duly and canonically elected, or He does not? If He does not bestow it, He deceives the Church, and permits her to be governed by one who is not a

true Shepherd; which to affirm, or to think, of His infallible providence, would be temerarious, scandalous, erroneous, nay even heretical. But if He does bestow it, as is certain, how will it not be to be believed of faith, that he is the true Pontiff, to whom God commits His own place over the universal Church, and whom He adorns and supports with all manner of ecclesiastical and spiritual power? The true Pontiff is *the most sublime Apex of the Apostolate*, as Lactant. calls him, *epist. ad Nicolaum I.*; *the supreme Apex of the Churches of God*, as says Theodor. Studit., *epistol. ad Imper. Michaellem*, who also, *epist. 33.*, to Leo III, gives him the title of *Archpastor of the Church which is under heaven*. That he is *the Head of the whole body, to whom whatever is of the faithful is everywhere subject*, wrote Ennodius in *Apolog.* Saint Peter Damian, *opusc. 4. ex edict.* of Constantine, names him *the Head of the Christian religion*, whose sublimity is *the Summit and crown of the human race*, as Damian himself asserts, *opusc. 23. cap. 1.* Bernard, *epist. 237. 261. & 268.*, calls him *the Lord of the house of God, and the Prince of all His possession, and refulgent with Apostolic Majesty*. In the mouth of St. Anselm, *lib. de Incarnat. cap. 7.*, he is called: *Lord and Father of the whole Church journeying as a pilgrim on earth*. That he is *Lord of all nations* is found in the First Council of Nicaea, *can. 44. Vers. Arabic.* Damascene, *orat. de Transfigur.*, called him *Leader of the universal Church*. He is *the uniquely supreme and singularly general Bishop*, according to *Petr. Blesens. epist. 27. in fin.* The *Concil. Chalced. act. 1.* calls him *Governor of the Apostolic throne*. That *to his judgment the keys of the eternal entrance are handed over; whose earthly judgment is an authority pre-judged in heaven, so that whatever things on earth have been either bound or loosed obtain the condition of that same decree also in the heavens*, taught Hilar. *cap. 16. in Matth.* He is *Prefect over the whole world, Key-bearer of the heavens, to whose judgment and power God has entrusted all things; and Overseer of the whole world, not, like Jeremias, of one nation*, as Chrysost. wrote in golden words, *homil. de S. Ignat. & homil. 11. & 55. in Matth.* *Presiding over the Church of the whole world*, as says August. *lib. 1. contra Julian. cap. 2.* *The supreme Prelate, to be judged by no one, because the disciple is not above the master*, as says the *Concil. Roman. sub Silvestro*. Whither has the spirit carried me, that I should utter these things! If I wished to review whatever is found written by the holy Fathers and Councils concerning the dignity of the Supreme Pontiff, I should be writing a new book. What more? He is the Spouse of the Church, the Successor of Peter, the Vicar of Christ, to whom have been handed over the keys of the Kingdom of heaven, the Rock, the Base, the Foundation of the Church, the Column of the Faith, and its living and indefectible rule. And would God permit such a one to be elected who was nevertheless a false Doctor and an illegitimate Pastor? Let Muratori believe that; let him defend that it is not certain as *of faith* that he is the true Roman Pontiff; let him carp at the more recent authors who assert it: for I, in obedience to my most pious and most beloved Mother, determine that assent is rather to be given to these.

22 From him, as from a fountain, Councils, Cardinals, Bishops, and Prelates draw their legislative power. (5) {marg. (5) Dist. 17. per tot. cap. 4. de Elect. cap. 11. de Maiorat. & Obed. cap. Fin. de Offic. Leg. cap. Inferior dist. 21. cap. 4. & 5. de His, quæ fiunt à Prælat. cap. 11. cap. 12. 2. q. 6. cap. 8. 3. q. 6. cap. 79. q. 3. cap. 2. dist. 2. & innumera alia.} On him depend the promotions of Cardinals, the ordinations of Archbishops and Bishops, the faculties of Missionaries, the conferrals of Orders, the dispensations of matrimonies and of impediments, graces, indulgences, and all the other things which flow forth from the universal Head. Very many things would labor under nullity, the Faith would collapse, Religion would be imperiled, the whole hinge of the Church would be turned, if he were not the true Pontiff who was duly elected and held for such by the universal Church. The bark of Peter, overwhelmed by billows dashing it on this side and that, would perish, were there not present a most skillful Palinurus to hold the helm and steer it most faithfully. Heresies and errors would rise up like dreadful storms, nor would there be anyone who, by the breathing of the Holy Spirit, might scatter so many monsters, if a true Pontiff were not present. God would be called deceitful and improvident, if he permitted these things, and withdrew himself from the canonical election, and did not bestow his assistance and power upon the one duly elected. Therefore it is most certainly to be held that the one duly elected is the true Pontiff.

23 Before I proceed to other matters, I should have wished to remark that these words of Muratori are greatly to be noted. He says: *In which matter no one fails to see how great a care it is to all that hence any new revelation of God be excluded; since indeed every Catholic holds well in view the intolerable inconveniences* (I am a Catholic, and I do not perceive these intolerable inconveniences) *which would follow, if it be believed that anything can be added to the ancient deposit of doctrine which God did not reveal before the books of both covenants were closed by the death of the Apostles.* He seemed to me to insinuate, in the proposition cited, that there is no revelation in the Church of God, no revealed truth, and that access to every divine revelation was shut off by the death of the Apostles. If this is so, God will be able to reveal nothing further to his Church, nor will the Pontiffs be able to declare the hidden senses of Scripture, if that hidden sense is not revealed to them. I know not whether in this he agrees with the heretics who assert that nothing is to be believed as *of faith* except what is contained expressly in the Scriptures. I do not play the Theologian, nor is it my office to pass censure. I propose the doubt, that most learned Qualificators may recall it to the balance. Meanwhile, I offer for reading Fr. Ardeskin, *lib. 1. tract. 1. cap. 4. & 5.*, where he shows that Scripture alone is not the rule of faith. That the Supreme Pontiff is endowed with this prerogative, there is no orthodox man who doubts. Whatever he decrees is to be believed as *of faith*, even if it was not revealed to the ancient Fathers, is *of faith*. This the Fathers, this the Councils, this the Pontiffs establish: there is no need to institute a new controversy; afterwards perhaps, occasion being given, we shall say something.

24 Similarly I also leave to be discussed by the Theologians those words: *If to the second, it must be that the Holy Spirit foretold and revealed that this man, rather than another, is to be elected by the sacred Electors duly and without error, without any defect; and then it will be established from revelation that this man, and no other, is the true Roman Pontiff. Since, however, it is established that the Holy Spirit neither revealed of old prophetically, nor now discloses by a peculiar revelation, that this man rather than another has been, or is to be, elected as successor of Peter.* He seems to have held that, for anything to be believed, an act of peculiar and express revelation is necessary to us, and that a general pronouncement *of faith* does not suffice for us to descend, by the assent of faith, to the particulars in which that pronouncement is verified. From the general pronouncement, *All have sinned in Adam*, which is to be believed as *of faith*, we deduce by necessary consequence: *Peter is a man: therefore Peter sinned in Adam.* Do we need a peculiar revelation, from which we may hold as *of faith* that Peter sinned in Adam? Who has dreamed this? We believe as *of faith* that every man was created by God: shall we perhaps need a peculiar revelation, in order to believe as *of faith* that this individual man was created by God? So in many other cases. And let him not have recourse to the natural evidence which is given in those minor propositions, or to the fact that those minors are necessarily comprehended in the major propositions; he himself confesses below that the same is to be observed when moral evidence intervenes. [?] Then, to use another example: he himself asserts that the decrees of Councils concerning faith are to be believed as *of faith*. Now I inquire thus: *Has the Holy Spirit foretold and revealed that that Council was assembled duly and without error, without any defect, and under a true Roman Pontiff? Since, however, it is established that the Holy Spirit neither revealed of old prophetically, nor now discloses by a peculiar revelation, that this Council was assembled duly and under a true Pontiff,* nor is it established to us from any peculiar revelation that the decrees in the said Council were revealed by God; hence it is that those decrees are not to be believed as *of faith*. If these things are inept, then Muratori's ratiocinations will likewise have to be called ineptly written. And indeed what is more inept than that things which are deduced from certain principles should need a peculiar revelation in order to be believed. A like argument is fashioned from any article whatever proposed to us by the Supreme Pontiff speaking *ex Cathedra*. But Muratori weighs this little, for, like the best of orthodox men, he will follow those who do not concede to the Pontiff infallibility in defining articles of faith, whose reasoning is the same as that which he himself employs. And truly I do not grasp how this peculiar revelation which Muratori demands is to be verified. Will an Angel come from heaven, to preach these truths to us as good tidings? Will he speak to us, as of old, through the Prophets? Will the Holy Spirit descend in the form of a dove, to breathe these revealed truths into our ears? Will known principles not be enough for us to know to which things the assent of faith is to be given? Why do I delay! These things are so clear that they need no other arguments.

25 Other words also, I believe, are to be weighed by the Theologians in the balance of truth, namely those which follow: *For why (says he) shall it not also have to be said to be revealed, that this or that holy man, enrolled in the Canon of the Blessed, truly reigns in the heavens?* I confess that I do not grasp what Muratori really intended for himself in such an utterance. We too proceed coherently in this case, nor do we doubt that a canonized Saint truly reigns in the heavens and enjoys the beatific vision of God. Whence, as far as we are concerned, that argument concludes nothing. I know not whether he is in that erroneous opinion, namely, that no one ascends into the heavens before the day of judgment. But if he confesses that some do ascend, or have ascended, and that this is to be held as *of faith*, of whom will this rightly be able to be asserted, and firmly held, if not of those whom the Supreme Pontiffs have defined as enrolled in the album of the Saints? He seems to think the contrary, and his following words urge this: *Since therefore these things follow necessarily, and depend upon a fact of whose truth we are not taught from heaven, not even these very things seem to be reckoned so certain.* From which words it is clearly evident that he follows the opinion of those asserting that the Roman Pontiffs are fallible in the canonization of Saints, and have no special assistance of the Holy Spirit so as to decree infallibly in this. Certainly in this his judgment he is opposed to the most common (not to say more) opinion of the better Theologians, and to one which among us is retained as certain. Let the authors cited below be seen. (6) {marg. (6) D. Thom. quodlib. 9. art. 16. Corduba lib. 4. q. 12. Bañes 2. 2. q. 1. dub. 7. Bellarm. de Sanct. beatif. cap. 9. Suar. de Fid. disp. 5. sect. 4. Vasq. in 1. 2. disp. 165. n. 94. Vivar. ad Marcum Maximum in S Joan. Vindic. §. 3. 6. & 8. Cæsar de Eccles. Hierarchy. disp. 1. §. 4. n. 8. Carrier tom. 1. digest. fidei lib. de Pontif. Roman. fol. 1104. Theoph. de Corona Aurea sub not. 2. verit 8. Ardeskin ubi supra q. 5. Palao dict. tract. 4. §. 4. Delbene de Locis Theolog. dub. 253. & innumeri alii.} As for me, the form observed in the canonization of Saints suffices, namely: *By the authority of our Lord Jesus Christ, and of Blessed Peter and Paul his Apostles, and our own, we declare, by the Counsel of our Brethren, that F. has been received into the heavenly Jerusalem and endowed with the crown of eternal glory, and we decree and define that he is to be venerated publicly and privately as a Saint.* And although this definition depends upon a fact; nevertheless we cannot doubt of the truth of the fact, when it is connected with the truth of the law, in defining which the Pontiff, as Pontiff, declaring it and proposing it to the universal Church, cannot err. Let there be seen, after others, the cited Ardeskin, *dict. p. 1. cap. 9. q. 3.*, and Fr. Viva, in *quæst. Prodrom. n. 11.*, who briefly and vigorously dispatch this question.

26 I note those words: *Of whose truth we are not taught from heaven.* How does he wish that we be taught from heaven? Does he demand that a voice resound from heaven, as on Thabor, or at the Jordan? Will it not be enough that the Church teach us the truth of the fact after a most accurate examination? Will it not be enough that the Supreme Pontiff approve it as certain, and by it be moved to define the sanctity of that Blessed? But even if we admitted that some error had intervened concerning the fact — which is not to be

believed, as excellently says Mortonius, Archbishop of Canterbury, altogether worth seeing in *tom. 9. of the Councils* from the edition of Harduin, *pag. 1547.* — this would not impede the act of faith by which, here and now, we would believe, as *of faith*, that this or that Saint enjoys eternal beatitude in the heavens, as the cited Mortonius well says. For, supposing the complete certitude of the fact, namely, that that Saint has been canonized by the Church, we have a most efficacious foundation which instructs the intellect and moves the will to believe it, namely, that which results from certain principles — such as are the Church in matters of faith and morals (to which matter this of the canonization of Saints pertains, as says the cited Mortonius, and the Doctors commonly; and therefore it pertains to the Church alone to define it), and together with it the divine veracity (for this is the principle upon which faith turns, as the Theologians teach) — upon which we rest in order to believe whatever is proposed by the Church to be believed. Hence we proceed to elicit, here and now, the act of faith by which we believe that this individual Saint enjoys the beatific vision of God; without our needing, here and now, any peculiar revelation of God; although otherwise we confess that the Church and the Pontiff do need a special revelation, or a most certain inspiration, for canonizing that individual Blessed and defining him as a Saint, just as she also has the infallible assistance of the Holy Spirit for defining anything as *of faith*; otherwise whatever was defined by the Church would not be *of faith*, because it would not be founded upon some revealed truth. But if Muratori, as his words sound, denies this revelation, or special assistance of the Holy Spirit, the Theologians will say what censure is to be branded upon his thesis.

27 Indeed I know that the Doctors who follow the view that the canonizations of Saints are not *of faith* speak only of immediate faith, insofar as this is not found expressly defined by the Church. Hence St. Thomas, in the place cited, asserts that the canonization of Saints is a mean between the infallible judgment concerning matters of faith and that concerning other matters which do not immediately pertain to faith. Which indeed is the same as to teach that the canonization of Saints touches, on the one side, the extreme of faith, on account of the very great certitude which is considered in it; but on the other side touches the other extreme, insofar as it is not found expressly and immediately defined that the Church cannot err in the canonization of Saints. Yet all unanimously assert that it is so certain that the Church cannot err in the canonization of Saints, that it is temerarious, scandalous, and savoring of heresy to affirm the contrary. With these marks, then, Muratori comes to be marked, since he seemed to insinuate that the Church, in the act of canonization, is liable to error. Nor will he himself be able to escape censure, without owning himself beaten. For either he asserts that the Church can err in the canonization of Saints, and he runs into a proposition temerarious, scandalous, and proximate to heresy; or he judges that she cannot err, and then he cannot deny the special assistance of the Holy Spirit, upon which alone all immunity from error depends; and, this being posited, we have in canonization an infallible truth revealed by God, Christ the Lord saying: *He will teach you all truth.* Truly I know not by what impelling

suggestion it pleased Muratori not only to depart from the more probable and more certain opinion, but to be so carried outside himself as to attribute to immoderateness of wit a pious, most probable opinion, supported, even in the judgment of adversaries, by a more than human certitude.

28 What moved him to so great a license is that someone's sanctity is not found revealed. He does not know that one revelation is singular and explicit, another virtual and implicit. If he requires explicit revelation for the assent of faith, many things defined by the Church will not be believable as *of faith*; for in many, this explicit revelation is not established to us. But if he speaks of virtual implicit revelation, without doubt he is deceived. For it is certain that it is revealed that every Catholic dying in grace, and already cleansed from every defilement, stands in heaven endowed with eternal beatitude. Otherwise God would not be truthful and just, who has promised the crown of justice to all who strive lawfully, the Apostle saying: *There is laid up for me a crown of justice, which the Lord will render to me*. Likewise it is revealed that the Church, and her Pontiff, on account of the infallible assistance of the Holy Spirit, cannot err in those things which are recognized as pertaining to the Religion of the universal Church. Whence it becomes evident that it is *of faith*, at least implicit, that this canonized Saint is in the heavens. Since indeed that is implicitly contained in revealed truth which is evidently deduced from one premise *of faith* and another evident. So it is in the case proposed. For, in the first place, it is *of faith* that the Church cannot err in those things which pertain to the worship and religion of the universal Church. Next, the worship binding all the faithful to exhibit veneration to any canonized Saint whatever is evident. It follows that the Church and the Pontiff could not have erred in that canonization; otherwise the Church would establish something contrary to the divine and natural law, and would compel the faithful to assent to error and falsity, namely, to bestow worship upon one well-nigh unworthy of that worship; which is altogether repugnant to the divine and natural law. This argument is more strongly established from the Clementine and the Extravagant *de Reliq. & Venerat. Sanct.*, and from the Tridentine, sess. 25., decree on the same matter: in which decrees it is defined that the Saints are to be invoked, and their relics venerated, and that to the Church pertains the authority of declaring to whom that veneration is to be exhibited; and this we ought to believe as defined by the Church. The Church, therefore, would be deceived in a matter so grave, regarding morals, and would deceive us, if that Saint were not truly in the heavens, and therefore ought not to have been venerated; and she would establish a law contrary to divine and natural right. Behold from what mazes we are freed, who do not deny the assent of faith to the canonization of Saints: behold into how many quicksands of diffidence he falls who does not attribute to it the assent of faith. If, for believing anything, we should await explicit revelations made to us, how easily the whole business of the Christian Religion will be imperiled. Rightly, therefore, I leave it to the Theologians to judge what censure we ought to brand upon this Muratori.

29 I ask the same judgment concerning other words: *Or even, after the greatest office was obtained, to have declined into heresy, which likewise very many affirm can happen.* This general proposition assuredly needs explanation, and a grain of salt; for it seems to comprehend both the case in which the Pontiff would err as a particular Doctor, and the case in which he would err as universal Doctor, instructing the Church concerning matters of faith, and proposing something to be believed as *of faith*. As to the first part, many follow the view that he can err; but that he has in fact erred, no one evidently demonstrates. That authors not much well-affected toward them have assailed the Supreme Pontiffs with this calumny, Giballinus excellently demonstrates, *de Scientia Canonica tom. 2. lib. 5. §. 11.*, scattering all these calumnies with a most luminous pen. To be seen also are Bellarmine, *lib. 4. de Roman. Pontifice cap. 12. & alibi*, Duvallius, *ubi supra*, Cardinal Baronius in many places, Fr. Viva, *de Thesib. damnat. in quæst. Prodrom.*, where at *num. 15.* he says thus: *They err vehemently who teach with the heretics that the Pontiff has more than once erred in decrees of faith.* Hence it is clear, as to the second part, that that opinion is false and calumnious, nor is anyone orthodox who embraces it. Whoever has it in mind to adhere to it must necessarily be opposed to the decrees of Pontiffs and Councils. Nothing would be firm in the faith, if we admitted that the Pontiff speaking *ex Cathedra* can err. To dwell upon this would be, among Catholics, a fruitless labor.

30 These things having been briefly discussed, and — lest I weary myself in turning over books — indicated in passing, the foundations upon which Muratori rests, so far as the slenderness of my little wit grasps, do not press much. In the first place, I do not see *what intolerable inconveniences would follow* from this, that from certain general principles I descend to certain things to be believed in particular, which are necessarily deduced from those very principles, without hoping for either an explicit revelation or an express definition of the Church. Thus the Doctors do not doubt that those things which are deduced from the first principles of the natural law are precepts of the natural law. Thus they do not resist holding that those things which descend from certain principles, or precepts, of the divine law are precepts of the same law. How can it be that in matters of faith the use of the same right is denied us, and attributed to immoderateness of wit? What he adduces from the Constitution of Paul IV, I have already left destroyed above.

31 Next he asserts that this universal pronouncement: *Every man duly elected by the Church as successor of Peter is the true Roman Pontiff*, must belong integrally to the faith; that is, that it was revealed by God, and hence that it is necessary that it be revealed by God that the successors of Peter are to be elected by the Church. The argument has no force; for in the opinion which this Modenese Theologian rejects, it is not necessary that the whole universal pronouncement be revealed by God. The *ly duly elected by the Church* stands by way of a condition, or logical requisite, not of a revealed truth. As, in a like case, in this thesis: *Every man dying in the grace and friendship of God is saved*; or in the contrary one: *Every man dying in sin is condemned*. Each of these theses is to be

believed as *of faith*; and yet it need not therefore be said that the whole universal pronouncement was revealed by God, in order that it be believed as *of faith*: for the *ly dying in grace, dying in sin*, is placed by way of a logical condition, so that the proposition may come out certain, and to be believed as *of faith*. And, to use Muratori's own example, this proposition: *In every duly consecrated host there is really the body of Christ*, is a proposition to be believed as *of faith*; and yet the *ly duly consecrated* is in that proposition by way of a condition; not because that proposition is thereby rendered conditional, but because that condition is imbibed and, as the Jurists say, is present from the nature of the thing, and is expressed in the manner in which it is present, in such wise that that proposition is simple and absolute, and simply and absolutely certain as *of faith*. That which is certain of these and similar theses is also certain in the other, about which we dispute; without there being necessary a new and peculiar revelation that that man was duly elected, in order that that proposition come out certain as *of faith*: just as in the other propositions a peculiar revelation is not necessary, that that man died in grace, or in sin, or that this or that host is duly consecrated, in order that the aforesaid absolute, general, and simple propositions — which, upon the imbibed supposition, are founded on the infallible veracity — come out certain as *of faith*.

32 Muratori may perhaps retort. Although the aforesaid propositions adduced as examples are *of faith*, nevertheless we cannot from them descend to particular conclusions, namely: *This individual host really contains the body of Christ: This man has been saved, or died in grace*, because the infallibility of these propositions depends upon a peculiar revelation that that individual host is duly consecrated, that that man died in grace. Therefore, similarly, in order that from that general proposition we may descend to the particular, namely: *This man, or that man, is the true Pontiff*, there will be need of a peculiar revelation that this individual Pontiff was legitimately elected. He does not retort rightly; since we are now not in the particular proposition, but in the general one, which he denies to be *of faith*. But I congratulate him on the argument, that I may the more securely bring a counter-charge.

33 He himself, in order to dash the argument which is deduced from this, that, in order that we may believe the decrees of the Pontiff concerning the faith to be divinely most certain, it is necessary that we also hold as most certain by divine warrant that this man or that is the true Roman Pontiff, as we weighed above; (we shall respond presently to what he replies there) he resolves it thus: *For in order that we may embrace dogmas by faith, and believe them as certain, it suffices that those facts, and the legitimate election of the Roman Pontiff, become known to us through moral evidence*. Very well, nor do we refuse it; although, as regards the point intended in that enunciation, *This Pontiff has been duly elected*, we consider something more than moral evidence. But upon a

supposition: Why so? Because, for eliciting a conclusion certain of faith, it suffices that one proposition be certain of faith, and that the other rest upon evidence either natural or moral. So the Theologians.

34 Behold the most certain reason for that dictum: *What the Church with the Roman Pontiff has received and established as revealed by God, that ought to be certain to us by divine faith*. He gives the reason, namely, because from a twofold proposition — the major, namely, of faith, such as: *Whatever has been revealed by God is true and certain*, and the minor morally evident, such as this: *But it is established for us through evidence that the Church, and the Roman Pontiff with the Church, has received or established this or that dogma as revealed by God* — a conclusion of faith is deduced by a necessary and infallible consequence.

35 Now from Muratori himself there shines forth a most manifest reason for the difference between those propositions adduced by him as examples and our proposition. Ours runs thus: *Everyone duly elected and received by the Church is a true Pontiff*. Behold a major certain of faith, since, the legitimate election being presupposed, it rests upon divine truth, as we proved above. *But this individual Pontiff was duly elected*: behold another proposition morally evident; because that election was made by the Church in the manner determined by her, and was held as legitimate, so that from it she recognized the elected Pontiff as true Pontiff. It follows that it must necessarily be believed that this individual Pontiff is a true Pontiff. But indeed, in that enunciation, *In this individual consecrated host there is really the body of Christ*, although we have a proposition certain of faith, namely, *In every duly consecrated host there is really the body of Christ*, yet we do not have another proposition morally evident, because that other proposition, *This individual host has been duly consecrated*, has no moral evidence. Why is there this evidence in the one and not in the other? Because the first rests upon the public authority of the Church, and upon a fact approved by the Church herself, and upon a form constituted by her; but the second rests upon the private act of a man, of which we can have no moral evidence. One must reason similarly concerning the other propositions adduced by Muratori. There can be another reason; because from that election not duly made many inconveniences of great prejudice could arise among the faithful people, which to avert doubtless pertains to the providence of the invisible Head. It would be otherwise in particular facts, from which the Christian Commonwealth can suffer no considerable detriment.

36 Now let us return to Muratori's proposition. It runs thus: *Whatever is established for us through evidence to have been received or determined by the Church, and by the Roman Pontiff with the Church, as revealed by God, will also be certain to us by divine faith*. In passing I note here that phrase, *by the Roman Pontiff with the Church*, which is read repeated several times; as though there seems to lie in it the opinion that the Pontiff by himself alone can define nothing, but only together with the Church. Whether this

judgment, if perchance he conceives it, be true, I leave for others to consider. This being laid down, I inquire of Muratori: Does *that entire dictum pertain to faith, that is, has it been revealed by God?* If he answers affirmatively, it will be necessary that it be of faith, by a peculiar revelation, that he who thus defines is the Roman Pontiff, and that what he determines has been revealed by God. But if he resolves negatively, we make the same reply concerning that proposition: *Every man duly elected by the Church as successor of Peter is the true Roman Pontiff.* Next I note those words, *as revealed by God.* I do not remember ever to have read that the Church, when she proposes something to be believed of faith, declares that she so determines it as revealed by God, or that she has received for it a peculiar revelation (such as Muratori demands). We believe indeed that it is revealed on account of the infallible assistance of the Holy Spirit, who can neither be deceived nor deceive. Let Muratori now say from what principles he deduces that infallible assistance of the Holy Spirit? And whatever he shall assign, we shall bring forward the same to prove the same assistance in the election of the Supreme Pontiff and the acceptance of the whole Church.

37 In order to reject it, he asks thus, chidingly: *For when, either in the sacred Scriptures or through tradition, has it been revealed that the successors of Peter are elected, or are to be elected, by the Church?* How much we could note here! Election is a mode approved by natural and divine law, and regularly received by the universal Church. It would be easy to adduce innumerable examples of this truth, from sacred as well as profane history. But to the point. From the Gospel, *Luc. 6. 13.*, it is established that Christ the Lord chose twelve from among His disciples as Apostles: *And when day was come, he called unto him his disciples, and he chose twelve of them, whom he named Apostles*, that thus He might teach us that one must proceed to that dignity through election; for whatever Christ the Lord did, He did for our instruction. Likewise this is proved by *Joan. 6. 71. Have not I chosen you twelve?* And *13. 18. I know whom I have chosen.* And *15. 16. & 19. But I have chosen you.* And *Actor. 1. 2. whom he had chosen through the Holy Ghost.* An infallible argument for this election is what is related in *Actib. Apostol. cap. 1. à vers. 15. Peter rising up in the midst of the brethren, said: (now the multitude of persons together was about an hundred and twenty) Men, brethren, the scripture must needs be fulfilled.... Wherefore, of these men who have companied with us all the time that the Lord JESUS came in and went out among us.... one of these must be made a witness with us of his resurrection. And they appointed two, Joseph, who was called Barsabas, who was surnamed Justus, and Matthias. And praying, they said: Thou, Lord, who knowest the hearts of men, shew whom thou hast chosen of these two, one &c.* Who could here doubt that election was known, approved, and inspired as the fitter means for the assumption of that office, namely, the Apostolate? Who will dare to deny that Peter, with the Holy Spirit leading, thus proposed that mode to that congregation of

disciples? Who will be able, without rashness, to assert that Matthias was not accepted by God, and did not straightway receive the Apostolic dignity, with no other confirming it?

38 The same is evident from another place of sacred Scripture, *Actor. 6. 5. Then the twelve, calling together the multitude of the disciples.... Wherefore, brethren, look ye out among you seven men of good report, full of the Holy Ghost and wisdom, whom we may appoint over this business. And the saying was pleasing before all the multitude, and they chose Stephen &c. And Actor. 15. 22. Then it pleased the Apostles and ancients, with the whole Church, to choose men of their own company. And 25. It hath pleased us, being assembled together, to choose out men &c.* Behold, we have in the Scriptures a clear and express mode of election; we have the Apostles instructed in it, and that they did this by divine inspiration it will be impious to doubt. Therefore Muratori inquires too foolishly, where is it read in the Scriptures that this mode of election was prescribed? It was not expressly prescribed as regards the election of the Pontiff, but it was prescribed for election to the Apostolate, which is the same thing. As regards the election of the Pontiff, however, we have an express tradition of the Church, most clearly founded in Scripture itself.

39 What is tradition? It is either Divine, or Apostolic, or Ecclesiastical. Divine is that which the Apostles received either from the mouth of Christ by word, or taught by the Holy Spirit. Apostolic (which is many times confounded with the divine) is the name given to that which was instituted by the Apostles with the assistance of the Holy Spirit. Behold, we have the mode of election instituted by the Apostles, nor can we call into doubt whether it was instituted with the assistance of the Holy Spirit. Ecclesiastical tradition is the name for a certain ancient custom introduced in the Church and always retained. That this custom of electing the Pontiff pertains to morals, what sane man will doubt? What authority this long-standing custom of the Church possesses, the *Concil. Trid. sess. 4. de Canonicis Scripturis* will teach us. Thus say the Fathers, illumined by the Holy Spirit: *The sacrosanct Synod receives and venerates, with an equal affection of piety and reverence, the traditions pertaining both to faith and to morals, as having been dictated either by the mouth of Christ or by the Holy Spirit, and preserved by continuous succession in the Church.* Who, however, unless he be raving, calls into doubt that this manner of election was received, instituted, and continued by the Church from the beginning?

40 This mode of election all the Theologians and Canonists attribute to the natural and, as it were, indispensable divine law, who assert that the Pope cannot elect a successor for himself, as Cardinal Petra testifies (7) {marg. (7) Tom. 5. ad Constit. 5. Clement. VI. n. 7.} in these words: *Not only according to the rules of canon law, but by the prohibition of the divine and natural law, or, as others say, of the natural and, as it were, indispensable divine law.* And this mode, as more conformed to the natural and divine

law, and more opportune for avoiding the inconveniences which could otherwise occur, the Church took up and established. Therefore the second Pontiff elected after Peter was Linus, after Linus Cletus, and after Cletus Clement; and that this was done by divine counsel *Ciaccon. in vita S. Lini* teaches. *And although Cletus had designated Clement as his successor, yet Clement, exercising modesty, yielded his right: and Linus was elected Roman Pontiff. Clement therefore was second by Peter's ordination, not by the Church's nomination; by Peter's right, not by function and administration, which was attributed to Linus by divine counsel, lest both the liberty of choosing successors for oneself should pass into an example for those to come, and the providence of the Church in constituting a Pastor for herself should in that manner have been taken away.*

41 But although in the Ecclesiastical monuments it is not sufficiently expressed how Linus succeeded in place of S. Clement, who yielded the designation made of him by S. Peter — whether by Saint Peter's appointment, or by some miraculous sign, as divine providence was wont in those earliest times for the confirming of the nascent faith, as *Acarona de Cardinalib. tract. 1. cap. 10. n. 3.* notes, nevertheless it is also most probable that Linus was placed in the Chair of Peter by the Roman Clergy. For it is established as certain that from the beginnings of the Church the election of the Supreme Pontiff lay with the Priests and Deacons of the city of Rome.... And deservedly indeed was the election of the Supreme Pontiff from the very beginning attached to the Roman Clergy; for since the Pope, Monarch of the universal Church, is at the same time also the particular Bishop of Rome, it is fitting by the highest right that he be elected by the Clerics of his own Church.... According to the mode just described, for about four centuries the highest liberty flourished in the Roman Church in the electing of the Supreme Pontiff by the Priests and Deacons, with the people giving their suffrage. These are the words of Petra, cited above.

42 But of greater weight and authority are both St. Augustine and the holy Father Anacletus, successor of Clement. The first, *ad Hebræos 5.*, speaks thus: *We are God's coadjutors, and therefore the calling of the divine sentence is not always to be waited for; but God elects him whom the charity of the Church and the common consent of the electors elects.* What clearer? The second indeed says thus: *Although the Lord has reserved to Himself the election of the Supreme Pontiffs, yet He has granted the election of the same to good Priests and to spiritual peoples.* Or, as it is better had in Ivo, *p. 5. cap. 138.*, or in Gratian, *in cap. fin. dist. 70.* *The Lord has reserved to Himself the election of the Supreme Priests, although He had granted their election to Priests and to spiritual peoples.* What more express?

43 It stands, therefore, that this norm of electing was given by God, and always observed in the Church; for nowhere do we read that the nomination of the Vicar of Christ and Successor of Peter was made otherwise than through election. For although Symmachus, Boniface III, Stephen III, Adrian I, Leo IV, Nicholas II, Alexander III, Gregory X,

Clement VI, Clement VII, Paul IV, Pius IV, and Gregory XV established certain things concerning the mode of election, as the times demanded and experience had taught; yet none took election away, but prescribed a mode for it: which indeed they could do by right; for since Christ the Lord left the collative right of the Papal dignity in the Church, affixed neither to a certain form nor to certain persons, it was a necessary consequence that the administrators of that same vicarious power should prescribe this mode according to the opportunity of the times, as the cited Petra says, from *Domin. à SS. Trinit. Roccabert. Dominic. à S. Thom. Azorio, Paris. & Lavorio*. Especially since this election was to be made in a human manner, and hence its mode, that it might be done canonically, pertained to the supreme legislator on earth, the living rule in matters of morals and of such great weight. Nor is this new; for although it is of faith that God is to be worshipped, yet the mode of this worship is determined by the Church, and the same could be demonstrated in many other examples.

44 So greatly did this custom, received through tradition, flourish in the Church, that even in the time when Emperors and Kings arrogated to themselves without right some power in the elevation of the Pontiffs, the Pontiffs were always raised to the Chair of Peter through election. Thus Theodorus Augustus decreed *that he alone should remain in the Apostolic See whom, from the number of the Clerics, by a new ordination, the divine judgment and the consent of the whole body shall have elected*. (8) {marg. (8) Cap. Si duo dist. 78.} Thus in the dire schism between Damasus and Ursicinus the Emperor Valentinian stood for Damasus, duly elected. (9) {marg. (9) Ex Socrat. Sosom. & Theodoret. Baron. ad an. Christ. 367. Ciaccon. in vita S. Bonifacii.} Thus King Odoacer, although by supreme injustice he took upon himself that no one should proceed to the election of the Pontiff without his prior consultation, nevertheless in no way doubted that it was to be made [by election], and only wished to be consulted first, on this pretext, namely, *lest by occasion of sedition the state of the city be called into doubt*, and that concord be preserved in the election of the Church. (10) {marg. (10) Cap. Bene dist. 96.} Thus in the schism between Symmachus and Laurentius, when by agreed compact King Theodoric was approached as arbiter, he himself, however much an Arian, as Anastasius the Librarian relates, delivered this most equitable judgment: *That he who was first ordained, or in whom the greatest part was recognized, should himself sit in the Apostolic See*. Whence Symmachus prevailed, who had been elected by the greater part. Thus Theodoric himself, by supreme wickedness, presumed to arrogate to himself the election of the Supreme Pontiff, and in fact intruded into the Apostolic See Felix, who afterwards was called the Fourth; but Felix was rejected by the Roman Clergy, nor was he held for a true Pontiff until after the Roman Clergy consented to him and confirmed him by its election. (11) {marg. (11) Bzovius de Roman. Pontif. cap. 2.} The same happened in the case of Silverius. (12) {marg. (12) Anastasius in vita Silverii.} Why

should I weary myself? From the beginning down to these very times, no Pontiff will be pointed out who did not ascend the Chair of Peter either through inspiration or through election.

45 We have, therefore, an indisputable custom through so many centuries, and an ecclesiastical tradition, and consequently that most inept argument of Muratori is driven headlong. Secular Princes have dared, through the vicissitudes of the times, to insert their hand into this creation of the Pontiffs: many contentions, many ambitious strivings for the Pontifical dignity, many schisms have disturbed the Church. But these are the tempests, these the tumultuous waves, these the stirred-up storms, which seemed to overwhelm the little ship in the midst of the sea, and the disciples; but the Lord JESUS, who seemed to sleep, that He might try the faith of failing souls, at last, at last stilled every tempest. So in all the straits of tribulations has the Church ever found by experience. There must be heresies, says the Apostle, that the truth may shine forth more splendidly. It was needful also that schisms should intervene, that the triumph in the contest might become more illustrious. It was needful that the Church should have suffered such great tribulations, that the firmness of her faith might be proved. It was needful that these incursions of seditions against the Church should be permitted to Lucifer and his Angels, that the divine dictum might be acknowledged firm and invariable, that *the gates of hell shall not prevail against her*. Wherefore it was necessary, according to the economy of indefectible providence and of the assistance of the Holy Spirit, that those to whom the stern of the Ecclesiastical ship is entrusted to be steered should, as the rising East-winds demanded, with the divine Godhead breathing upon them, publish opportune constitutions, that that election of the Pontiffs might come forth more secure and more immune from all controversy, and *that not flesh and blood, or human wisdom, or the calculation of private advantage should have any weight in it, but that the hearts of the Electors, void of all worldly affections, may be directed by the grace of the Holy Spirit*. (13) {marg. (13) Cardin. Petra ubi sup.}

46 Thus far I have with good grace allowed that moral evidence which Muratori acknowledges, so that, even granting it, I might refute him. Now I would question him, if I could: upon what principles is that moral evidence judged to be founded? Upon no others than upon that public authority of the Church so duly electing, so holding the one elected for a true Pontiff, so profoundly searching into all things, that the election, without any exception, according to the prescriptions of the sacred Canons, may stand canonical and remain uncontroverted. I believe there are no others, nor does he himself assign other principles of moral certitude. From these very principles I infer arguments sufficient for the assent of faith. The Church, which cannot err in matters of morals, most prudently searches into all things, that the election may be liable to no exception. She observes the decrees of the Canons of infallible authority, inasmuch as they were established by the Church herself in universal Synods. She elects thus: *As though the Electors were pure ministers and instruments of the divine will, as those who merely*

designate the person upon whom Christ immediately confers His power: for it is God indeed who truly elects the Pontiffs, and who delivers to them the power of the keys, (14) {marg. (14) Ex Suar. Caietan. & Faguan. Petr. ubi sup.} as we said above from Augustine. Him who is duly elected God also indubitably elects: Whatever (asserts the same Muratori) is established for us through evidence to have been received or determined by the Church, and by the Roman Pontiff with the Church, as revealed by God, will also be certain to us by divine faith. Therefore this individual Pontiff was elected according to the form revealed and established by God: therefore it is of faith that he was duly elected: therefore it is of faith that this duly elected Pontiff is a true Pontiff.

47 If he should say, to escape the argument, that that form of election was not established by the Church, he must fall upon Scylla in his desire to avoid Charybdis: he would have to assert that the Supreme Pontiffs, together with the Church gathered in legitimate Synods, in constituting that form of election — in a matter of such moment, so sublime, so arduous, upon which the amplitude, beauty, safety, and stability of the Christian Commonwealth depend, and in which the benefit of the whole of Religion is at stake — did not have the assistance of the Holy Spirit. If he dares to utter these things, what is to be thought of him the Orthodox will say; but if, as becomes him, he does not refuse it, neither will he be able to deny a truth revealed by God.

48 Finally, he either confesses that this or that Pontiff, elected and recognized by the Church according to the form of the canons, receives, or has received, his power immediately from God, or he denies it. If he denies it: of no Supreme Pontiff will it be possible infallibly to assert that the supreme power of the Church was delivered to him immediately by Christ the Lord, and hence we are bound to believe nothing established of faith. But if, as he ought, he confesses it, it must be held of faith that everyone duly elected has received the Pontifical dignity from God, and hence that this man, duly elected, is the true Roman Pontiff. I omit Muratori's other petty reasons; for from what has been said they are most easily refuted. This I conclude: that he, in seeking to censure the immoderation of wits [?], has declined into the greatest impiety. That this opinion, defended by so many distinguished Theologians, is more considerate of the infallibility and authority of the Church and of the Supreme Pontiffs, no one will doubt; that it comes nearer to Christian piety and to love for the Apostolic See, no one will gainsay. I would rather err with Suárez, Bellarmine, Cajetan, de Lugo, and the other Theologians, than be enrolled with Muratori alone. I write for the pious orthodox, that I may say with Nazianzen: *This discourse I shall commend to pious ears; for among profane souls faith can find nothing beautiful.*

49 *Pag. 156. & sequentibus* he elegantly labors to demonstrate the fallibility of the Church when she passes judgment on the mind and intention of one who has handed down some noxious doctrine. In him, I vehemently suspect, is verified what he himself has written: *It can happen (he says) therefore, that he who has written or pronounced*

depraved things has thought rightly in his mind; for both they who think rightly do not always speak or dispute rightly, and the heart sometimes believes one thing while the mouth, out of dissimulation, pronounces another; just as also they who stray from the truth are often wont to cover their error with ambiguity of words. Since indeed he, by the beauty of eloquence, to which he has most greatly applied himself — and in which method of speaking the more illustrious writers of that kind almost always excel, so that what they cannot persuade by the weight of reasons they may attain by the ornament and apparatus of Rhetoric — is wholly bent on defending the souls and minds of those in error, nor does he think that those are to be reckoned among the most certain heretics whose doctrines the Church has condemned as heretical; since indeed she can decide by no firm judgment that the author of some error is guilty of that of which he is accused; for it could have happened that he thought otherwise in his mind. Most apt indeed for excusing heretics and the writers of noxious dogmas.

50 He strives to protect them, because they many times use (he would better say abuse) words, phrases, and terms for explaining their own doctrine and handing it on to others: in the discharge of which office it sometimes happens that they are wont to hide perverse opinions under orthodox locutions, and again to clothe orthodox ones in heretical terms. But to what end these transfers of significations, these metamorphoses of words? To nothing, except to deceive readers: by these frauds heresies are introduced, by these wiles errors are scattered, the more dangerous the more they are clothed with deceptive ornaments. This is the common endeavor of innovators, namely, to adorn false doctrine with the cosmetic of truth, or of virtue, or of charity, and to exhibit their errors decorated with various arts and pigments, clad in fluency of speech and charm of style, that they may come to us in the clothing of sheep, while inwardly they are ravening wolves. How much better would it be that he abstain from these tropes and figurative locutions, lest the truth of faith, wrapped up in these coverings, be endangered. Truth has no need of these crafty ornaments, in order that we may most gladly embrace it: by its very own beauty it stands firm, that it may allure, that it may bind fast, that it may draw: the more naked and the more pure it is shown, the more beautiful and the more dear it is loved, the more gracious and the more resplendent it shines forth.

51 There is no need, he says, of the assistance of the Holy Spirit, that these errors be detected and these Innovators condemned, nor are miracles to be feigned without necessity. An inept opinion on either part! To detect these frauds of the Innovators, to search out these senses of obscure words, to elude these cunning devices of the demon, to lay hold of these arts of deceiving, is a business of greater and more difficult hazard than that human and fallible wisdom, destitute of divine inspirations, should compass it. As the wiles of the death-dealing dragon are the more crafty, so the aids of the never-failing divine providence are the more necessary. The more the air is thickened with denser mists, the more need there is of more intense rays, that they may be scattered. Nor, that we may understand that assistance of the Holy Spirit, will it be necessary to

have recourse to miracles. This most special concurrence of the divine Godhead in defining these matters is to be referred not to the miraculous order, but to the peculiar providence of God and to the fulfillment of His promise. He Himself had sent His Holy Spirit, without whom nothing is harmless, nothing is guiltless, to direct and enlighten the minds of His Apostles and of His Pontiffs. He had promised Peter, and in him the rest of his successors, that He would always be present with them in matters pertaining to the faith; and it is the office of Christ the Lord Himself, as invisible head, to stand by the visible head in like arduous affairs, and always to preside over the direction of His Church. We piously believe, living piously, nor can we with reason doubt, that God, in our actions, when we devoutly have recourse to Him that we may avoid sins, that we may run the right paths with foot unstumbling, aids us by His hidden providence, the Royal Prophet speaking thus: *God hath given His angels charge over thee, that they keep thee in all thy ways.* And therefore, and not in vain, we daily ask of Him with the Church that He direct our hearts and our bodies, our senses, our words, and our acts; nor yet does firm faith or just hope delude us; for God is faithful to them that call upon Him in truth. Who, unless a madman, would say that these helps afforded us from heaven are miraculous, and that we rashly and without necessity demand miracles? These things are not outside or against the order of nature, or of divine providence, whereby He invisibly governs all things, that we should call them miracles. God is wonderful, His testimonies are made wonderful exceedingly; but not therefore are all the things which God daily works in us by His invisible hand, by His invisible direction, to be called miracles. So in our particular works we piously believe: so we hold that God always infallibly assists in the teaching of His Church.

52 The foundation of Muratori is this: that in matters of fact the Church can err, and that in these God has not promised His assistance; and for this he adduces that saying of Innocent III to the Abbot of St. Andrew, (15) {marg. In cap. A' nobis 28. de Sentent. Excommunic.} namely: *That the judgment of God ever rests upon truth, which neither deceives nor is deceived.* (Behold by what rule we are directed, that we should not doubt the assistance of the Holy Spirit to the Church in like affairs, although dependent upon fact) *But the judgment of the Church sometimes follows opinion, which it often happens both to deceive and to be deceived.* Which authority of Innocent, however, he would not adduce, if he distinguished between facts and facts — between facts which have no connection with right, and facts connected with a question of right. In the former the authority adduced holds good, and many others hold good. Innocent speaks of particular facts, as Roa says, and with him Gonzalez on the said text, and commonly both Theologians and Canonists. Thus is Bellarmine explained, (16) {marg. Lib. 4. de Pontif. cap. 2.} thus others, in questions of particular fact. It is otherwise in facts connected with questions of right in matters concerning the faith. Let Neusser, Viva, Ardeskin be seen, (17) {marg. Neusser. in Prodrum. velitari p. 1. cap. 3. Viva in quæst. Prodruma n. 8. & late circa Jansenii propositiones. Ardeskin in sua Theolog. tripart. cap. 10. q. 3. 4. 5.} and many others besides, lest I seem to repeat what has been said by them. Nor do true

orthodox men today any longer doubt of this; but Muratori doubts, he who has so often protested his reverence toward the Apostolic See. Let him know, however, that he agrees with the Jansenists, whose opinion this always was, that they might defend their Jansenius and demonstrate him free from error. Let him know that he presses the footsteps of Eusebius Bishop of Nicomedia, and of Theognis, and Theonas, and Secundus, who refused to subscribe to the condemnation of Arius and to the formula of faith proposed at Nicaea, on the ground that the doctrine of Arius, of which they themselves were followers, pertained to a question of fact not true, or at least of uncertain truth, which could not be defined by the Council, as Maimbourg relates in his history of Arianism, and as is had from Fr. Viva *ubi supra*; which that Council did not admit, nor approve: nay rather, for that cause they themselves were at last driven from their sees, and gravely rebuked by the Emperor Justinian, as appears from the letters of Justinian himself inserted in the acts of the Council, and which Baronius relates at the year of Christ 329. Let him know that he is in a certain manner implicated in the condemnation of Innocent XII, seeing that he condemned the propositions of Jansenius not only in the obvious sense which the very words present, but also in the sense intended by Jansenius, as the Jansenists asserted — whose party Muratori seems to patronize, even while he demonstrates that he does not approve Jansenius; for the same doctrine which they asserted, he himself now contends to approve.

53 And indeed, if this opinion were not to be altogether exploded, then, while the Innovators, ever hostile to the Church, chatter on, a most broad way would be paved for excusing condemned heretics and proscribed heresies, and for taking them always in a good sense. For there is none, or almost none, which is not shut up beneath the mask of words and the ambiguity of speech, as may be seen in Arianism, Monothelism, Nestorianism, Jansenism, and many others. There is almost none which does not involve questions of fact along with it. Arius himself, Nestorius, Eutyches, Waldensis, Wyclif, John Hus, Jerome of Prague, Arnold, Baius, Jansenius, and others like them held forth the true sense of their propositions. This was, and is wont to be, the counterfeit appearance of truth; these are the paints of speech, wherewith error, clothed about, frequently exhibits itself, that it may deceive the unwary and meanwhile stalk abroad: these are the flowers among which vipers lie hidden, that they may bite the more securely: these the golden cups in which noxious poisons are proffered: if they please Muratori, they altogether displease us.

54 Nor does my mind suffer me to pass over the examples which Muratori uses. He brings forward these: *Thus it was no sacrilege to defend to the utmost of one's power Origen, Theodoret, Abelard, Gottschalk, the Abbot Joachim, and others condemned even in general Councils themselves.* Origen without doubt is found condemned for heresy. But who are his defenders? Let us go to Theophilus, Bishop of Alexandria; he himself will answer Muratori for us: *Some have dared to say that Origen is a Doctor of the Church. Are these men, I pray, to be endured? If Origen is a Doctor of the Church, the*

Arians take great spirits to themselves, and the Eunomians, and those pagans who blaspheme against the Son; these likewise, and those impious men, and also they who deride the resurrection of the dead. [?] The Emperor Justinian concludes, in the epistle which is found tom. 3. Conciliorum pag. 262. From these things it is clear that he who follows the holy Fathers does not doubt that they who think with Origen follow the error of the pagans and the madness of the Arians. Let the aforesaid epistle be seen. Behold what censure the guardians of Origen deserve: behold how they are rendered free from sacrilege.

55 It does not escape me that Eusebius of Caesarea excused Origen. But what is the Church's judgment concerning Eusebius? The First Roman Council will explain it. Thus it has: *Likewise the chronicles of Eusebius of Caesarea, and the books of the same man's ecclesiastical history: although in the first book of his narration he grew lukewarm, and afterwards wrote one book in the praises and excuse of Origen the schismatic: yet, on account of his singular knowledge of things which pertain to instruction, we do not say that they are utterly to be refused.* Behold, the Church in no wise approves the excuses of Origen — nay, it reproves them — but on account of the singular erudition of Eusebius it dissembles his laudations of Origen, yet in no wise approves them.

56 I am likewise not ignorant that Gregory of Nyssa and Jerome greatly extol Origen. Yet it is one thing to praise his genius and his very great erudition, another to excuse him from condemned errors. Neither Gregory nor Jerome asserted that he was unjustly condemned, nor did they undertake the defense of the condemned opinions. They praised him as regards his other doctrines, which are not found proscribed; of which truth the Roman Council itself is witness in these words: *Likewise certain small works of Origen, which the most blessed man Jerome does not repudiate, we receive to be read. But all the rest we say are to be refused together with their author.*

57 They who defend Theodoret do not patronize his errors, but rightly assert that he was not a contumacious heretic. That he wrote many erroneous things no Orthodox man doubts; but that he was formally a heretic not even the holy See itself pronounced. Pelagius II affords sure credit to this truth in *epist. 5. to Elias and the Bishops of Istria*, in these words. He had recounted various errors of Theodoret, and afterwards writes thus: *Who, most dear brethren, does not see that these things are full of every impiety? From which, nevertheless, it is established that he afterwards corrected himself, who in the holy Synod of Chalcedon consented to anathematize Nestorius. Who does not see how full of rashness it is, in pride to defend the writings of Theodoret, which it is established that the same man himself, by afterwards professing right things, condemned? But while we both receive his person, and reprove those depraved writings which had long lain hidden, we deviate in nothing from the action of the holy Synod; because, rejecting only his heretical writings, we venerate, with the Synod, Theodoret professing right things. But his other writings we not only receive, but even use them against adversaries.*

58 Concerning Peter Abelard I shall despatch myself most briefly. Against him by name I find no condemnation made by the Church; whence, what forbids there to be place for disputation? Theobald of Étampes harries him as a heretic; others free him from this calumny. Against Roscelin of Compiègne, who asserted *three persons in God separated from one another, in such wise that both the Father and the Holy Spirit were incarnate, and that three Gods could be said, if usage admitted it*, [?] the Council of Soissons was held, in which so depraved a doctrine was condemned. As regards the fact: Just as he fastened that calumny upon Lanfranc and Anselm, so as to call them patrons of his sect, so others imputed the same error to Peter Abelard, his disciple; which he nevertheless expressly denied, and most clearly professed the true faith, as appears from his *epistol.* 21. to Geoffrey, Bishop of Paris.

59 Gottschalk is defended by no orthodox man, seeing that he had been condemned in the Second Council of Mainz and the First of Quierzy, because he professed the heresy of the Predestinarians, which had already before been condemned in many Councils, and that in words so clear that there was no room for any tergiversation; and therefore he suffered condemnation and a cruel punishment from the Archbishop of Rheims. Whoever shall have dared to defend him, or to interpret him in a good sense, must needs desire to make himself a partaker of the same error.

60 Upon the Abbot Joachim, whom St. Antoninus, Sixtus of Siena, Alphonsus a S. Victore, Viegas, and others extol with the greatest praises, Muratori inflicts an injury, when he says that he was condemned of heresy in general Councils. Castro, De Hæresi, writes that he was a heretic; yet Viegas rightly defends him from the calumny. (18) {marg. In Apocalyps. cap. 3. comment. 2. sect. 3.} It is a matter of fact. The case stands thus: When Peter Lombard, rightly called the Master of the Sentences, was accused of heresy before the Holy Father Alexander III, because he seemed to have taught that *Christ, according as He is man, is not anything*; the Pontiff himself wrote back to the Archbishop of Sens that, having convoked prudent and learned men, he should examine and reprove the aforesaid doctrine. The tenor of these letters Gonzalez exhibits. (19) {marg. In comment. ad cap. 2. de Summ. Trinit.} This was the cause of Joachim's error: for, being invited to refute Lombard, he so blazed with this zeal that he not only inveighed against the aforesaid article, but also wrote too freely against other orthodox articles concerning the mystery of the Most Holy Trinity, deceived by such a spirit of contradiction that he supposed Lombard to have taught not only a Trinity but a quaternity. (20) {marg. Cabassut. in notit. Concil. ad Concil. Lateran. IV. sub Innocent. III. Rifenst. in Decretal. lib. 1. tit. 1. §. 10. n. 212.} Nor yet was he therefore a heretic, or condemned of heresy; for neither did he tenaciously adhere to his doctrine, nor resist the Pontifical oracle, but, truly Orthodox, most willingly acquiesced. To which truth the Holy Father Honorius III bore testimony in these words: *That we repute him a true Catholic, and the regular observance which he instituted, salutary*. They are found in the

Apostolic letters given on the 13th of the Kalends of January in the year 1221, which begin *Ex parte*, and are related by Gonzalez and Fagnanus. (21) {marg. In cap. Damnamus de Sum. Trinit.}

61 Let us come to Honorius I, whom Muratori, as modestly as he can, does not fear to insinuate to have been a heretic, or an assertor of heresies, when he says that his letters *were proscribed in the Sixth ecumenical Synod as swarming with heretical opinions*. He praises Baronius and Bellarmine, patrons of Honorius, and he could have praised innumerable others: but it pleased him rather to follow Historiographers hostile enough to ecclesiastical power — those, I say, who, in order to establish the fallibility of the Roman Pontiff in deciding matters of faith, strive to show that not a few Pontiffs lapsed into error. That this is his mind, although most frequently dissembled by innumerable acts of homage, is clear even from this, that he most ineptly adduces this deed of Honorius as an example; for the questions are most diverse: whether the Supreme Pontiff can err in questions of fact concerning the faith; and whether in very truth the fact of the condemnation of Honorius intervened. Of the former, of which the present disputation is, neither Baronius nor Bellarmine nor the rest who defend Honorius from all imposture ever doubted. What they deny is this, namely, that Honorius was a heretic, or condemned as such in the Sixth Synod. Nay, not even Cabassut himself, although he makes him guilty of pusillanimity, dared to assert that he was a heretic; rather he vindicates him from this calumny: yet he shows by several arguments, easy of dissolution, that he was condemned in the Sixth Synod. I only, were it given me, would ask him this: by what right could he be condemned for heresy, if he was not a heretic?

62 I could wish indeed to linger more than is fair upon this matter, but I shall seem to wander far from my principal scope. I offer for reading no longer Baronius or Bellarmine — who, as Cardinals of the holy Roman Church, will perhaps seem suspect to some — but most learned writers, and those French, namely Duval and Gibalin, (22) {marg. Duval. p. 1. q. 4. Gibalin. de Scient. Canon. tom. 2. lib. 5. cap. 3.} and those most erudite men Schott and Coccius. (23) {marg. Scot. in notis ad Photium ad Cod. 19. Coccius in thesaur. Cathol. tom. 1. lib. 7.} I indeed, when many years ago I was turning over more carefully the opinion both of the Sixth Synod and of certain writers upon this matter, an inborn love toward the Holy See and the Roman Pontiffs drew me, most willing, to assent without doubt to those who assert that the acts of that Council were vitiated by Theodore Sicucellus, Patriarch of Constantinople, the name of Honorius being set in the place of his own. And this indeed is plainly persuaded by the fact that, whereas Theodore himself was always a most fierce patron of that heresy, and on this account, and because he had erased the name of Pope Vitalian from the sacred diptychs, was driven from his see, and afterwards, feigning himself a Catholic, was restored to it again, and was condemned with the other heretical Patriarchs, yet nowhere is his name found reckoned among the names of the other Patriarchs who had been condemned.

63 And indeed my mind carries me rather to believe this, than that I should be able to persuade myself that the Fathers of that Synod — with the veil lifted, against all the rules of law, without more mature examination, the party unheard, the true and orthodox sense of the Honorian epistle undiscussed (which even the heterodox themselves do not deny it could have had), no legitimate accusation instituted against him, no defender assigned, against a dead man, a Roman Pontiff, well-deserving of the Church, of whom John de Polemar, Archdeacon of Barcelona, in an oration delivered in the Council of Barcelona, says these things: *Pope Honorius was of wondrous piety, with whose tunic a certain demoniac was clothed, and he was delivered*; the Legates of the holy See neither protesting nor doubting (who yet rose and stood for Menas and Vigilus) — brought forth a sentence of condemnation against Honorius, and proclaimed that he had been a heretic. Who could believe things so unjustly done by a holy Synod congregated in the Holy Spirit? Who made those Fathers certain that Honorius had persisted in that opinion, and had died contumacious, as was necessary (according to the constitutum of Vigilus) in order that Honorius, even supposing his error, might be pronounced a heretic? In what Synod is it ever read that sentence was thus passed against heretics out of hand? That there was done with Honorius, a Roman Pontiff, what was done neither with Nestorius, Eutyches, and other heresiarchs in other Councils — nay, not even with Peter, Sergius, Macarius, Stephen, Polychronius, the assertors of that heresy — how is it to be believed? That his epistles, as being either suspect of heresy, or, on account of an incorrect method of speaking, favorable to heretics, should be condemned — that could have been done: I read that this was done, not in the fourteenth action, as Cabassut says, but at the end of the thirteenth action. Nor yet for that reason could Honorius, of whose true sense there was no right certainty, rightly be condemned after his death as a heretic. As in a like case: the epistle of Ibas was condemned, yet Ibas was not condemned for heresy, as we have said above. But that the epistles of Honorius could have had a true and orthodox sense, this Maximus showed in the same Synod, this John IV showed, this Gibalin above cited proves, this can become known to those who read.

64 It helps very greatly that the Holy Father Agatho, by whose authority that Synod had been congregated, and who could not be ignorant of what Honorius had written to Sergius and Sergius to Honorius, when in his epistles written to the Synod and to the Emperor he made special and individual mention of this heresy and of its patrons, in no wise remembered Honorius, from whose authority that error would receive greater patronage; which that great Pontiff would not have passed over, if he judged Honorius to be befouled with that pernicious stain. Especially since the Emperor Flavius Constantine himself, when he wrote to Agatho, also entered upon discourse concerning Honorius, when he treats of the suggestion made to him, that he should cast Pope Vitalian out of the diptychs. Theodore of Constantinople and Macarius, Patriarch of Theopolis, were aiming *that the most blessed Vitalian should be cast out of the diptychs, asserting that Honorius was commemorated in the diptychs on account of the honor of the Apostolic See of our ancient Rome*. But how should Agatho make no reply to these writings? How would

those Patriarchs not have wished the same reverence for Vitalian, or the same injury for Honorius, if Honorius did not uphold the right opinion? Yet to these things Agatho was silent, and with one word eluded all these wiles, asserting that the supreme Bishops of the Roman Church had never been defiled with any error in the faith. Yet did the Council not have that reverence which the heretics themselves had had, when they so contaminated a Pontiff snatched from the living so many years before, and visited his ashes with so great a disgrace? Incredible to say! This not contemptible foundation Cabassut endeavors to dissolve in the *Notitia Conciliorum cap. 72. §. His tamen*, taking for that purpose an example from the words of Christ the Lord to Peter: *I have prayed for thee, Peter, that thy faith fail not*. And he discourses thus: *Nevertheless, just as that asseveration of Christ to Peter: I have prayed for thee, Peter, that thy faith fail not, does not prevent Peter himself from having a little afterwards denied Christ with his voice; so neither does the assertion of Agatho concerning the faith of his predecessors in any wise prevent some of them, as Baronius and Bellarmine themselves testify, from having gravely sinned against the due profession of the faith*. Yet in my judgment Cabassut has borne himself far too inconclusively. The promise made to Peter was a promise concerning the future, when the keys of the Church built upon him should have been given to him: those words were uttered before the Lord's passion, at which time the Pontificate had been promised to Peter, but not conferred, as *St. Thomas on Matthew* says: *Those keys were not yet forged, and dipped in the blood of Christ, and tempered, with which likewise the virtue and efficacy of the sacraments and the power of the keys flowed forth*; for that office was granted him afterwards, when it was said to him: *Feed my sheep.... Feed my lambs*. Whence Peter, by denying the Lord and Master, sinned as a man, not as Pontiff. But Agatho spoke of the promise already made to the Pontiffs, namely, that their faith should never fail: which being established as certain, to Constantine asserting that Honorius had stood in that opinion of one will, he replied that the Supreme Pontiffs had never at any time erred in the faith, nor could have erred.

65 Let this add great force to what has been said: that neither Theodore I — who came after Honorius, with only Severinus and John IV between, who ruled the Church for no long time — when in his epistles to Paul the Patriarch, and to the Bishops who had elected Paul, and to the Emperor Heraclius, he was taking care for the overthrow of the same heresy, remembered Honorius; nor was Paul himself, in dealing with Theodore, fortified by the authority of Honorius: nor likewise did Martin I, who had succeeded Theodore, and who condemned the heresy of the Monothelites in his Lateran Council and in the epistle to all the faithful which begins *Gratia vobis*, when he recalled Theodore, Sergius, Paul, and others, make any mention of Honorius; which would by no means have happened, if Honorius were to be called either a patron or a sectary of that heresy.

66 Finally, the greatest strength is added to this business by the fact that John IV, the immediate successor of Honorius, in his epistle to the Emperor Constantine, vindicated him from every blemish and from the calumny laid upon him, in these words: *All the western parts are scandalized and troubled, since our brother Pyrrhus the Patriarch, by his letters sent hither and thither, preaches certain new things, and beside the rule of faith, and hastens to draw, as it were, Pope Honorius of holy memory, our predecessor, to his own sense: which was utterly alien from the mind of that Catholic father.* But after he has explained the true doctrine and the true sense of Honorius, he thus concludes: *The aforesaid predecessor, therefore my [predecessor], teaching concerning the mystery of the incarnation of Christ, said that there were not in him, as in us sinners, contrary wills of the mind and of the flesh: which certain men, twisting it to their own sense, suspected that he taught one will of his divinity and humanity, which is altogether contrary to the truth.* Behold John, who better than others knew most excellently the sound sense of Honorius, explaining him, and blunting the calumnies of his adversaries. Cabassutius did not make much of this assertion of John, asserting that it could be turned to his fault that he himself wrote so suspect a letter, and hence that his testimony is suspect. Rashly said! For John himself in his letter professes two wills in Christ, and only explains that these wills are not contrary to each other, and that Honorius held this alone; which indeed he wrote when he was already Pontiff, and hence his testimony ought already to have merited all credence, at least so that Honorius should not be called a heretic, to whose right sense John bore witness. By what right, therefore, after this declaration of John the Supreme Pontiff, expressly asserting that Honorius was Catholic, could the Synod despise these things and condemn Honorius as a heretic? Why at least was this letter of John not read through, when other documents were read? Why did they not consult the Apostolic See in a doubtful matter? Why did they not appoint some procurator for Honorius, now deceased, who might defend him? That the Council neglected all these things, I shall teach that it is never right to believe.

67 Muratori himself, though doubtful, seemed to incline to this side, *cap. seq. pag. 172.* Yet he professes the deed of the Sixth Synod, because he dares not deny *that anathema was pronounced against Honorius, since the consensus of all antiquity conspires in this.* That whole consensus flows from that vitiated principle, as may be seen in the cited Giballinus, where he answers all the things from which that consensus drew its foundation, namely the letter of Leo I, which is by many rightly said to be forged, and the Seventh and Eighth Synods, which must be said to have received their whole probative force from the corrupted acts of the Sixth Synod. Yet, by his leave, I shall say that it is less culpable that, with Baronius, Bellarmine, and the rest, we deny the deed altogether, than that, retaining it as certain (as Muratori intends), *we assert that Honorius did not in truth think ill concerning the wills of Christ, nor was plainly a heretic;* for we should be forced to say that an ecumenical Council utterly erred in a matter of such weight and of the very greatest moment. This pronouncement detracts very greatly from its authority in defining so arduous a matter: the former offends only heretical

calumniators. *If, as he says, nothing occurs there to most learned men which, the condition of the times and of things being considered, presents true Monothelism and makes the man one handing down impious things, how, the condition of the times and of things being considered, could the Council define (lest we say it erred, which God forbid) that that letter presents true Monothelism, and that Honorius was a man handing down impious things?* We indeed execrate the heresy condemned by the Council, not in Honorius, as he says, but in the other heretics; but the Council's sentence concerning the person of Honorius we do not receive as certain, because we do not judge it certain, because we deem it falsely foisted in by Theodore. But we could wonder — had Muratori not made it his custom — that in the same period he shows himself contrary to himself; for if he *does not judge certain* the sentence concerning the person of Honorius, how does he assert that it is *certainly to be received*? Is that to be certainly received whose existence is uncertain? Thus that writer is deceived by his own ingenuity.

68 He adduces another example, *pag. 170*, to prove that the Church does not have infallible assistance concerning the certain judgment to be pronounced on the sense of words, whether true or heretical. On this he says that *the Church cannot prevent the sayings of others from teeming with equivocations and begetting equivocal senses. Nor did God will, or does he will, to prevent this by the help of miracles, since it is enough for him to bring it about that the legitimate judges of the Catholic Church cannot err in interpreting and explaining the divine books, and in gathering tradition, and in proposing true doctrine.* How can it come about that they do not err, if it is not given to them infallibly to discern true senses, or to lay open false ones? She cannot indeed prevent equivocal words, but she can with certainty decree that those words are of themselves apt for hiding the poison of heresy, and that in fact it lies hidden in those very words, and forbid that we use similar words or phrases. But that she may do this infallibly, she needs a peculiar light, since so many are the windings of words, so many the cavils of heretics, so many the masks of phrases, that most frequently there would be room for deception and errors, if the Church were not illuminated by the most refulgent light of the Holy Spirit; nay, it would happen that at times in these matters she could either be deceived, or deceive the faithful.

69 He asserts that *the Church has now approved, now disapproved the same enunciations taken according to various senses, and has at one time turned away from, at another embraced, altogether the same words, according as they seemed to her to signify either depraved or right doctrine.* Certainly he is deceived; for the Church neither ever, in defining matters of faith, used ambiguous words, to be taken in a double contrary sense; nor did she at any time applaud equivocal speeches apt for disseminating heresies; for she who loves the light has ever held it as her office to hate all darkness. Since indeed, if words can have a good or a bad sense, she has always explained them, so as to shut off from errors even the minutest chinks entirely.

70 This is evident in the very theses adduced as an example. That enunciation, *One of the Trinity suffered*, had been reprobated by the Supreme Pontiffs Felix III and Hormisdas; but it was not altogether the same one that was accepted by John II, Vigilius, and the Fifth Synod, but with something added, namely: *One of the Trinity suffered in the flesh*; otherwise we should say that the Roman Pontiffs disagreed in a dogma of faith. Now you may see, learned Reader, how great a difference lies between the two theses. In the first a horrible error lay hidden, therefore it was rejected: in the second an infallible truth is contained, therefore it was admitted. The one dissembled a passible divinity; the other laid open that only the assumed humanity had suffered. The first was that of Peter Cnapheus, an impious heretic, who, gathering into one the errors not only of Valentinus, Manichaeus, Arius, Sabellius, Apollinaris, and Eutyches, but even of the gentiles, asserted several Gods, and dared to preach that one of the uncreated and undivided Trinity underwent the passion. But the second was that of Proclus, saying in his letter to the Westerners: *We do not say that he suffered in the deity, but in the flesh, which for us he assumed from us. One of the Trinity, therefore, was crucified in the flesh, in which he was made: yet he did not suffer in the deity, in which he is united to the Father and to the Holy Spirit; lest we assert that they too were likewise crucified.* It was that of Gregory Nazianzen, in these words: *And we needed a God incarnate and put to death, that we might live.* It was that of Augustine, in the book *On Charity*, who speaks thus: *For it was an old thing that man should die: and that this might not always prevail in man, a new thing was done, that God should die: but because he died in the flesh, not in the divinity.* And elsewhere: (24) *JESUS therefore was predestined, so that he who was to be, according to the flesh, the son of David, should nevertheless be, in power, the Son of God.* {marg. (24) Lib. 1. de Prædestin. cap. 15.} It was that of Cyril, cap. 12, in these words: *If anyone does not confess that the Word suffered in the flesh, and tasted death in the flesh, and became the firstborn from the dead, according as he is life, and God who gives life, let him be anathema.* It was that of Leo to Juvenal, thus: *The true cross therefore confirms the true generation, since he is born in our flesh who is crucified in our flesh.* And to Flavian thus: *The impassible God did not disdain to be a passible man, and the immortal to lie subject to the laws of death.* Thus the Church professes and explains in the Symbol of Faith, and in all the ecumenical Synods; thus we too infallibly profess, not confounding the persons, nor separating the substance: not adding to the ineffable Trisagion that one of the most holy Trisagion was crucified, as Cnapheus confounded it, but severally, clearly, and distinctly believing one God, Father, Son, and Holy Spirit, and that of these three persons the second, namely the Word, in all things and through all things equal and consubstantial with the Father, was made man of the Virgin MARY, and was born; and of him we firmly believe that according to his human nature he was born, was crucified, died, and was buried.

71 It stands, therefore, that the two enunciations are not altogether the same, as Muratori says, but most diverse, which that addition *in carne* makes them. The one hid a filthy ulcer and a viperous venom beneath equivocal speech; the other expresses a certain

dogma and an indefectible truth. The former both Felix and Hormisdas and other holy Fathers rejected as noxious: the latter both John and Vigilius and the Fifth Synod and the rest of the Doctors of the Church embraced as innocent. Now, inquiring toward my point, I conclude: Are Felix and Hormisdas to be said to have been destitute of the assistance of the Holy Spirit, when they condemned Cnapheus as a heretic, and laid open his perverse sense, which lay hidden in that enunciation? Or did John and Vigilius err, and explain without the inbreathing Godhead of the Holy Spirit in what sense that enunciation was to be taken? Whichever be granted, the mark of temerity will have to be attributed to one so asserting. Therefore the assistance of the Holy Spirit is not lacking, nor is the promise of Christ the Lord vain, whenever it is a question of explaining and declaring the true sense of some proposition.

72 As for what he adds, namely: *In the Synod of Antioch very many Bishops proscribed the word Houmouision, taken in the sense of Paul of Samosata*, let it be said on his own credit, for I do not remember to have read any such thing in the aforesaid Synod; unless perhaps it be contained in some one of the nine canons which Father Pagi, at the year 56, judges spurious, and Father Petavius (25) calls supposititious. {marg. (25) Lib. 15. de Incarnat. cap. 14.} This I know, that in the aforesaid Council of Antioch, which is contained *tom. I. Concil. pag. 195*, the errors and vices of that heretic are related, but concerning the word *Houmouision* not even a word is found, nor anything corresponding to its signification. I know that in the Synod of Alexandria in the year 321 there is speech of the same heretic, and that it is there contained that *he was cast out by the judgment of all the Bishops everywhere, and indeed by the judgment of the Church*, and also that his disciples drew from him *that the Son of God arose out of nothing*; but that he had not rightly taken the word *Houmouision*, this I do not read. I know that in the sacrosanct Synod of Nicaea, in the Arabic preface, it is taught that the sect of the Paulianists, so called from Paul of Samosata, consists in this, that they said: *that God is one as much according to substance as according to persons, and that they call him threefold in name only, etc.* But that he used the word *Houmouision*, that is not expressed there. I know that in the other Synod of the Eastern Bishops, which is the second of Antioch, in the year 344, mention is made of the error of the aforesaid Paul in these words: *Since we acknowledge one only God, perfect, unbegotten, lacking beginning, and invisible, the God and Father of the Only-begotten, who alone has being from himself, and alone benignly bestows upon all others that they may be. Yet not because we profess that the one God, the Father of the Lord JESUS Christ, is alone unbegotten, do we therefore deny that Christ is God before the ages: as do the disciples of Paul of Samosata, who assert that after his incarnation he was made God by advancement, because he was a mere man.* Where here is there mention of the word *Houmouision*, where a disputation? I know that in the Council of Ephesus, in the year 431, *cap. 1*, the doctrine of the same Samosatene, and of Nestorius consonant with him, is most clearly expressed, but concerning the aforesaid word not even a word is found. Just as neither is it found in *cap. 17*, where these words occur in the supplication of Basil the Deacon and of other Monks:

In the holy Synod gathered at Antioch against Paul of Samosata, which, comprising one hundred and eighty Fathers, deposed him on account of his impiety (for he denied that Christ is by nature God, and the Son of God the Father). I know that in the Synodical booklet, which is contained tom. 5. Concil. pag. 1498, mention is made of the same Paul in this manner: The divine and sacred Provincial Synod gathered at Antioch... which deposed and removed Paul of Samosata, who taught nothing else concerning Christ than did Annas and Caiphas. Finally, neither in Socrates, nor in Eusebius, nor in others could I find a disputation concerning the aforesaid word. Nay rather, in Cabassutius, most accurate in setting forth the notice of the Councils, I read nothing else in cap. 5. but this: Three Councils of Antioch are recorded, of which the first two were against Paul of Samosata, Patriarch of Antioch, impiously asserting of Christ that he was nothing but a true man. But if there had been any contention there about that word, Cabassutius would explain it, Dionysius of Alexandria would explain it, Eusebius would explain it, to whom he himself refers. I suspect that Muratori went not to the leaping springs of the most limpid fountains, but to fleeting rivulets already turbid with sands.

73 But let us return to the fountains, that we may draw a purer knowledge. That the Arian heretics rejected this word *Houmouision*, and wished its use to be eliminated from the Church, is evident from the Council of Sirmium, where Hosius and Potamius blasphemed thus: *But as to that which moved some, or many, concerning substance, which in Greek is called usia, that is, to be understood more expressly, Homouision, or what is called Homouision, that no mention at all ought to be made, nor anyone preach it; for this cause and reason, that they are not contained in the divine scriptures, and that it is above man [?], nor can anyone declare the nativity of the Son, etc.* Let Muratori see that he not stumble upon this reprobated stone, while he asserts that the Church defines nothing else than what is established to be already defined in Scripture or in the holy Fathers.

74 Afterwards, in the Assembly, or Conciliabulum, of Sirmium in the year 357, a similar heretical blasphemy was uttered by some: *Now the word (said they) substance, (which is the same as Homouision) because it was set down rather simply by the Fathers, and is not understood by the peoples, and brings scandal, because it is not contained in the scriptures, it has pleased that it be taken out of the way, and that hereafter no mention be made of the substance of God [?], because the sacred Scriptures never make mention of the substance of the Father and of the Son: but we say the Son is like in all things, as the sacred letters say and teach.* This heresy of Arius, this blasphemy of Hosius and Potamius, a Council in Gaul rejected in the year 359, whose Synodical letter is not extant, yet notice of which Council Hilary exhibits to us, writing On the Synods to the Bishops of Gaul, and Epiphanius, *hæres.* 73, and Phoebadius, Bishop of Aquitaine, in his book against the Arians. Afterwards, in the Synod, or Conciliabulum, of Ariminum in the same year, the Fathers of Ariminum, before, terrified by Constantine, they turned aside from the way of truth, decreed with the Nicene Synod that the same word was firmly to

be held, as is evident from their profession: *Also that the name of substance, and the thing, insinuated into our minds by many holy scriptures, ought to obtain its firmness. Which thing, together with its name, the Catholic Church, with deific doctrine, has ever been accustomed to confess.* But that Synod prevaricated, terrified by Constantius, and said that the same word was to be rejected, as is evident from the letter to Constantius, and from the formula of faith sent to the Eastern Arian Bishops, where the Fathers of the Conciliabulum of Ariminum speak thus: *But the name of substance, which was rather simply inserted by the Fathers, and, not being understood by the people, begat scandal, since no such thing stands in the scriptures, it has pleased that it be removed, and that for the rest no mention at all be made of substance, especially since the divine letters nowhere make mention of the substance of the Father and of the Son.* Thus those Fathers erred, either craftily deceived by the Arians, or coerced by Constantius, himself likewise an Arian. Yet this Assembly of Ariminum was rejected by Liberius, who first on that account was driven into exile by the same Constantius; afterwards by Felix II, who for that cause was cast down from his See and secretly slain by the sword, and who resisted it with all his strength. St. Gaudentius, then Bishop of Ariminum, afterwards rescinding the same; for which he was butchered by the soldiers of the Proconsul, as Baronius relates at the *Martyrolog.* 14. *Octob.*, the Arians acting thus most savagely.

75 These are the Fathers whom Muratori sets against the Nicene Fathers: these are they who reprobated the word *Homousion*: these are they who denied that the Son is consubstantial with the Father: these are they whom he adduces to confirm that the Church does not have a peculiar assistance of the divine Godhead for explaining the proper and necessary words by which the mysteries of faith are to be proposed. I should not believe it, had I not read it. He says that the enunciation *Homousion* displeased some Fathers in one sense, but in another was approved by others. It remains for him to explain what other proper signification that name can have, and to bring forth whether substance, or consubstantiality, is or is not *de fide*, so that the Antiochene Fathers might by some right have exploded it. Yet that they in no wise did this, nay, that they received the word *Homousion*, is openly evident; for in the third Council of Antioch the faith of the Council of Nicaea was admitted, and the *Homousion*, or infallible dogma of consubstantiality, was received, as is plain from its context. Thus it is contained in the same Council: *But lest we be numbered with those who adulterate the dogma of truth, we suggest to your piety that we have both received, and hold, the faith of the holy Council formerly, and from the beginning, celebrated at Nicaea. Where also we say that the name of consubstantiality, which seems to some to stand otherwise, received a cautious interpretation from the Fathers; who signified, namely, that the Son was born of the substance of the Father, and that he is like the Father through substance. For it is not believed as though there were some passion about the ineffable nativity, nor is the name of substance perceived to have been said by the Fathers according to any usage of the pagans; but for the destruction of the Arians, who presumed to predicate something of Christ out of things non-existent. Which also those who now assert inequality have, more*

harshly and more boldly, imprudently dared to perpetrate for the laying waste of the concord of the Church. Wherefore to this our relation we have subjoined a copy of the faith of the Nicene Council, which also we becomingly embrace. For it is of this sort: we believe in one God the Father almighty, etc. And in the Synod of Ephesus related above it is evident that the things which had been done in the Antiochene Synod against Paul of Samosata were confirmed and approved by the Nicene Fathers: By the great and holy Synod of three hundred and eighteen Bishops held at Nicaea, which confirmed and approved the sentence of those who had assembled at Antioch against Paul of Samosata.

76 If therefore the Samosatene denied the equality, or consubstantiality, or *Houmouision*, and the Antiochene Fathers had condemned him on that account, how could it be said that the same Synod reprobated the aforesaid word and its signification? The question was not about the word, but about the dogma, the heretics striving to maintain that the Son is not consubstantial with, but like, the Father: while the Orthodox firmly asserted that he is consubstantial with the Father, from which truth they themselves never at any time receded. But if there was contention about a word, it did not turn upon the signification of the word *Houmouision*, which without doubt even among the heretics themselves signified substance: but the Arians asserted that one must say *Homoiousion*, which expressed only likeness, and hence the contention always pertained to the dogma. Let us conclude, therefore, that Muratori erred insofar as he thought that word did not pertain to the dogma of faith. Since indeed the sacrosanct Synod defined that it was to be received as *de fide*, and even before its definition it was always *de fide* that the Son is consubstantial with, and in all things equal to, the Father. Whence, although that name among pagans or heretics might have had some less proper signification, nevertheless, after the Church explained and accepted its sense, no one doubts that it is to be held *de fide*. If we did not hold thus infallibly, how easy it would be to overturn all the force of a definition by objecting that there it was a question not of the right, but of the signification of a name, which without danger of heresy can have another sense according to the mind of the writer; and thus all condemnations of heresies would be eluded.

77 As regards the other example, of Zosimus concerning the errors of Pelagius and Coelestius, and the dispute with the African Council, it seems to me that Muratori has strayed from the true state of the question. Zosimus never definitively approved the books of those heretics, or the errors contained in them. The whole question lay in this, whether either Coelestius or Pelagius were to be condemned as heretics. Zosimus refused, and with reason; for Pelagius offered his booklet to the Pontiff with a true profession of faith, protesting that if *anything perchance had been set down less cautiously, and less skilfully*, he submitted it to the judgment of the Church, desiring to be corrected: and the booklet of Coelestius contained the same, in which nevertheless he seemed to have erred expressly concerning original sin. Yet a very great calumny is brought against Zosimus, when it is asserted that he approved their error before the

admonition of the African Fathers. The Pontiff knew the error; but because Coelestius affirmed that he was ready to submit himself to the judgment of the holy See, he wished to deal more benignly with him, and to lead him to repentance, before he should condemn him as a heretic. But the words of Zosimus, *epist 4, Is there any place in which the grace, or help, of God is passed over?* regard the booklet of Pelagius himself, in which it was thus set forth[?]: *We so profess free will as to say that we always need the help of God, and that they err as much who with the Manichaeans say that man cannot avoid sin, as they who with Jovinian assert that man cannot sin; for each takes away the liberty of the will. But we say that man is always able both to sin and not to sin, so that we may always confess ourselves to be of free will.* In which he so put on the sheep's skin, that he seemed to assert nothing not consonant with the faith. But what he asserted concerning the grace of God, and the sinister sense in which he took it, was not judicially established for Zosimus; therefore he had not resolved to define concerning that sense before the whole cause should be examined by the judgment of the Apostolic See. Hence it is that, while the examination of the question was pending, it was not fitting that the final infallible judgment be pronounced. But when the perverse sense of the heretic was established, and the obstinacy with which he had refused to condemn the error, both the error, and its perverse sense, and the heretics themselves, were condemned by infallible judgment. Let Augustine and Prosper be seen in Baronius, who at the year of Christ 418 most clearly sets forth all things concerning the matter.

78 Now it pleases me to note, by a briefer method, some things to be left to the judgment of the Theologians. *Pag. 160* has thus: *But in our times although the condemnation of the five propositions in the sense intended by Jansenius has stirred up so many seditions of minds, and although at last we have upon this matter the oracles of Clement XI, Supreme Pontiff, nevertheless it has not yet been openly sanctioned that the otherwise venerable sentence of the Roman See, or of the whole Church, pertains to the faith (that is, as to the sense of Jansenius).* I set before the Theologians the Decree of Alexander VII of the 31st of May 1653, and the doctrine of that excellent controversialist Ardeskin, *dict. cap. 9. q. 5.*, and of Fr. Viva on the aforesaid theses of Jansenius, that they may see under how great a fraud the cited words labor.

79 On the same *pag....* he writes thus: *But then is a tradition said to be ascertained, when from the documents of the Fathers, Theologians, and Councils the Bishops evidently understand whether some doctrine was handed down, or rather condemned, by our forefathers.* And on *pag. 163*: *And moreover, if the true interpretation and definition of dogmas and of the scriptures is to be drawn from the documents of the holy Fathers and of preceding Councils — and it is agreed that it must be so drawn — it is necessary that the Ecclesiastical judges understand monuments of this kind, and their senses, etc.* From these words, and from the rest of the context, he seems to have held the following. 1. That the infallible definition of the Pontiff depends upon the Fathers and Councils. 2. That the Supreme Pontiffs cannot define anything except what has previously been

defined by Councils. 3. That the Pontiffs can err in assailing new dogmas, which are frequently spread abroad by the Innovators. 4. That only the things handed down by our forefathers are evidently true, or the things condemned by them evidently false. Whether I am deceived, or he himself is deceived, I most willingly submit to the judgment of the Doctors to discern. But it may be asked: who furnished to the ancient Councils their most firm strength of faith? Who taught the holy Doctors, and the Fathers of the Councils, that infallible truth? Who has made us certain that they had undoubted mastery of the scriptures, very often most obscure, and of their hidden senses? I should infer, therefore, that every infallible rule of interpreting the true senses of the Fathers and Councils resides in the successor of Peter and Vicar of Christ. And if this privilege is freely conceded as regards all of them taken collectively, why shall it not be granted as regards any one of them? If that supreme authority is not denied to the Supreme Pontiff in laying open the true sense of sacred Scripture, why shall it be denied in receiving the catholic doctrine of some orthodox Father, and in drawing forth its true sense, since these sentences of the Fathers are almost always so framed that they are expressed in a dissimilar structure of words?

80 On pag. 164. he thus sets forth: *Wherefore, although in certain ecumenical Councils, and very often by Dogmatic and Polemical Theologians, passages of the holy Fathers are adduced in confirmation of sacred dogmas and ecclesiastical sanctions, yet the sense of these taken singly does not pertain to the faith, nor is it to be believed with divine assent that those individual words and phrases contain that sense which the Bishops and Theologians understand.* Here, as I believe, the Theologians will judge that he wretchedly confounds the doctrinal interpretation of the Theologians — nay, even of the Councils, when they use those authorities not for definition but for instruction — with the authentic interpretation of the Church.

81 In the same place he writes thus: *In which matter it is plain that nothing new is then revealed by God, and that no new fact is divinely established, but only that divine aid is present, so that what had already been revealed before may then be detected by the judges without error, etc.* In what is this *divine aid* distinguished from revelation, or from the infallible assistance of the Holy Spirit? And, when that fact *divinely established* is detected without error, does not the Church's very definition fall upon that fact? How can the oftentimes most hidden sense of Scripture be declared with certainty, unless that true sense be either revealed or inspired to the Church, or to the Pontiff? How can that fact *divinely established* be known, unless the Church teach it! But how is the Church able to teach this infallibly, unless she be illumined by a higher light? How, finally, can dogmas be certain, unless the facts pertaining to the faith, and connected with the same dogma, be certain also? I hope in this matter to be instructed not by Muratori, nor by the heterodox, but by orthodox Theologians.

82 On the following page he thus lays down: *It is certain that each one of the faithful, as soon as he has evidently known that some dogma is handed down by all, or by most, of the Fathers, ought at once to consent, and to embrace it, even if no definition of the Church has preceded.* How then does he require that the sentence of the Church concerning the condemned propositions of Jansenius, as to his sense, be *openly sanctioned to pertain to the faith*, if all Theologians truly such refer this to a question of faith, and this is evidently established among the learned? But whether the faithful are bound to believe *de fide* what has not yet been defined by the Church as *de fide*, solely because that sentence is found in the holy Fathers, the Theologians will say. It seems strange to me that one should not be bound to believe *de fide* what the Supreme Pontiff has defined concerning senses and facts concerning the faith; but should be bound to believe *de fide* what is evidently established to be found written in the holy Fathers only doctrinally: if this is not to set the indefectible authority of the Pontiff after the sentences of the Fathers, and to value these more highly, then indeed I am deceived. But that this is the system of the Innovators, I remember to have read many times in the Authors.

83 On the same page he has thus: *Julian defended the Pelagian pest, certain passages of the Fathers being most wrongly understood.* Behold to what danger the faithful would expose themselves, if it were granted to each one to search through their sentences, and to embrace *de fide* what he has persuaded himself of. They would err most frequently, as all the heretics have erred, for the greater part most versed in the sentences of the Fathers; and, their own opinion once conceived, they would most hardly depart from error, as experience has shown in the Innovators. He continues: *But Augustine, that they stood on his side.... and Irenaeus, Cyprian, etc.* Augustine, even though a Doctor of the Church, had need to establish his own opinion by the sentences of other holy Fathers; yet what authority of infallible revealed truth would it have for him, if the authority of the Church did not lend its confirmation? To that which he adds concerning the calumny cast upon the Nicene Synod by Socinus and his fellows, I should reply by inquiring: Let us grant that the Nicene Synod is fortified by no sentences of the more ancient Fathers — would its unshaken truth in matters of faith thereby fail? Would not the authority of more than three hundred Fathers suffice? And, what is more, would not the infallible definition of the Supreme Pontiff Silvester suffice? For what cause, then, do they so frequently thrust upon us the sentences of the Fathers, which become infallible only then, when they are strengthened by the consent of the Church?

84 In *cap. 20. pag. 168. & seq.* he strives to persuade that the Church is not supported by an infallible judgment when she declares the true and catholic sense of some particular Doctor. But I object, first (that the Theologians may pass sentence): the twelve canons which they call Ephesine were in truth those of Cyril alone against Nestorius, which the Ephesine Synod itself defined and approved as Catholic, as is established from the Council of Chalcedon, *act. 4.* Can we say that it is not to be believed *de fide* that Cyril spoke in a catholic sense? What strength would the Synod have, if it could not judge of

the true and catholic sense of Cyril without danger of error? I object, secondly: the Pontifical definition in approving the books of St. Augustine, especially against the Pelagians and Semipelagians, was infallible, as even the heretics confess. This approbation and definition regarded the true and orthodox sense of Augustine. Augustine could err, for he was a man, as in fact he had erred when he had fallen into the heresy of the Manichaeans. Whence, then, did so great an authority accrue to him, except from the Councils and Pontiffs approving and defining his orthodox sense? If the Church could decree this infallibly concerning Cyril, concerning Augustine, and concerning others, why shall she not be able to define it infallibly concerning the sense, whether true or false, of any private Doctor whatsoever?

85 It escaped me to note the words which are found *pag. 155. & seq.* He speaks thus: *Finally, it will never be lawful to reckon among the dogmas of faith that this or that man is, or was, a heretic — say, Arius, Luther, Calvin.* Did Muratori find no others, but these most manifest heresiarchs? If this proposition is not at least offensive to pious ears, no theses of this kind will ever be assigned. This he afterwards endeavors to clothe with these most ornate colors: that although one is not bound to believe it *de fide*, because it is not established for him by divine revelation, nevertheless *to the sentences of the Supreme Pontiffs so judging there is owed the greatest reverence, and a humble assent, but not divine faith.* He supposes that, in order for one to be bound to believe with divine assent, it is necessary that it be established *for him by divine revelation*, as if it did not suffice that it has been so defined by the Church. God grant that he himself not follow those who, for believing anything, prerequisite the private testimony of the Holy Spirit. Yet I inquire: If someone should say that Luther was not a heretic, would he be guilty only of irreverence, and of a proud assent? So, it seems, it must be deduced; for he who is bound to nothing else ought to suffer only a punishment commensurate to the fault of which he can be accused. But the Councils prove otherwise, if we believe Socrates. (25) {marg. (25) *Histor. Eccles. lib. 1. cap. 10.*} For in the Nicene Synod Eusebius of Nicomedia and Theognis of Nicaea were held for heretics, because they refused to subscribe to the condemnation of Arius, on the ground *that they by no means believed that he who was accused was a man of the sort to teach those errors.* They willingly assented to the condemnation of the errors themselves; but nevertheless they were numbered among the heretics. That heresy is nothing other than an error in faith, even the unlearned know. Therefore it pertained to the faith that Arius was a heretic, because it was so defined by the Council. The Council of Constance also furnishes an example, where it was demanded of him who wished to profess the Catholic faith, that he believe Wyclif, John Hus, and Jerome of Prague to have been heretics, as Fr. Viva witnesses, *ubi supra.* Another example Ardeskin brings forward, *ubi sup.*, drawn from the Council of Chalcedon, *act. 8.* Theodoret had abjured the Nestorian heresy, but refused to say anathema to Nestorius, whom the Fathers of the Council had declared a heretic. But what did the Fathers do? With unanimous voice they cried out: *He is a heretic, he is a*

Nestorian; cast the heretic out. He who shall have held the contrary concerning Luther, condemned by the Church — why can he not be called a heretic? This I leave to a better judgment to consider.

86 Of the same flour is what he says pag. 169.: *So in the affair of Jansenius, provided the Roman Chair, or the Church assembled, explain — if there is need; yet in my opinion there is no need —* (behold the mask under which he thinks to be covered) *and determine what sense and what doctrine she herself has condemned, and wills to be condemned, in the five propositions attributed to Jansenius: the dogma of faith will then be in safety, and the ways will be barred to error; nor will there any longer be any necessity of believing with supernatural assent that that same condemned doctrine was in the words and intention of Jansenius, since to know or believe this, or not to know or to deny it, regards a mere fact, upon which the doctrine of faith in no wise depends.* I note, first, those words: *attributed to Jansenius*; as if he thus doubted whether they were really Jansenius's, as the Jansenists deny. I note, secondly, other words: *the dogma of faith will then be in safety*; as if it were not in safety through the most express condemnation of the holy See. I note, thirdly, other words: *what sense and what doctrine she herself has condemned*; as though this were not had expressly in the Pontifical Diplomas, or it were not enough to declare the errors from which the faithful are bound to flee. Finally, I note once more those words: *regards only a mere fact*; as if it were free and lawful either to believe or to deny that that doctrine is contained in the sense and words of Jansenius, whereas nevertheless the contrary has been decreed by Alexander VII.

87 In order to show the fallibility of the Church in condemning the senses of the books of private men, he heaps up other things pag. 171., and of those who hold the contrary he boldly writes thus: *So indeed they may argue, with a consequence splendid in appearance, but yet fallacious and rash.* Whether this be said modestly and truthfully, let others reconsider, while I, to repay in the same coin, recall the words of Pope Vigilius against men of that character: *Since... it is their custom,* (says he in his Constitutum) *to hide their poisons under painted speeches, and to set forth words which may seem, as it were, to be consonant with orthodox professions, and by indulgence to reserve malignant entrances, through which the pestilence of their error may be let in, as the Prophet witnesses of them:* They have made their speeches smoother than oil, and the same are darts; *and again:* For among many they were with me: *Of whom also the Doctor of the Gentiles, the Apostle, says:* Having the form of godliness, but denying the power thereof.

88 Afterwards he continues: *It can happen that, from other monuments discovered after the first judgment, and from a more diligent collation of expressions and words, he who before was thought to hold perversely may afterwards be found to have been of right opinion, and his words, more fitly and accurately explained, may be freed from impiety.* Rightly said, if it were a question only of fact that was treated. But he himself expressly treats of facts connected with the very question of faith, as the following words

demonstrate: *When a judgment is not of such a nature that truth necessarily walks conjoined with it — which, in ecclesiastical judgments concerning doctrine, or dogma, duly carried out, we hold as ascertained always to happen. On the other side it can also come to pass that, the matter being better explored and discussed, an Author or a book which before had been either approved or absolved by the Church may afterwards be known to have held ill, and to contain heretical dogmas, and at last most justly be condemned.* If these things were true, there would be no certain judgment of the Church in this matter, and we should profess it liable to changes; and how dangerous this is, how subject to the gibes of the prattling Innovators, only a blind man would fail to see. Wherefore I rather assent to the opinion of Ardekin, *dict. q. 3.*, who, more conformable to orthodox truth, speaks thus: *From what has been said thus far it clearly follows that it can never happen, or be hoped, that any same proposition, whether in matter of right or of fact, once condemned by the Church, or by the Pontiff, should afterwards be defined as true, or contrariwise; as Fr. Bruno Neasser, a man eminently learned, excellently deduces in his Prodromus velitaris p. 1. cap. 3.*

89 Nor does that favor Muratori which he adduces in the same place in proof of his opinion: *By this rule (he says) the epistle of Ibas, and the chapters of Theodoret, which in the Council of Chalcedon had escaped the censure of the Fathers, their authors being restored to catholic communion, the fifth ecumenical Synod afterwards execrated, and, having found them to teem with impious sentences and errors, struck them with a most just anathema.* Of Theodoret we have already spoken. Of Ibas we shall now speak. Muratori was deceived, because he did not go to the sources, but excerpted what he wrote from some writer, I know not whom. For in the first place, as regards the fifth Synod, otherwise the second of Constantinople, it is not altogether beyond doubt that it was ecumenical; for most weighty writers do not hold this: both because the Western Fathers were neither present, nor had been summoned; and because Vigilius the Roman Pontiff, though he was then dwelling at Constantinople, took part in it neither in person nor through his legates, nor was it received and approved by him. For the approbation of the same Vigilius which is read is held by some to be not of entire credit; for it is established that he resisted with an unconquered strength of soul, and on that account was sent into exile by the Emperor Justinian. Others, however, say that Vigilius, consigned to prison, worn out by hunger and squalor, at long last, the constancy of his spirit failing, in order that he might be freed from his chains, consented to the condemnation of the three chapters made in the fifth Synod, on the ground that nothing had been done in it which would detract from the Synod of Chalcedon. But Fr. Joannes Granerius, in his notes on the Breviarium of Liberatus, asserts that this confirmation, and the epistle in which it is contained, is supposititious. Nay, Vigilius himself, in his epistle to the Bishop Valentinian, complains of this imposture. And the more so, because of this epistle no original letters are found, but manuscript copies.

90 Whatever may be the case with this, this much is certain: that that Synod was begun not by Pontifical authority, but under the worst auspices, and afterwards gave occasion to many dissensions, since, at the persuasion of Theodore of Caesarea, that he might favor Origen, the Acephali, and the Eutychians, the penalty of exile had been proclaimed by the Emperor Justinian, raging against all who refused to condemn the three chapters; and that it received the strength of firmness after it was approved either by Vigilius himself, or by Pelagius II, he too driven by fear of persecutions, or by Gregory I, inasmuch as nothing was contained in it against the faith, or against the ecumenical Councils, as he himself witnesses *lib. 3. epist. 37.* to Constantius, Bishop of Milan; or by Nicholas I, in his epistle to the Emperor Michael; or finally by the sixth and seventh Synods, as the cited Cabassutius reports, *pag. 440.*, who adds that *under the very pressure of Justinian's tyranny the Roman Pontiffs could do nothing more advisedly than to yield to his will, because thus there had to be met a most certain and inevitable schism of the whole East against the Roman Church.*

91 These things being thus noted in passing, Muratori was deceived, as I was saying; since in the Synod of Chalcedon nothing concerning the faith, so far as regards the cause of Ibas, was treated, but only a mere fact, which regarded the accusation of Ibas himself, and the nullity of the sentence passed against him in the preceding Pseudo-Synod, as Gregory I is witness in the cited epistle, in these words: *But after the Synods, or canons, have been expressed, I consent to what was done, and the final action was ventilated concerning persons.* [?] This is expressly clear from the acts themselves of the Synod, in the tenth action, in which nothing else was treated than what concerned the accusation of Ibas, and his defense; and sentence was passed by the Fathers in his favor, the proofs of both parties having been discussed on either side: because nothing was conclusively proved against him of those things which were contained in the libellus of the accusers, while he himself proved his innocence, both from the sentence passed for him in the Synod of Berytus by Photius and Eustathius, judges appointed for that business; and from the attestation of the whole Clergy of the city of Edessa; and finally because he himself, out of superabundance, in order to remove all suspicion conceived against him, willingly once and again anathematized Nestorius and Eutyches, and showed himself in communion with Cyril, after he had touched the true sense of his own chapters. Whence neither did the accusers prove what they had objected, nor did they make it certain that the epistle which they attributed to Ibas had been written by him; and therefore the Fathers of the Council with unanimous consent declared him innocent, and that he was to be restored to his See, from which he had been unjustly cast down: and accordingly the whole question was one of fact, independently of the question of faith, which had not even incidentally been raised there. All of which is expressly established from *act. 10.* itself, and from the two Constituta of Vigilius.

92 Likewise in the fifth Synod nothing contrary to the Council of Chalcedon is found; nor was a condemnation decreed against persons, as Muratori seems to suppose, but only against writings, because it seemed to the Fathers of that Synod that something was found in them to be condemned, as being contrary to the Synod of Chalcedon itself, and to that of Ephesus. And so far were they from determining anything different, either in the question of faith or in the question of fact, that in the sixth Collation they were wholly engaged in showing that the contents of the aforesaid epistle were adverse to the definitions of the Synod of Chalcedon, these being compared with the propositions of the aforesaid epistle. And afterwards in the same collation they determined nothing anew against the innocence of Ibas, nor did they judge anything concerning the fact, whether that epistle had been written by the same Ibas, nor did they say anathema to him, but only against the epistle. Let it be permitted to relate the words of the Synod: *All said these things: The epistle is heretical: the epistle which is said to be Ibas's we all condemn: this we all anathematize: the epistle is alien from the Synod: the epistle is contrary to the definition: the whole epistle is heretical: the whole epistle is blasphemous.... The definition of the Council of Chalcedon cast out the epistle which is said to be Ibas's. One Nestorius, one Theodore: Anathema to Theodore, and to Nestorius, and to the epistle which is said to be Ibas's.... He who receives the epistle rejects the holy Chalcedonian Fathers, etc.* And afterwards, collat. VIII: *Besides these things we anathematize also the impious epistle which Ibas is said to have written to Maris the Persian.... And the impious epistle which is said to be Ibas's, and the defenders of them.... And again, if anyone defends the epistle which Ibas is said to have written to Maris the Persian heretic, etc.* From which it is shown, more clearly than the noonday light, that the Fathers of the fifth Synod, though they anathematized Theodore and Nestorius, in no wise said anathema to Ibas, judged innocent by the Synod of Chalcedon; nor did they contravene the sentence concerning the fact, nor define that the epistle had been written by Ibas. As likewise it most plainly appears that the censure of that epistle did not escape the censure of the Chalcedonian Fathers [?], which the Fathers of the fifth Synod show to have been made, although the Synod of Chalcedon did not expressly treat of that question, because that disputation was useless to the controversy of fact, which was treated in the said action 10. Accordingly, neither does the proof adduced by Muratori conclude anything, nor does it stand upon certain truth.

93 All the things which he elegantly heaps together *pag. 173.* to establish an obsequious assent to the judgments of the Church and of the Roman Pontiff more securely persuade an assent of faith; for he will not be able to deny that, if we believe the infallible judgment of the Roman See even concerning the senses of words, and the minds of writers, every approach is utterly barred to fallacious arguments and to trifling wits. This, therefore, is the more stable course: that we abjure the heretics, and unshakenly condemn

their senses, and no longer stir up controversy. Therefore he does not justly censure the more recent Theologians, nor has he deservedly taken it upon himself to hiss them off, and to go over to the contrary opinion.

94 He proposes a reason for doubting in this manner: *But, say they, we condemn the doctrine condemned by the Apostolic See, and by the Church; for therein the Church, the spouse of Christ, is not liable to error. But that this doctrine is contained in the words and phrases of that book, and that it really sat in the mind of that man, the Church neither knows divinely, nor can she by right compel us to believe.* What does he answer to this reason? *We shall employ silence out of reverence. It is not necessary to perform more.* I do not affirm that Jansenism follows, but I fear that I scent it. For what else do the defenders of Jansenius contend for, in showing their reverence toward the Church, than silence? But the Church alito exact something more from us, I am certain, since the Pontifical Constitutions do not accept this silence offered by the Jansenists, and demand assent. How can it come about that we should give assent altogether, if *the Church cannot make us certain of that thing which she herself does not know with certainty, and in judging which she can err?* We acknowledge that she could have erred; we are not certain of the thing which the Church proposes to be held, nor is the Church herself certain when she proposes it—who doubts that our assent is thereby very greatly imperiled? Scripture teaches us to take the intellect captive in obedience to faith, nor is this obedience difficult for the truly Orthodox; for the gates are closed to all reasonings and arguments; but to take captive the intellect and assent in a doubtful matter, in an uncertain matter, in a matter in which there can be error, seems to transcend the powers of fallen nature and of human judgment, ever prone to doubting. He who firmly believes that the Church has not erred, nor could have erred, *does not elude the Church's commands, nor commit this crime;* he commits it, he eludes them, who by *such subtleties*, consisting in an apparatus of words, strives to remove from us the certitude of the Church in these matters.

95 That these subtleties are proper to the Jansenists, and that they are founded chiefly upon this, that the Pontiff can err in matters of fact, even though connected with right, is not my judgment, but that of eminent theologians. I bring forward one witness, Fr. Viva, in his Synopsis on the propositions of Jansenius n. 7. *But because the Jansenists strove to elude the Pontifical definitions by various cavils, just as if the Pontiff could err in defining questions of fact, even those connected with questions of right pertaining to the faith; and they were already vomiting forth in various ways the venom of those propositions, especially to the ruin of France, etc.* And afterwards n. 8. *From which it is clearly evident how shadowy and ruinous is the foundation of the Jansenists, upon which they rely for entering upon so many cavils and subterfuges, namely, that this question, as*

being one of fact (whether in the book of Jansenius there are contained propositions false and heretical in the sense intended by Jansenius), is a question of fact in which the Pontiff can err, etc.

96 What else does the doctrine of Muratori contain, even though hedged about with so many splendid locutions, so many acts of homage toward the Church, so many humble assents? It affords ground for suspecting that this book, withdrawn by stealth from the examination of the Qualificators (whom he himself abundantly bites in this same book), escaped their censure and was furtively spread abroad; nor is the suspicion vain: *For every one that doeth evil hateth the light, (26) and cometh not to the light, that his works may not be reproved; but he that doeth truth cometh to the light, that his works may be made manifest; because they are done in God.* {marg. (26) Joan. cap. 1. 20.}

97 By a wondrous painted whiteness of words and reasons he strives to whiten himself, yet he is betrayed by his own pigments. He says that he uses subtleties who *shows that he has indeed the laws of Faith well examined, but is utterly ignorant of those of discipline.* Who would say, unless he were mad, that he quibbles who descends into the arena instructed in the laws of the faith? Are we bound to give assent to discipline rather than to faith? Do we oppose the rules of discipline when we embrace the rules of faith? Does discipline command this, that we believe those things which the Church proposes to be held? This is the seal of the Rigorists, that they apply themselves wholly to discipline, but withhold, so far as they can, the assent of faith. How shall it come about that we *submit our mind piously and faithfully* to the precepts of discipline, if silence is to be employed with a doubtful assent and reverence alone? He himself says: *The catholic doctrine is to be held by us in the heart before all things... therefore those writings and opinions are to be condemned in which, by the judgment of the Church, unsound doctrine is contained.* To believe with the heart is to hold of faith, as the Apostle says: (27) *Brethren, with the heart we believe unto justice, but with the mouth confession is made unto salvation.* {marg. (27) Ad Rom. 10.} All catholic doctrine is to be held of faith. If therefore that is catholic doctrine which concerns *the writings and opinions in which, by the judgment of the Church, unsound doctrine is contained*, by what reasoning could it be defended that that doctrine is not of faith? This assent of the heart Clement XI demands in his Decree, in these words: *That the sense of the Jansenian book condemned in the five propositions ought to be rejected and condemned as heretical, not with the mouth only but also with the heart, by all Christ's faithful;* and he excludes every other belief in the following sentence: *Nor can the formula of the Jansenian condemnation be licitly subscribed with any other mind, spirit, or belief.* But who of sound mind can doubt that here too is reprobated that belief which relies only upon a humble assent and a reverent silence, faith being excluded, by which *with the heart we believe unto justice?*

98 Other things he pours forth with fair eloquence, apparently blazing out against Jansenius and his followers; yet if he assails the assent of faith, what else does he do than clothe Sinon in charming wiles, and by most subtle artifice go against the Apostolic definitions, so that those who have not lynx eyes may be the more easily deceived. Innocent X, Supreme Pontiff, declares and defines that the five propositions of Jansenius are heretical, and already condemned before in Pelagius, the Semipelagians, Luther, and Calvin, even in the sense intended by Jansenius, as Alexander VII explains. The latter, that he might provide for *the integrity and propagation of the catholic Religion*, and might crush and extinguish *the tortuous serpent going about in various coils and windings of cavils*, published a form of oath to be taken by all, concerning the rejecting with sincere mind and condemning of the said five propositions even in the sense intended by Jansenius, and as they are found condemned by Innocent. Innocent condemned them as heretical even in the aforesaid sense: therefore we neither satisfy the oath, nor fully acquiesce in the Pontifical definition, unless at the same time we hold that he, speaking from the Chair, and with the infallible assistance of the Holy Spirit, defined the matter as a thing to be believed of faith.

99 Clement XI, moreover, Supreme Pontiff, because it was established to him that *certain sons of iniquity assert* that the aforesaid propositions were not condemned in the sense of Jansenius, testifies by Apostolic authority that the same cause was discussed *with such diligence indeed that greater could not be desired: and intending to remove for the future every doubt concerning the aforesaid, that all Christ's faithful may contain themselves in the unity of the same faith, out of the debt of the Pastoral office, and with mature deliberation*, he confirms, approves, and renews *the above-inserted Constitution, Declaration, and Definition of his predecessor Innocent*; and he declares and defines that the aforesaid propositions are condemned, and were condemned, in the sense intended by Jansenius. And afterwards, since *there have not been lacking, nor are there yet lacking, men not acquiescing in the truth, and never making an end of contradicting the Church, who by various distinctions, or rather by evasions devised for the circumvention of error, endeavor to disturb the Church herself, and, so far as in them lies, to involve and entangle her in endless questions. And because, moreover, these same restless men, with writings and pamphlets scattered on every side, composed with exquisite art for deceiving, have not feared to teach, not without grave injury to the Apostolic See and the greatest scandal of the whole Church: That for the obedience due to the aforesaid Apostolic Constitutions it is not required that anyone should interiorly condemn as heretical the sense of the aforesaid Jansenian book, condemned, as is premised, in the aforesaid five propositions; but that it is enough if an obsequious (as they call it) silence be kept concerning that matter. Which assertion, how absurd it is, and how pernicious to the souls of the faithful, sufficiently appears, since by the cloak of this fallacious doctrine error is not laid aside, but hidden; the wound is covered, not cured; the Church is mocked, not obeyed, etc.* If the opinion of Muratori, although cloaked with a humble and internal, yet merely human, assent, is not opposed by these things, it becomes necessary

that all the more recent eminent theologians be deceived, and the consequence will be that he and all the heterodox prevail over the orthodox. I, however, desire rather to assent to these. But if the aforesaid constitutions do not contain, both as to the doctrine and as to the sense, a most certain and infallible definition of faith, to what others shall we give the assent of faith? To these things Muratori says, as I have already noted, that those things are to be held of faith which are established from the Scriptures and the holy Fathers, and which are found already defined in ecumenical Synods. What remains, except that we take away from the Supreme Pontiffs all power of defining anything new? What more absurd! Let him abound in his own sense and in his own phrases: we, more plainly but more securely, shall give not only human but supernatural assent to the Pontifical definitions; thus we shall most prudently avoid all ambiguities, all wiles, all cavils. And I believe that this our most faithful assent will never be disapproved by the Apostolic See. If the doctrine of Muratori be saved by the same plank, may that befall with good omens and without danger to souls. I, however, would rather withdraw my hand from his opinion, fearing *fires laid beneath deceitful ash*.

100 The examples which he adduces *pag. 175.* are turned back into his own bosom. I used the same ones to prove the opinion contrary to Muratori. Thus he says: *But what the Apostolic See now demands in the cause of Jansenius did not begin to be demanded the day before yesterday, but from the very cradle of the Church. But when the Church condemned anyone of heresy, then she straightway held for a heretic him who refused to anathematize those whom the Church declares heretics.* Therefore one was bound of faith to believe that he was a heretic whom the Church had defined to be such: otherwise the one so refusing would be called contumacious, disobedient, rash, not a heretic. The example of Theodoret proves this; other things which I related above confirm it. What he adds concerning the Fifth Synod, and concerning Pope Vigilius, I have already expounded above; there is no need to rub it up again. At length he returns to the same stone, namely, to teach that the Church can be deceived, or does not have infallible judgment in facts not revealed by God. I should wish to know from what divine Power he received it, that these facts concerning the faith *were by no means revealed* by God to the Pontiffs defining from the Chair, every necessary examination having been applied? He confesses that the stability of catholic doctrine and the government of morals in some manner depend upon this judgment concerning facts. But who does not know that the Pontifical definition is infallible in those things which regard faith or morals?

101 He concludes that the facts by no means revealed by God are these, namely: *Who are the legitimate successors of Peter.... which are the ecumenical or approved Councils, which the undoubted decrees of the Roman Pontiffs, which the genuine writings of the Fathers, and what some one of the Fathers really thinks, and who is enrolled in the register of the blessed.* Who would not marvel with how great fallacy he mingles questions with questions, and confounds some with others! Of the legitimate successors of Peter, of the infallibility of ecumenical Synods, of the canonization of Saints it has

already been spoken above. Whether the Pontiff has issued this or that decree, or whether it has been forged by some impostor; whether in this or that Council something is found vitiated by heretics; whether the writings of this or that Father have been corrupted or interpolated—no one, so far as I know, has hitherto asserted that this is to be believed of faith: why then does he weigh these questions in the same scale? So that the certain may not be separated from the uncertain. He thinks he separates them, when he closes thus: *In a word, to facts of this kind, not indeed revealed by God, but yet connected with dogma, if they display evidence, he would be mad, and would sometimes be reputed a heretic, who should refuse to believe and obey: but if they appear ambiguous and doubtful, it is still better [to defer] to the Church pronouncing sentence, etc.* He expresses one thing and supposes another, neither of which is to be borne. First, that more deference is to be given to moral evidence than to the Pontifical definition, and that the assent of faith depends on greater or lesser evidence. Second, that after the definition of the Church the matter can still appear doubtful, and the faculty of doubting remain. Behold the Doctor who reprehends the immoderate wits of the Orthodox, and assumes to himself the magisterium of teaching them.

102 Let us hasten to other things. *Lib. 2. cap. 2.* he establishes various rules concerning the defense of truth, which if he himself had observed to the letter, perhaps he would not have published his little book concerning the Religion of Portugal in administering the sacrament of Penance, in which he not only does not speak the truth, but heaps up many falsehoods, and recedes from certain opinion. But of this afterwards. That, I judge, is either to be rubbed or to be seasoned with some salt, which he writes there: *There are other errors (he says) outside the doctrine of faith, but yet not outside the precincts of religion. Of this kind are... in the veneration both of the Saints and of sacred images, and also of relics, and in the external worship of God itself, and in the mysteries.* There is need of explanation. If he speaks of acts of veneration, or of the worship of God, these without doubt are recognized to pertain to religion. But the veneration of the Saints, of images, of relics, according to the opinion of St. Thomas and the common one, pertains to a distinct virtue, namely to *Dulia*; although otherwise this worship, insofar as God is worshiped in His Saints, is also referred to religion. But if he treats of the obligation of exhibiting veneration or worship to God, to the Saints, to sacred images, and to the relics of the Saints, it is likewise undoubted that all these pertain to the dogmas of faith. That God is to be adored and worshiped not only with internal but also with external worship, the natural light so demonstrates that even heretics and pagans do not deny it. This truth is infallible, and so often declared in the Scriptures that there is no need of other proof. But that the images and relics of the Saints are to be venerated is also defined of faith in *Concil. Nicæn. II. act. 3. Gangrensi can. ult. Carthagin. 5. can. 5. Bracharens. 3. can. 5. Moguntin. can. 51. Lateranens. sub Innocenti III. cap. 62. Trident. sess. 25. cap. 2.* and is a certain opinion among theologians. The contrary was held by the heretics the Iconoclasts, Luther, Calvin, the Magdeburgians, and others. Therefore those who despise

the Saints or their images, or dishonor them with blasphemies, although this crime is against religion, are nevertheless held as suspect concerning the faith, because they are presumed to think against a dogma of faith.

103 Afterwards, in the following §., he speaks thus: *When therefore anyone incautiously raves in the doctrine of faith, and does not spread his inventions among the common people, singing only to himself, it is fitting to apply to him the salutary hellebore of Christian correction, where it is not otherwise provided by ecclesiastical laws, that is, he is to be admonished and taught secretly and in a friendly manner, etc.* He follows a doctrine not improbable, especially if someone, not with evil mind but through ignorance, should utter some heresy in the presence of another, in which case he is at once to be admonished to lay aside the error. But the contrary opinion is more common, and more received in practice. Nay, no other is by any means to be followed after the Decree of Alexander VII, in the year 1660, in the month of August, in which he strictly commands that both the heretic and the one suspected of heresy, however lightly, be altogether denounced to the Ordinaries of the places, or to the Inquisitors, no fraternal correction being premised; so that one is bound to this even though he think him already amended, as Delbene holds with Suarez, Rojas, Simancas, and others, (28) who, having previously followed the contrary opinion, afterwards retracts it on account of the aforesaid Decree; which indeed seems to be consonant with *Lateranens. Concil. sess. 9. §. Ad abolenda*, and the Constitution of Pius I, *de qua in cap. Siquis per capillum 22. q. 1.* and the Constitution of Julius III which begins *In multis*. {marg. (28) P. 1. dub. 18. n. 7.} And finally that opinion is to be held with caution, lest we fall into the fifth proposition condemned by Alexander VII. Let it suffice to have touched upon these things in passing, so that the things which are the more securely to be embraced may be proved upon the Lydian stone.

104 *Cap. 6. pag. 252.* he arrogates to himself this province, of establishing certain rules for directing the ecclesiastical Censors, and, assuming to himself, as Master of Masters, the supercilious brow of erudition, *he esteems the weight of the magisterium so much the lighter, the more he is ignorant of the force of its greatness;* (29) but this would be most kindly pardoned him, if he did not seem to slip into certain less safe doctrines. {marg. (29) Gregor. in Prolog. pastor.} For straightway, *pag. 254.*, he has this not very prudent proposition: *Almost all the volumes of the holy Fathers and of the ancients have some accusations of false piety. Nay, there are read among them most sharp discourses, such as we should by no means wish even to imitate, against the corrupt morals of Clerics and Monks, against superstitious and little pious customs, against license of opinions, against the vices of Prelates.* If any one of ours had dared to utter these things, he would be branded with the mark of temerity, and perhaps he himself would have assailed him with the strongest rebuke. In the holy Fathers most frequently, and in almost all of them, accusations of false piety! In the Doctors of the Church discourses by no means to be imitated by us! Severe reprehensions against corrupt morals, against superstitious

customs, against noxious opinions, against harmful vices, can be accused of false piety! And will *the most learned and most prudent among catholics* not judge that these things approach temerity? These things he preludes, that he might dare to call a *pious obstinacy* that devotion of soul with which we defend, and swear to protect, the immaculate Conception of the Mother of God. He has raved indeed. But of this last point we must treat.

105 Then, *pag. 256.*, he admonishes the Censors not to depart from prudence, which can happen while they strive to act so cautiously that they are carried away into scruples, cavils, and excessive harshness. And who are these whom he busies himself to instruct? The Spanish and Portuguese Censors, whom he stings not a little. Such men are wont to be chosen out of thousands, so that they do not need Muratori for an admonitor. The censorial rod, always straight, never bending, they hold in hand, duly instructed by the best writers, so that with an ever-even balance they may both reject the noxious and not despise the wholesome. Who, except the very greatest confidence in himself, has constituted Muratori adorned with the censorial office over these censures? He calls it scruples to suspect heresies, to fear errors, and to take precaution lest the Commonwealth or Religion experience some harm. Yet this office of theirs is always to be praised, always praiseworthy, and in no wise to be reprehended. So great is the abundance of books, or booklets, most frequently landed upon our shores and withdrawn by stealth from the balance of the Censors, that no caution can suffice, no examination be superabundant, no scruple can be harmful. They are sometimes furtively spread among the people, as is reported to have happened also with these writings of Muratori. It is found that they come to ours almost entirely from regions infected with the poison of heresy; and they very often have suspect Authors. Hence there is need of the greatest vigilance; for they hide most secret poisons among the flowers of erudition in such a way that incautious readers are found wounded with an incurable wound, unless hellebore be prepared for them by the work of the Censors with prudent anticipation. In expurgating these and similar books, in which perhaps there is no utility (we have an example), and in which perchance harm may be present, the greatest labor must be expended, nor will hundred-eyed explorers seem superfluous for detecting their masks. Excessive scrupulous sedulity in these matters can harm no one: benign condescension, or too little intent vigilance, may easily turn out deadly. After this glut of foreign books furtively rushed into our Lusitania, we have found by experience that piety, religion, love toward the holy See, and reverence for the Pontifical Decrees have languished.

106 He calls it cavillation to take in the worse part opinions or words which can most conveniently be admitted in a sound sense. If they conceal nothing else, and are not at variance with faith or honesty, there will be no one to condemn, no one to calumniate. If however, as sometimes happens, they hide a dissonant opinion under words admitting a double sense, it will not be cavillation, but most prudent caution, either not to admit it, or to explain it. These pompous words, these equivocal phrases, these elegant enunciations,

these words either improper or signifying by metaphor, do not much conduce to setting forth matters of faith, of morals, and of discipline, and it happens that they bring more harm than utility; for not all are so instructed in these arts as to attain the mind of the writer.

107 By harshness he means to oppose obstacles to the publication of books, or to suppress things which can easily be emended. This is nothing else than to wound with a hidden hand the incorrupt integrity of the Censors. Who of ours has ever opposed obstacles that ought not to be opposed? Who has not benignly noted what could easily have been corrected, so that it might be corrected? Who has treated with the utmost rigor writers or books necessary to the holy Church? Truly Muratori does not teach, but calumniates. But in truth, what are these books useful and necessary to the Church? Those of the Innovators, mingling very many noxious things among the flowers of elegance? Or his own *Lamindus*, opposing itself to pious opinions, asserting that the books of heretics are to be admitted on account of erudition, accusing the cavils and harshnesses of the Censors? What necessity of the Church is there, that her infallibility should be in some way cut down, that the immaculate Conception of the most holy Mother of God should not be sworn, and other things like these? Or his little work *Portugalliae fides*, sweetening the authority of the Tribunal of the faith? As to elegance of style, what shall we say? Not crackling periods, not rugged words, not unusual terms please us. The force of eloquence is not to be placed in this kind of speaking. If we desire to learn the purest utterances, we have Ciceros, Quintilians, Jeromes, Leos, Ambroses, Chrysostoms, and others like them, from which fountains we may draw the true laws of speaking.

108 Afterwards, pag. 257., he lays down this rule: *It belongs to the prudent man so to drive away things that can harm, that meanwhile the remedy itself may not bring greater ruin to the Church and to the commonwealth, or may not impede a greater utility.* Who will not praise this excellent rule? But how quickly it degenerates: *Poisons are not given except smeared round with honey: and vices do not deceive except under the appearance and shadow of virtues.* (30) {marg. (30) Ambros. lib. de Virgin.} He confesses that the books of heretics are rightly proscribed, and taken from the hands of the faithful: behold how the things that can harm are driven away. Straightway he subjoins: *And yet if anyone should prohibit any catholic, though a learned and pious man, from reading of this kind, he would drive the Church into a graver inconvenience, and would wound the open laws of prudence.* Does the Church then wound the laws of prudence, when she altogether prohibits similar books? And who are these learned men, and pious men? Will they be those who most applaud themselves for their own wisdom—certain sciolists, I say, who, despising the prohibition of books, study to devote their effort to reading them, and, instructed with their either false or scarcely safe doctrines, boastfully chatter, whom indeed we find imbued with these unsound doctrines? Will it not be safer that the Church should first have the wisdom and piety of these men examined, so as to permit them the

faculty of reading these books, as is wont to be done? But what laws of prudence are these? That I have not found them, I do not blush to confess. Yet into what graver inconvenience will they drive the Church that would prohibit these books? Because learned men ought to know the arts, sophisms, and arguments of the heretics, that they may better defend the orthodox dogmas? And is this the greater utility, that noxious books not be prohibited? Is this a greater harm than the remedy itself? Is this a sufficient reason for him to burst forth into this absolute proposition: *The edicts of Prelates cannot bring it about that perverse books be abolished immediately upon their fabrication?* If they are *perverse*, why are they not to be abolished at once? By what right does he strip the Prelates of this power, of this duty of their office? *The greater the losses that are feared, the more prompt and the more perfect ought the precaution to be*, says Chrysologus. If noxious books are not at once altogether prohibited, many unlearned men, whose number is infinite, and even some learned, or such as conceive that estimation of themselves, deceived by noxious doctrines, will both be corrupted and will corrupt others, and afterward the medicine will be prepared too late: *The darts that are foreseen strike with less force. It is safer to meet the danger before the time than to seek a remedy after the wound has been inflicted.* This the laws of true prudence dictate; all others are deceitful. Nothing good will be able to be found in the reading of these books which ought not to be set aside in comparison with the greatest and irreparable damage, which is most prudently feared. If it be not done thus, how many will there be who, while they think they are strolling through most pleasant meadows, remain wounded by the most bitter bite of a viper hiding among the grass. Nor are those fruits to be valued a straw which one will be able to pluck from orchards pleasant indeed, but infected. Erudition, elegance, knowledge remain to be gathered from other more wholesome gardens. That the errors, sophisms, frauds, and wiles of the heretics may be exploded, there is no need of so grave a loss: the necessary and useful provision is at hand. Therefore the Church adorns with the faculty of reading and refuting those books the more learned men whom she recognizes to be beyond the danger of corruption. Yet no one, however most learned, ought to assume that license to himself, without first being supported by the aforesaid faculty granted by the holy See.

109 It is indeed true — and would that it were not — that these deadly contagions not only wander abroad among the Provinces separated from the bosom of the Church, but also invade orthodox ones, that they may corrupt them. Hence such great vigilance — and none is enough — that they may be altogether banished. Hence so many precautions, so many censures fulminated, that they be not read, that they be not retained, that they be either handed over in the Tribunals of the faith, or that those be denounced whom it shall be established to have retained them. If this kind of books *is a most foul pestilence*, why shall it be permitted to roam about, or to run riot? Why shall they not be prohibited? Why is the reading of it to be allowed even to the learned? Why shall they not be burned, that altogether *their memory may perish, and their name be remembered no more?* That this was customarily done from the time of the Apostles the sacred Page testifies, *Actor. 19.*

Many of them who had followed curious arts brought together their books, and burned them before all. This was observed also among the gentiles, whenever some book contrary to good morals, or to their false religion, was published, as witness Cicero, *lib. 1. de Nat. Deor.*, and Valerius Maximus, *lib. 1. cap. 1.* This is also the custom among the heretics themselves, and always has been. I recall having seen in the most learned Carena that a certain learned Italian, because a heretical book had been found in his Library, was punished, and was compelled to abjure, on account of the vehement suspicion resulting from such keeping. I believe — nor is the belief vain — that the Church and the Supreme Pontiffs surpass Muratori in prudence. Why then does he not approve what the Church approves? The Church commands that such books be read by no one, that they be burned: how then does Muratori say it is consonant with the laws of prudence that they be permitted at least to learned men to read? That they may be refuted? It is surely safer to shut off all approaches to these disputations, and our silence will have to be attributed not to a *yielded victory*, but to Catholic contempt. Enough has been written in orthodox books for our instruction. For the conversion of heretics? This conversion is the work of the right hand of the Most High. It will itself assist, and will give to the truly wise in that hour what they are to speak.

110 Other books, even of heretics, if they do not depart from true doctrine, and contain things useful to the republic of letters, are not reprobated, nor cast away by our Censors. They are reviewed, to be sure, and rightly reviewed; nay, the same prudence requires beforehand a greater caution and a more accurate examination; since indeed the name of the Author, or its concealment, draws with it an immense suspicion. If it is seen to be purged from all stains, it is not denied to the public light, to the common utility. Yet a rare bird on the earth will be the book of any heretic whatsoever that is not infected with some blemish; for how can it come to pass that a corrupt man give off no evil odor, even though he present himself smeared with a thousand Sabaean perfumes. If, however, weighed in the balance of truth, he has been found wanting, those things that can be noxious are expunged, while the rest, being innocent, is not derogated from even in the least.

111 To this examination, and perhaps to a more rigid reckoning, ought to be subjected those books which are most frequently published under the Christian name, and by catholic writers, as they are called, and are carried about through the whole literary world. These indeed at first sight have seemed to bring forward nothing expressly heretical; yet what they had drunk in from polluted fountains, they belch forth polluted. Such are some books, especially those pertaining to ascetical Theology, or to ecclesiastical discipline. The first, under the most specious pretext of leading faithful souls through spiritual ways to the port of eternal salvation, slip insensibly, willing or unwilling, into the perverse dogmas of the Molinists, the Illuminati, the Quietists, the Beghards, and the Jansenists, and of other pests; whose most pernicious consequences we experience daily, not without great sorrow, and the greatest detriment to religion.

Why shall our Censors not keep watch, that these be in no way permitted? Others, however, under the veil of reforming religion, strive to revive the ancient ecclesiastical discipline, unsuited to our manners, and to this end either disfigure the Councils and the books of the holy Fathers according to their own sense, or interpret them in the worst way: and hence they strive to introduce again very many things concerning the administration of the sacraments which they themselves dream were used in antiquity; nor do they spare the discipline of today, but rather assail it with reproaches, and tear it to pieces. Others, as regards moral science, teach again opinions speculatively probable indeed, but in practice by no means to be admitted, and already proscribed by the holy See, and intend to revive them. These Authors, and others of the same stamp, intersperse many most useful things, many things of the greatest erudition, and therefore are not to be utterly blotted out; but it is necessary that they be presented to the sieve of the Censors, that the good wheat may be separated from the cockle — of those, namely, who, nourished on butter and honey, know best how to refuse the evil and choose the good: otherwise it will happen (as experience, that best of teachers, instructs us) that those who by another's labor aspire to seem erudite to others, not knowing how to separate the certain from the uncertain, slip into erroneous and false opinions. Whence Muratori would act more prudently if he refrained from putting his hand into another's harvest, and left the Spanish Censors untouched in the fulfilling of their office.

112 It is wondrous indeed with what most cunning art, and as it were with a most gentle hand, but with a most sharp pen, he pricks and strikes, and reaches even to the inmost recesses of reputation, while he charges these same men, and accuses them of the greatest crime, because they dare to cleanse not only the books of the more recent authors, but even those of the holy Fathers. He will have to be judged guilty of imposture. The genuine writings of the holy Fathers all our Censors, and the Spanish, venerate in the highest degree; those whom the Church has received, they themselves reverently receive and embrace. But I question Muratori. Either there are found in the very volumes of the holy Fathers certain things not consonant [?] with faith, or with religion, or there are not? If not; why does he suspect such rashness of most learned, most select men, or come forth in public to taunt them? This is not to be believed of such great men: it remains that Muratori should not accuse with veil lifted [?], but should evidently prove it; otherwise he will have to be mulcted with the penalties of a calumniator. But if noxious doctrines are found in them, what sufficient reason will one be able to assign that they should not be deleted? Muratori's reasoning is thoroughly sophistical. The utility is not of the few, but of all: no inconvenience is thence prepared, no disgrace to the saints themselves, no injury to the Church is thence contrived. Credit is not taken away from the most faithful editions, but from the vitiated ones. The honor of the Fathers is not diminished, but increased, and is vindicated from the disgrace inflicted upon it. Who will dare to assert that gold purged of its dross loses anything of its intrinsic value, or diminishes its own estimation?

113 By Hercules, if a snake does not lie hidden in the grass, I do not grasp Muratori's meaning. Shall it have been lawful for heretics to fill the books of the holy Fathers with faults, to vitiate their sentences, that they may cavillously twist them back against us; but to us shall it be imputed as a fault that we cleanse those books so infected? Will it be equitable that those books be committed to the press again and again stained with impostures; but unjust that these stains be wiped away [?] by us? Will it be judged a disgrace to the Fathers that the errors inserted by the Innovators be expunged from their books; and will it not turn to their ignominy that they see the public light with the aforesaid errors? Who does not know how much the heretics contrive, how many falsities they intermingle with the sayings of the holy Fathers, that they may abuse them for the ruin of the catholic religion? How much do they most falsely attribute to Augustine, whom they always make their own? Therefore they seek the glory and honor of the Saints, who restore their works vindicated from these most crafty impostors. [?] Catholics cannot thence suspect our cause to be bad; nay rather, they will more fully recognize the wiles of those men. This is not to be afraid of the holy Fathers, as Muratori feigns, but to fight most keenly for their doctrine; thus the fraudulent arms of the enemies are broken, thus their blasphemous mouths are shut, when their cunning devices are denounced. This is not, as he says, to defend the cause of truth by evil arts, but with one most mighty blow to lay falsehood utterly low. There is no need of other argumentations. If they object to us: Thus Augustine teaches; with one word their whole machine will collapse. You lie: this passage is not Augustine's, but of your own men, who have disfigured Augustine's sentence. Struck back by this arrow turned upon their own head, they will fall, and be silent. Yet if they still chatter, what is there to dread? They will be able to bark, they will not be able to bite. So did William Cave, in whose audacious footsteps Muratori treads.

114 He most highly praises that other Provinces of Catholics *do not imitate this crime of the Spaniards* (if he spoke more moderately, he would do better), *and that the works of the holy Fathers still come forth among Catholics themselves, with not even a single tittle removed, in France above all*. Perchance, if other Catholics imitated the Spaniards and the Portuguese, becoming laudable emulators of their piety, of their religion, of their greatest vigilance in matters of faith, they would not be found so contaminated with errors? What Provinces of Catholics are so immune from errors that they do not slip into some harm? I pass over those which are altogether infected with the heresies of the Lutherans, Calvinists, Protestants, Reformed, and the like. Yet how many, among the catholic Provinces themselves, are found befouled with the filth of Hugo [?], Baius, Arnauld, Jansenius, Molinos? How many books corrupted by these pests, but masked with wondrous erudition, come forth into the light? Oh would that I might be convicted of falsehood! Oh would that they might not reach our borders! Assuredly, if it were so, we should not experience so excessive a laxity of morals and of religion.

115 Yet what does Muratori babble? Either the foreign editions bring forth into the light the genuine works of the Fathers, or works disfigured by cavilling Innovators? If the first, they are greatly to be praised, and our Censors also to be praised, who do not touch the genuine offspring of the Fathers even in a tittle. If the second, they inflict the greatest injury upon the Fathers, while they propose to be read, as though the Fathers' own, things known to have been falsely and craftily added to them; wherein they are not only not to be praised, but rather most greatly to be blamed, who do not shrink from publishing these things thus vitiated. For they both audaciously wound the reputation of the Fathers, while they attribute pernicious opinions to them, and bring ruin upon readers, who confidently acquiesce in erroneous doctrines, thinking them to be the Fathers', and are most miserably deceived. Against these supposititious and harmful additions our Censors deservedly proceed by expunging them. Nor is it enough that these additions be noted in the expurgatory indexes; for not all possess them, nor are men bound so to labor that, as often as some holy Father's sentence comes to hand, they must needs run through the expurgatory indexes. A distinction must be made between legitimate and spurious writings. The former are left untouched, and if perchance some need interpretation, this is explained in the indexes, or in other books: the rest are expurgated, that readers may know that that sentence is not that Father's, but was craftily added by another. If this does not please Muratori, let him abound in his own sense, but let him not speak ill of others in their absence.

116 He himself, like one who strikes a blow and hides his hand, afterwards endeavors to excuse himself, and confesses that the Spanish Censors attempted nothing against the genuine text, but only against the indexes and unfaithful interpretations. Why then has he accused them up to this point? Why does he assert of them, in the same place, that they *openly, not secretly, decreed that certain places of the Fathers were to be truncated*? What they would have said was to be truncated is what is falsely fathered upon them; that the true and genuine passages were to be deleted never came into their mind — that is certain. But a most false testimony also is spoken against them, when it is asserted that the Canticle of Canticles is denied to be read — as though they did not know that from divine reading, by which men, under the impulse of a certain divine force, are stirred to the love of God, things less honorable cannot be conceived in the mind. This never happens to enter our mind; and Muratori ought — so that he might first himself observe the moderation which he teaches others — to abstain from these reproaches. Yet he believed the envious and contumelious impostors against the Spanish nation: he believed most lightly the critical and slanderous writings of foreigners, in which he is convicted out of his very own writings of being deeply versed, and *what a light mind conceives, a lighter tongue straightway brings forth*.

117 To this vice must be ascribed what he writes in the following §. thus: *In these, beyond doubt, there occur some things.... or even foreign to the mind and tradition of the whole Church. Yet these are not to be expunged from the public editions*. Can it perhaps

be said, without injury to the Fathers, that they wrote sentences *foreign to the mind and tradition of the whole Church*? Does this critical writer dare these things? If, however, they are foreign, they are not their own, but inserted by some malevolent impostor; for the holy Fathers, namely, whom the Church honors as *Masters, and witnesses of the truth*, could by no means have taught anything not consonant with the mind of the Church, or contrary to tradition. Why then is whatever such thing is found written *not to be expunged from the public editions*? No other reason, except that this does not please this Master of Masters. His foundation is empty, and established on no solidity, wherein assuredly he defends the rights not of the Church, but of the Innovators. The Church does not fear from the holy Fathers, is not terrified by the insults of the heretics, but seeks the truth, and prudently rejects the adulterine offspring insidiously fathered upon those same Fathers: she courts the light, and altogether dispels the clouds that arise in opposition to her luminaries. What do the complaints of the Innovators matter to us? Let us not value their barkings a straw: it is their custom; why must we take care that they not complain? Yet from what cause do they pour forth these complaints? Because, the books of the Fathers being purified, the arms with which they thought to strike us are altogether taken from them. Why then shall we supply these darts from our very own armories? He himself confesses that the Monks were visited with a thousand injuries because they had expurgated the manuscript Codices of the Fathers, and that those ignominies were hurled unjustly and thanklessly. If this was granted to the Monks with praise, why is it to be taken from our Censors, that they may supply what escaped the vigilance of others, and show the writings of the Fathers preserved from every stain? Muratori alone would censure this, would condemn it. But why do I say *alone*! He had excellent guides: Daniel Francus, Baillet, or Morhof: what religion these men professed, their very own writings make plain.

118 He endeavors greatly to excuse contumacious, nay even relapsed heretics, *pag. 326. & seq.* He proclaims that charity must be kept before one's eyes, to which doctrine we too most gladly assent. Yet this charity must be not feigned, not false, not contrary to the other virtues. It is not so to be embraced that justice be forsaken. Toward private men who otherwise offend, that charity is not to be desired which should prevail over the charity to be exercised toward the community. Such men most greatly injure the commonwealth either by doctrine or by example: they are putrid members, which, if they be not cut off, it remains that the rest also will be infected with a most foul contagion. But the ground of distinction between civil and ecclesiastical Magistrates must also be observed. The civil Magistrates, Ministers of the laws, cannot give themselves to this tenderness without offending against the laws — laws otherwise holy, just, and approved by the sacred canons themselves. Those laws command that offenders be punished with the final penalty of fire, the crime being fully proved: judges in conscience can do nothing else than proceed against convicted culprits with all the severity of the laws. If eternal punishments thence be their lot, let them impute it to themselves, who with excessive obstinacy refused to embrace the truth taught them by the Theologians called

for that purpose. In these laws it is a question of protecting the common good, which always preponderates. I believe that the most wise legislators excelled Muratori in prudence, who nevertheless did not judge it fitting to employ other milder penalties, and to chastise so atrocious, so pernicious a crime with an unequal punishment. If they be sent into exile, they will be able to scatter their poisons more freely in other regions, and there corrupt the innocent; or they will gladly flee into those regions, as the Jews do, in which, rejoicing and most secure, they may cling to their sect without fear of punishments, and without hope of amendment.

119 The ecclesiastical Magistrates, however, keeping charity always before their eyes, omit nothing that can profit toward the conversion of the heretic. They admonish, they reprove, they instruct, they summon Doctors to teach them the true dogma, nor do they proceed against them so long as some hope of amendment remains. Their first aim is to gain souls for God; prudence (that they may follow the sentence of the Apostle), modesty, kindness, mildness, tenderness toward their culprits they exercise unfailingly; and so long as they can heal with oil, they do not use the sword, and they observe all the things which Muratori weighs out. Who nevertheless, *like a bird fierce of wing, and with curved talons*, is borne through these windings, so as to swoop most swiftly upon the Portuguese Tribunal of the holy Faith, as upon a longed-for prey. It must be attributed to the greatest levity that he lends assent to fugitive Jews pouring forth most false complaints. The Portuguese Inquisitors always prefer tenderness to rigor; they are not led by false informations, nor by light suspicions; they consign no one to prisons, or to infamy, except those whom the sacred laws prescribe; they do nothing, they attempt nothing, that is not established by ecclesiastical sanctions and Pontifical decrees: they are moved by no ambition, no rivalry, no hatred, or love. Against the contumacious, the relapsed, the convicted, and the negative it proceeds as the laws establish; when no hope any longer remains, it delivers them to the secular Court, that it may punish them according to the laws; yet it spares no effort to convert them to God. If it hopes for this, it does not straightway snatch up the axe, but proceeds most slowly, and those whom it has seen to be led by an error not of will, not of contumacy, but of intellect, it keeps for many years, that it may obtain their conversion.

120 Contrary to himself (as he frequently is wont to be), at *pag. 511. & seq.* he admonishes that heretics are to be condemned and punished, and are not to be tolerated by Magistrates either civil or ecclesiastical, and there he inveighs vehemently, and with the best right, against Phereponus. Yet let him see to it that he not pronounce sentence against himself; for whatever Phereponus writes concerning this matter, he himself, in the place cited above, in order to assail the Portuguese Tribunal, seemed to embrace. But whatever he himself there adduces against Phereponus, we turn back upon him with better right. Let him learn not to forget his own writings, lest the arrows already cast be

turned back upon the head of the archer. These things I wish said with regard to the Tribunal of the Faith; for as to other matters Phereponus is deservedly confounded and impugned.

121 Out of his excessive charity he inserts other teachings; for he would have it that the will's inclination toward the good and the true so extenuates the guilt of heresy, that although one persist pertinaciously in error, he is not to be punished with the ultimate penalty. As if a will prone to the truth could be compatible with pertinacity in error, and as if such a man, thus darkened, were not bound to assent to the truth set before him, and to yield to doctrines once and again defined by the Church. Who will be able to grasp with his intellect the Mystery of the Trinity, of the Incarnation, of the hypostatic union, of the Eucharist, if there go not before, as a preceding torch, a will prone to blind faith, and a humble assent, whereby we take the intellect itself captive into the obedience of faith? Pious affection is the first step toward the assent of faith; he who has it will not with difficulty give his assent to orthodox dogmas; he who has it not must be said to have no inclination toward the good and the true, which by a certain inborn force provokes and draws one to the assent of true faith. Whoever refuses this must be held to be endowed not with a sincere inclination toward the good and the true, but imbued with a haughty temper, one that knows not how to be conquered. This good will almost all heretics, accustomed to fictions, feign, that they may escape the punishments they have deserved. But not one knows how to acquiesce in the truth that has been taught him. If on this ground their guilt were to be extenuated, all would have to be left unharmed, all would have to be waited upon for a repentance which would never come, and the sword of the Church would be mocked, nor would others abstain from similar errors at least through fear of punishment. Behold whither Muratori's charity tends; behold the aim of his teaching, whose intellect this reasoning does not move, but leads to the contrary — a reasoning otherwise futile, and exceedingly far-fetched. [?] He says that *that most dreadful terror of death brings it about that in place of open heretics we not rarely have feigned catholics*. He would say more congruently that the fear of death brings it about that in place of true Catholics we have feigned catholics, yet beyond doubt true heretics both in mind and in heart.

122 His reason is this: because the constancy with which these men, deservedly condemned to the ultimate punishment, intrepidly undergo death, affords an occasion for the error itself to creep more widely, inasmuch as to incautious men it seems that that constancy is to be attributed not to the pertinacity of their spirits, but to the virtue of truth. How inept this mode of syllogizing is, who does not see? What orthodox man, what man instructed in the principles of the true faith, will sink into this fatuity? He will grieve, indeed, at the man's blindness, he will grieve at his contumacy, he will grieve at the diabolical deception, he will grieve at the wretched state of the dying man; but to praise his constancy, to attribute it to virtue or to truth, to be moved by it to admit the same error — no one, as I believe, will be so demented as thus to dare, thus to be

deceived. If, nevertheless, there should perhaps be someone who bursts forth into a like delirium, it will happen by his own fault, and at least, terrified by fear of a like punishment, he will be more securely kept back from the same obstinacy. The Church and her Magistrates intend this: that faith and religion may persist unshaken, that crimes so harmful may be punished, and that she may hold the rest in true dogma by the fear of penalties. That someone, or some, are deceived in their own judgment, by their own fault or ignorance — this the Church does not take into consideration, because the utility of the many is to be preferred to this private utility of fools. The same judgment of Muratori proceeds equally in the case of other delinquents: thieves, murderers, and others of the same kind many times undergo death with the greatest constancy, which is to be attributed to strength of soul. Who will be so dull, who so incautious, as to think that that constancy is to be ascribed to the virtue of truth, and so rave as to judge within himself that thefts and homicides are licit, and thence take example, so as to slip into the same crimes? Who for this cause will think that their punishment is to be deferred? I should wish to hear a congruent reason for the difference. Muratori himself, immediately after these weighty reasonings, says that these men are not to be suffered to live longer among an orthodox people. To what end, then, so many ponderings to the contrary, so many admonitions?

123 He then makes a transition to others who are not pertinacious, and sweats in vain; for these the Portuguese Tribunals of the Faith never condemn to the last punishment. With them, when they repent, abjure their error, and profess true dogmas, it conducts itself most benignly, and according to the measure of their resistance or confession they subject the confessed and penitent either to no penalties, or to lighter, or to graver ones. There is no one who does not know this, who does not see it, who does not daily experience it. In a matter so well known, Muratori's admonition, or reprehension, was entirely superfluous.

124 He confesses that this is superfluous among his own people, since among them he sees that proceedings are had *not without a previous, and that a grave, cognizance of the matters*. This same rule is observed in our Tribunals. Nor is there any just cause for suspecting the contrary. It was therefore superfluous to relate these things. But if he related them, and wished at once to except his own people, what can we think, except that as regards our Tribunals he thought entirely the contrary? Since, however, he conceives that opinion without any foundation, it remains for us to judge that he was moved by the goad of cloaked detraction.

125 He says that error is perhaps concerned with those matters and controversies which the Church or the Councils have not yet established as to be believed. Elsewhere, contrary to himself, as we have already noted, he asserts that nothing is of faith which is not found defined by the Church and the Councils. In doubtful matters, and in opinions not yet reproved, no one is accused of formal heresy, nor punished on that account. If,

however, one insists upon erroneous, scandalous, temerarious, ill-sounding opinions, why shall it not belong to the Tribunal instituted for this purpose to pass judgment upon them, to reprehend those who utter them, and to punish them, if they persist contumacious in their opinion? Why shall it be permitted to those thus erring not to acquiesce in the Tribunal of the Faith, and not to submit their judgment to it and to its Qualifiers? Perhaps they will not be heretics, but their very contumacy renders them suspected of heresy. This the whole cohort of Theologians teaches. They would elude the jurisdiction of the Tribunals, if it were free to them to proclaim that their opinion has not yet been proscribed by the universal Church. They ought not to trust themselves, but to submit their mind to the Inquisitors and to expert Theologians, and to give their assent. Who denies to Theologians this faculty of qualifying propositions? Their judgment is not infallible: this is the privilege of the Apostolic See; but it is so morally certain, and so to be held for certain, that to resist it, not to assent to it, to struggle against it obstinately, must be attributed to tenacity. The Lerinian, Cassian, and others, nay even Cyprian himself, were not heretics, because, their error laid aside, they reverently yielded to the judgment of the Church. Yet if, admonished once and again, they had adhered to their own judgment, who doubts that they would have had to be held heretics?

126 It forces me to incline into great suspicion, that for proving his assumption no other questions came into his mind except those concerning grace and free will which are agitated in the schools: those, namely, in which — to pass over Luther, Calvin, and Wyclif — Arnauld, Baius, Jansenius, Voetius, Maresius, and other followers of theirs have most miserably fallen. That there are diverse schools in this matter, whoever has been furnished with some knowledge of Middle Knowledge and of Physical Predetermination, together with the other questions emerging from these, will not doubt. That these schools, although contending among themselves, can safely be defended and held, Paul V decreed after long contests, since none of them appeared to deviate from the true sense of the faith. Whoever follows these opinions, or others proceeding from them hitherto admitted, and in no wise reprehended by the Vatican Oracle, is neither subjected to the Tribunal of the Faith, nor branded by the Censors of the Holy Office; for the Qualifiers know very well which opinions are agitated in the schools, and which can be defended without crime. Yet very great caution must be applied, lest under the pretext of these opinions anyone burst forth at his own pleasure into propositions doubtful and ill-sounding, or consonant with heretics. That it pertains to the Tribunal of the Faith to examine and draw out this true sense is certain, after first hearing eminent and most learned Theologians, to whom assuredly it will be a matter of the greatest temerity not to assent. For those who think ill are wont to pretend these excuses, and so to exhibit their errors adorned with artifices and paints, that they endeavor to escape every censure of the Theologians. In this matter the Tribunal is wont to proceed so cautiously, and so the Theologians, that if a proposition be apt to be taken in a good or in a bad sense, it considers the quality and morals of the one uttering it, and whether any sinister suspicion results against him; if no reason for suspecting the utterer be given, the proposition is

always to be taken in the true sense. But if the utterer be suspect, let him be examined concerning his sense. This is the common opinion observed in practice, on which see Simancas, Rojas, Navarrus, and others in Delbene. (31) {marg. (31) P. 2. dub. 195. sect. 53. & dub. 198. sect. 11.}

127 He adds other things, superfluous indeed, or discrepant from the more common opinion. Those who err by ignorance alone, who would not embrace false dogmas if they recognized them as such, if their sincere mind is discovered, are received most benignly; nor are they rigidly, as Muratori supposes, punished with the penalties of heretics. They are gently admonished, and if they acquiesce, they are sent away in peace, or at least, when the rules of law demand otherwise, they are paternally chastised with the lightest penalties. Many times they admonish one who has been summoned, and gently dismiss him when he acquiesces without struggle. Our Inquisitors omit nothing that belongs to piety and charity; the Tribunal wishes to make Christians by benignity, not by rigor. This last it employs only when no other remedy remains.

128 But that he departs from the common opinion is manifest, when he asserts that that manner of acting fights against right, if the Tribunal of the Faith compels one erring in Theological opinions, not yet defined by the Church or by the Roman Pontiff, to receive the contrary opinion. And to prove his opinion he discourses thus: *For is your opinion, differing from their opinion, therefore truer and sounder, because you are more powerful than they? Not even you, as I suppose, would think so.* An excellent reason, if the contention were between two private Theologians. But when the matter is transacted with a Tribunal, or with a Bishop judging and teaching, the argumentation is most futile, most futile whatever is reasoned to the same purpose. He is himself bound to believe and to assent to the Tribunal, or to the Bishop and the learned men called for this purpose; otherwise he will have to be punished as suspected of heresy, and sometimes as contumacious. Let Delbene be seen, citing others, who weighs excellent reasons for this. (32) {marg. (32) P. 1. dubit. 4. petit. 2.} Muratori ought, therefore, not to condemn what the best Doctors teach, and not to trust his own judgment.

129 I could note many other things, which throughout his whole work *on the moderation of minds in the business of faith*, and concerning writers whom he at times greatly extols — assuredly in great part heterodox — he has uselessly heaped together. But that matter demands a wider investigation. I shall not, however, be silent concerning Drusius and Grotius, certainly notable heretics. Of Drusius I have no reading. But Grotius, whatever he himself may say, always lived an atheist, and at last died attached to the Protestants. Certainly in civil law he was excellent, especially concerning public law. In his epistles he was not bad, but he did not obtain a place among the first rank; nor was his style always the same. He usurped many things from Bodin (whom he praises in *epist. ad Gallos* 146 and 170), an atheist; likewise from Socinus, of the same sect, he borrowed very many things, especially in his critical commentaries on the whole Bible, in which,

scattered through four tomes, are found very many erroneous things, very many things redolent of Socinianism, where in explaining the passages of the Rabbis he is many times deceived; many of his errors Esdras Edzardi has noted. If I confess the truth, it seems to me worthy of laughter (may Petavius pardon me) that he was of such a mind that, having returned from Sweden, he would enter the Catholic Church. If that was his mind, who prohibited him from entering? Why at least in death did he not profess the Christian religion? Could he decline from Atheism to the Protestants, and could he not to the Orthodox? Nor does it move me much that he many times explained the sentences of Scripture and of the holy Fathers in the right sense. This too we experience in other heretics, when they fight it out among themselves. For no one is ignorant how many and how diverse are their sects. Each one, to defend his own, uses excellent and perspicuous places of Scripture against the others. Those sectaries do not dissent from the Catholic faith and its dogmas in all things, but in certain articles: as regards these they disfigure the sense of Scripture, as regards the others they retain the true sense, they embrace true doctrine. The rules of Trent pleased him greatly, because conformable to reason: but he is for that the more unhappy, for that the more damnable, because he did not receive them. It had seemed to him that assent must be given to traditions, because he did not follow the sectaries who assert that one must stand by Scripture alone, and not by traditions; therefore he wrote thus against Rivetus; and in consequence it was necessary that for its interpretation he should have recourse to the ancient writers and the universal Councils. This too other sectaries embrace, and yet they are sectaries. His book *de Veritate Relig. Christ.*, on the witness of Spon, is to be accused of plagiarism, as translated from a certain book written in Arabic against the Mahometans and Jews; and yet it contains many things in no wise to be approved. Another book, *de Antichristo*, contains many things consonant with Catholic doctrine, but many dissonant, which it would have been easy to demonstrate, were I not called away to other things. Let the most learned Calmet be seen in his Biblical Dissertations, where throughout he rejects and explodes Grotius; and also the most learned Bosius, sharply contending against the same heretic, and showing his innumerable errors [?]. And Pouget in *Inst. Cathol. tom. 1. sect. 4. cap. 2. §. 18*. This is certain: that he always lived a heretic, and died a heretic. Let Grotius please Muratori, let him please other praters; me he does not please, because he did not please God, the Apostle witnessing that *without faith it is impossible to please God*. No heretic, however most learned, however full of erudition, smiles upon me; it profits not to devote oneself to the reading of his books, though I remain devoid of his eruditions: *Better is faithful ignorance than temerarious knowledge*. (33) {marg. (33) August.} *Where there is no knowledge of the soul, there is no good*. (34) {marg. (34) Proverb. 19.} *Not to be more wise than it behoveth to be wise, but to be wise unto sobriety*. (35) {marg. (35) D. Paul.} Without the reading of heretics we shall be saved, without their erudition we shall be wise, and fleeing from their snares, we shall ever stand undaunted for the faith, for the true religion.

130 Of set purpose I have reserved to this place what Muratori, under the name of Lamindus, *lib. 2. cap. 6. pag. 254.*, has written most impiously and too audaciously concerning the piety (which he, obstinate himself, calls obstinacy) with which the Spaniards, and especially the Portuguese, venerate the immaculate Conception of the most holy Mother of God, and swear to defend it. Temerarious himself, he rushes into such deliriums that he intends to reprove what most ample Orthodox Kingdoms, filled with so many most wise Theologians, what eminent Universities inferior to none, teach and defend. Unhappy I, who have so many times sworn to defend with all my powers the same Mother of God immaculately conceived! Unhappy so many distinguished Masters of Coimbra, swearing the same every year! Unhappy the Kingdom, unhappy the Spains, infected with this stain of perjury! There remained one Muratori, who too boldly should lift up his head against so many most wise Preceptors, against most learned Theologians, against men mighty in virtues and wisdom, against all the Religious Orders, against all the Orders of our Kingdom and of Spain, and cry out with harsh words. All err; Muratori alone has happily found the way of truth. Oh how much pride, how much of an elated mind, he most openly demonstrates by so great a daring! It were better for him if he kept silence. We can augur no good outcome, as regards the immunity of the most holy Virgin MARY, for one so prattling, and so uncouthly raving against the most devoted defenders of so great a privilege.

131 He will perhaps strive to be excused, on the ground that he hurls his darts not against the opinion of the immaculate Conception, but against the oath to defend it; and he will have ready at hand those words of the said cap. 6: *It was not enough for certain men to defend the immaculate Conception of the Mother of God with pen and reasons; which beyond doubt is consonant with true piety.* This is the cunning of these men: they study so to compose their discourses that they may be able to hide what they retain in their heart, and may always have words prepared for their own defense. If the opinion of the immaculate Conception *beyond doubt is consonant with true piety*, what, I ask, do those words signify: *Which can be false, and certainly is not necessarily to be defended?* How can that be pious, and truly pious, which can be false? How is that not necessarily to be defended, which beyond doubt is truly pious? What else do the other words sound: *But to me, someone will say, an opinion of this kind is most certain. To whom? To a man, namely, a most fallacious creature. Is anything, I ask, certain because it seems certain to him? God has revealed the things which are to be believed true without suspicion of error.* Yet I inquire: To what man? To this or that Doctor? Certainly to almost the whole Christian people this opinion has smiled as most true, confirmed by innumerable miracles. Muratori does not believe in miracles; yet let him believe, even unwilling, the Holy Father Alexander VII, thus asserting: *Ancient indeed is the piety of Christ's faithful toward his most Blessed Mother the Virgin Mary, holding that her soul, in the first instant of its creation, etc.* And in the same place: *Very many of the more celebrated Academies also acceding to this opinion, now almost all Catholics embrace it, etc.* Shall it be said that what almost all Catholics, and the eminent Doctors of the more celebrated

Academies, thinking as one without any fear, hold — what the Church does not reject, nay approves by her consent, not yesterday and the day before, but for centuries willingly and gladly permits, and fosters with privileges, graces, and indulgences — does not pass beyond the limits of an uncertain opinion liable to falsity, and only so seems *to a man, a most fallacious creature*? Is that opinion certain only to this man or that, which is held most certain among very many pious men, very many learned men, and all Christians? Certainly the most learned Duvallius, in his treatise on the Conception, calls it not only certain, but most certain; whom Nieremberg and others of the same authority follow. Does this universal consensus of all bring no moral certitude to so pious and so received an opinion? Are those things alone certain which are established to have been revealed? Many things are not yet established from certain revelation, and yet they are either true, or are held as most true. That is not to be believed as of faith which has not yet been revealed, or defined by the Church as to be believed of faith. But there are many things which can be held as certain, not by divine faith, but with a human certitude, than which, outside matters of faith, none can be greater. There are very many Theological conclusions which have not yet been revealed, or defined by the Church; and yet he will be shameless and temerarious who would deny to these conclusions all human, nay even theological, certitude. Now I call the Modenese writer to account. To whom does that opinion concerning the Conception of the Mother of God seem uncertain and liable to falsity? To whom? To Muratori — *to a man, namely, a most fallacious creature*. He can therefore be deceived. Let him hold, then, his own opinion, but let him defend it modestly; let him show the moderation of mind which he preaches, and let him not proudly burst in upon the assertors of the contrary pious opinion.

132 He himself does not dare expressly to oppugn this pious and true opinion, nor to defend the contrary, lest he seem to contravene the Pontifical Constitutions. Yet what he cannot do directly, he attempts indirectly. Let us hear his words: *Nevertheless it is nothing else than a human opinion liable to error... as an opinion most certain to them, which the Church herself, though wearied by the prayers of so many pious men, has not yet brought herself to decree certain, and — I am near to saying — has in a manner signified by her silence that it cannot be decreed*. Who will be so obtuse as not to detect that he retains in mind and soul the contrary opinion concerning the immaculate Conception, even if he does not utter it openly? But how much he is adverse to the Pontifical Constitutions, we shall afterwards demonstrate from them. For if that opinion is liable to error; if it cannot be decreed true by the Church: therefore it is not true: therefore the contrary is true; since two contrary opinions cannot be true at the same time, and if the one is not true, the other must necessarily be true. But to assert this the aforesaid Constitutions expressly prohibit.

133 He will again attempt to defend himself by asserting that he in no wise disapproves the piety and probability of the opinion teaching that the Blessed Virgin was in her first instant preserved from original stain; and that he only inveighs against the temerity by

which the followers of the same opinion bind themselves by oath to defend the immaculate Conception even with the loss of their own life: which, to reprehend it, he thus exclaims: *A new kind of Martyrs indeed, which our ancestors never dreamed of, which our posterity, if they have any wisdom, will never approve. Neither the Gospel nor right reason teaches us to squander the soul for causes so light.* He passes beyond the terms of the question. It is one thing, and indeed most different, to assert that the aforesaid oath is licit; another to defend that he is a true Martyr who has poured out his life for the immaculate Conception. The first the Church has never prohibited; the second she may perhaps have reprehended in Theophilus Raynaudus. For, as is found in Portel under the word *Conceptio*, and in Fr. Casnedi *tom. 5. disp. 12. sect. 5. §. 3. n. 188.*, the Holy Father Paul V condemned this proposition: *He would undergo a true martyrdom who for the defense of the Conception should undergo martyrdom.* Which condemnation, however, I could not find, but rather a certain prohibition of the Portuguese Inquisition, to which Paul V assented, as Delbene says. I do not dispute whether one who, from error, or from an opinion firmly retained, should judge that the preservation of the Blessed Virgin in the first instant of her Conception is of faith, and is contained as revealed in the Scriptures, and should offer his life and his throat to the executioner, would have to be called a true Martyr. I believe there will not be lacking Theologians who assent, nor will that doctrine have to be said to be condemned by Paul V. I do not dispute, I say, but I only assert that the aforesaid assertions are most different, which Muratori cavillously confounds, that he may reprehend the more vehemently. It is licit to expose one's life to imminent danger for defending one's fatherland, for keeping the king safe, for defending a neighbor unjustly attacked; yet if one should fall, who would call him a Martyr? And yet he acts licitly, and to do this he can licitly be bound by oath. So we defend with all our powers that one who defends, or swears to defend, the immaculate Conception of the Blessed Virgin acts licitly. Among Catholics there is in taking this oath no danger of life, no temerity. If, however, some tyrant, or some temerarious or insolent man, threatening certain death, should compel someone piously minded to abjure the pious opinion, to break the oath he has taken, to affirm that the pious opinion is not true, that it is an uncertain opinion, that the most holy Virgin was not preserved from original sin — could he licitly do this, and would he be bound to assent to the tyrant, lest he expose himself to imminent danger of death? Let the great Theologian Muratori answer. Assuredly these can be the terms of his oath; since among Christians the business can in no wise come to arms and to the shedding of blood, especially after the Church has altogether prohibited these contentions.

134 Muratori, therefore, who feared to oppose himself to the Marian immunity, turns himself against the oath that has been taken: he did not shrink from declaring the cause for taking this oath *to be so light a cause*. Shall the immunity of the most sacred Mother of God, her privilege, which shall not be given to another, the singular prerogative granted to the Mother, be called a light — and so light — a cause? A temerarious proposition! Men judge it no light cause to defend and conserve their own privileges; and

shall it be a light cause to defend with all one's powers the Marian privilege? Vain zeal of Muratori! Yet what is his end, what his reason? Because (he says) *the cause of the Church is ill served*, when it is *disturbed by this internal superstition*. Oh execrable crime! Oh delirium in no wise to be pardoned! He, wise only to himself, calls unskilled all those whom the firm opinion of the immaculate Conception impels; and he judges that it greatly concerns the Church *that this vice of superstition become known to the whole people*. This proposition must be judged offensive to pious ears. Muratori followed (if perchance he was not himself its Author) an anonymous booklet, whose title is: *Monita quædam salutaria B. Virginis ad cultores suos indiscretos*, in which likewise the devotion and opinion of the faithful concerning the immaculate Conception is reprehended as indiscreet. Which booklet indeed was reprov'd and prohibited by decree of the Apostolic See for various causes, and especially on account of the scandal of the faithful; to which even now the inconsiderate Muratori has given cause. Or he even learned it from a certain Doctor, who through nineteen propositions raves against the Conception and the oath to defend it, and whom Portel most fully refutes in *respons. casuum moral: p. 2. cas. 32. per tot.* Not without merit does he shun the Portuguese Tribunal of the Faith, to which he would certainly be liable, if he were to utter these most audacious things among us. He supposes that this most pious *sententia*, and one proximate to faith, is judged superstitious by the Supreme Pontiffs, the Bishops, and the Councils; which no one of sound mind will doubt to be most false. If that *sententia* is not superstitious — nay, if it is licit, pious, and more probable than the contrary — assuredly the oath concerning the defending of it will not be superstitious. This *sententia* has many centuries; this oath counts many ages in the face of the whole world; and yet in no wise was the Church disturbed by it: nay rather it brought her quiet, because all contentions concerning that *sententia* are found to have been settled. If that oath were superstitious, without doubt the Church would prohibit it; for she would not suffer the whole Christian people to be defiled by this sin. Known to the Roman See are these our oaths, known to the Bishops, known to the Tribunals of the Faith, but down to these times in no wise reprobated. The very silence of holy Mother Church in a matter so well known, and so common to all the Academies, is enough for a tacit approbation. What the Church has hitherto not judged superstitious and sinful, Muratori pronounces. Wondrous liberty of genius, wondrous confidence! No danger to faith, no danger to religion, no harm to souls does this most safe *sententia* bring with it. I could bring forward innumerable Spanish traditions, which modern critics, however most erudite, unjustly reject, perhaps on account of the envy created against the Spaniards: I could bring forward the authorities of the ancient Fathers, which the adversaries interpret according to their own measure: I could adduce into the midst the Greek Monologium: it would be easy to review innumerable miracles, by which this devotion toward the Conception is wondrously and evidently confirmed. Yet I pass over all these things, which to the most pious Muratori

will seem musty fictions, and briefly — not with a thick, crackling, and rugged heap of phrases, but by the scholastic method — I shall show that the aforesaid oath is licit and religious.

135 It is urged, therefore, first, by this intrinsic reason. Licit and religious is an oath concerning the defending of a truth in some manner defined by the Church. Such is the aforesaid oath. Therefore, etc. The minor, in which the difficulty can lie, is conclusively proved. Because the Church, by enjoining the annual celebration of the immaculate Conception, a Mass and Office having been assigned, and indulgences granted to those devoutly honoring it, and by the declaration issued by Sixtus IV in the Constitution *Grave nimis*, that the Church does not celebrate a Conception merely spiritual, excommunication having been fulminated against those asserting the opposite — defines some truth concerning the immaculate Conception, just as she defines concerning the Nativity of the Blessed Virgin by enjoining its celebration, as is evident from *D. Thom. 3. p. q. 27. art. 4*. Which argument Cardinal Bellarmine uses *tom. 1. Controv. de Cultu Sanctor. lib. 3. cap. 16.*, in these words: *But if he himself should ask, whence we have it that the Blessed Mary was sanctified from her very Conception?... I should answer that we have learned this from that same source whence he himself learned that the Blessed Mary was holy from her very Nativity. For he asserts in the same place that, from the fact that the Church even then celebrated the birth of the Blessed Virgin, he in no wise doubts that that birth was holy; and we therefore, from the fact that the Church celebrates the feast of the Conception, in no wise doubt that that Conception was in some manner holy.* An excellent and conclusive argument: since the Church neither honors, nor can honor, the feast of a thing not holy; otherwise she would err, and would deceive the faithful in a dogmatic matter; which to assert is impious and heretical: therefore in the celebration of the Conception under the name of Conception there is included the definition of some truth concerning the sanctity of the Conception: and upon the defending of this an oath can licitly and most religiously fall. This parity deduced from the feast of the Nativity is best confirmed from the Decree of Pius V, in which the feast of the Conception is in all things and through all things made equal to the feast of the Nativity, as Nieremberg testifies in *lib. de Perpet. Object. festi Conception. cap. 21*. And to the purpose there opportunely makes the authority of the Angelic Doctor 3. p. q. 27. art. 1., thus speaking: *The Church celebrates the Nativity of the Blessed Virgin; but a feast is not celebrated in the Church except for some holy thing; therefore the Blessed Virgin in her very nativity was holy.* I should wish to hear from Muratori the reason of the difference, and that he should teach us when the Blessed Virgin was sanctified, so that she should be born holy.

136 That some truth is defined concerning the sanctity of the Conception is beyond doubt from the parity of the aforementioned Nativity of the Blessed Virgin, of St. John the Baptist, and of the feast of any Saint whatever appointed by the Church. But what is that definition? There is a dispute among the Doctors. And although some attribute to the Conception an equal degree of definition and of certitude as to the Nativity, I confess that

this is said more piously than theologically, the Constitutions of Sixtus IV, Alexander VII, and St. Pius V being attended to, as Valentia 3. *p. disp. 2. q. 1. n. 2.*, Suárez *tom. 2. disp. 30. sect. 6.*, Vásquez *tom. 2. disp. 117. cap. 5.* amply prove. Yet it cannot be denied that the Church, by celebrating the Conception properly so called of the Blessed Virgin, altogether defines the doctrine asserting the Blessed Virgin to be immune from original sin to be the more pious and the more safe. So Ægidius de Præsentatione *tract. de Concept. lib. 3. q. 6. art. 1.*, Fr. Salazar de Conceptione *cap. 43. §. 1.*, Cardinal Bellarmine *tom. 4. contr. de amission. grat. lib. 4. cap. 15. 16. & 17.*, where he asserts the *sententia* concerning the immaculate Conception of the Blessed Virgin to be far more probable than the contrary. Therefore an oath concerning the defending of this truth, in the sense in which it is employed by the learned, is licit and religious, as falling upon a truth defined by the Church. Therefore not without temerity and scandal is it called superstitious and illicit.

137 That the Church can not only define and declare some doctrine to be certain of faith, but to be more probable and safe, in such wise that in this declaration she cannot err, is taught by Soto *lib. 2. de Nat. & Grat. cap. 17. & 18.*, likewise in 4. *dist. 1. q. 3. art. 1.*, Cano de Sacramentis 4. *p. post conclus. 5. & lib. 7. de locis cap. 2.*, Fr. Vásquez 1. 2. *disp. 86.*, Turrianus in 2. 2. *D. Thom. disp. 14. dub. ult. & disp. 56. dub. 9.*, Arrubal *q. 11. art. 2.*; which they prove by examples, among which is that most well known one from Clement. *un. de Sum. Trinit. & Fid.*, where the Pontiff declares more probable the doctrine of those who hold that in Baptism the habits of faith, hope, and charity are infused into little ones. Nor would the Pontiffs permit it to be preached, defended, or publicly taught, silence having been enjoined upon the assertors of the contrary, unless that *sententia* were safe, safer, and safest. Let Muratori consider in his heart what *sententia* he calls uncertain, liable to error, resting upon merely human opinion, and well-nigh indefinable.

138 This foundation having been thus unshakenly established, since we have the Sixtine Constitution in hand, it will be worth the labor to demonstrate that Muratori has beyond doubt incurred the penalties declared therein, and in the Constitution *Solicitududo* of Alexander VII. He himself, undaunted and puffed up, asserts the opinion concerning the immaculate Conception of the Virgin to be liable to error, and not to transgress the bounds of a most fallacious human opinion: secure of himself, he affirms this our devotion to be obstinate and superstitious; and he constitutes us all, and so many distinguished Doctors, guilty of an illicit oath, and consequently supposes us branded with the stain of deadly sin. This being posited, Sixtus IV has among other things these words: *Since indeed the holy Roman Church, concerning the Conception of the undefiled*, (note the adjective *undefiled*, which the Holy Father uses, whose synonyms are: unstained, unsullied, whole, pure, immaculate — by which last name he afterwards uses a little below) *and ever Virgin MARY, publicly and solemnly celebrates a feast, and has ordained a special and proper Office upon this*, (behold, for his Constitution the

same foundation which we assumed above) *certain preachers of divers Orders, as we have received... [assert] that those who hold or assert that the same glorious and immaculate Mother of God was conceived without the stain of original sin, sin mortally... that those who affirm her to have been conceived without such a stain, sin gravely.* I judge that no right reason of difference can be assigned between a simple and a sworn assertion; for if the assertion is licit, the oath regarding that same assertion is also licit, and conversely. He therefore who maintains such an oath to be illicit and sinful has been seen to assert illicit also the assertion upon which the oath falls.

139 It is likewise certain that this doctrine of Muratori has brought the greatest scandal to the whole Kingdom, to all the Spains; which indeed Sixtus IV studied in every way to avoid, through these words: *We therefore, wishing, so far as is granted us from on high, to meet such temerarious daring and perverse assertions as may thence arise in the Church of God, by our own motion... [declare that] those who should presume to affirm that those who believed, (note that he also prohibits affirming that those believing the immaculate Conception incur sin) or held that the same Mother of God was preserved from the stain of original sin in her Conception, would on that account be defiled with the stain of some heresy, or sin mortally... as false, and erroneous, and utterly alien from the truth, and the books published thereupon containing this, we by Apostolic authority, by the tenor of these presents, as to this reprobate and condemn.* And afterwards he brands with a sentence of excommunication reserved to the Apostolic See all who shall have dared to assert that the *sententiæ* concerning the immaculate Conception are not true. What else does Muratori attempt? He expressly asserts that it *can be false*. But he who affirms that it can be false necessarily denies that it is true; for that which is true is not subject to falsity. Furthermore, the Pontiff would not prohibit denying it to be true, if he judged that it could be false. Ridiculous, therefore, are those who hold that the Holy Pontiff constituted nothing else than to permit the aforesaid *sententia* as pious and probable; whereas he so judges it true that he so luminously prohibits asserting that it is not true. If therefore the *sententia* which defends the immaculate Conception of the Mother of God is true, and to be held as true, the oath concerning the defending of this truth is licit also: accordingly that sinister opinion is illicit, reprobated, and liable to Pontifical condemnation, which, with the universal scandal of the Portuguese and of the Spaniards, nay of almost all the faithful, does not fear to assert this oath to be illicit and superstitious.

140 More severe still is the Constitution of Alexander VII, and one most worthy to be read, at least as regards the part most expressly favoring our opinion. And it is to be noted that this constitution was issued when already by almost all the Universities a public oath concerning the defending of the Conception was being taken; nor yet did the Pontiff prohibit it, nor did he consider that *the cause of the Church is ill served*, and that it greatly concerns the Church herself *that this superstition become known to the whole people*; he did not fear the superstition which Muratori says *the Apostolic See feared and*

fears; nor did he think there was in that vow a danger to religion and the guilt of sin, otherwise he would prohibit it, and would in no wise suffer that superstition to be exercised, and to be rooted fixed in the minds of the faithful. But what the Holy Pontiff in no wise disapproved, Muratori explodes. Let us now see the words of Alexander. Thus he says: *The solicitude of all the Churches, which, though far unequal in merits and in strength, we bear by the will and providence of God the best and greatest, holds us anxiously intent and vigilant upon this: that the scandals which, by reason of the corruption and frailty of human nature, must needs come among the faithful, should arise as few as possible, and, having arisen, should be removed as swiftly and as diligently as possible: for to those through whom they come they bring a certain ruin of sin, but to those to whom they are offered a present danger of falling,* (that he was bringing this ruin upon himself and upon almost all the faithful, under the appearance of a most imprudent zeal and the mask of taking away superstition, Muratori did not shudder) *the loss whereof we, by the debt of our Pastoral office, both exceedingly lament, and are burned with assiduous peril. Ancient indeed is the piety of Christ's faithful toward his most Blessed Mother the Virgin Mary, holding that her soul, in the first instant of its creation and infusion into the body, was by a special grace and privilege of God, in view of the merits of JESUS Christ her Son the Redeemer of the human race, preserved immune from the stain of original sin, and in this sense honoring and celebrating with solemn rite the festivity of her Conception: {marg. Nota} and the number of these grew, and this cult likewise, after the Apostolic constitutions issued in its commendation by our predecessor Sixtus IV of happy memory, which the sacred Council of Trent renewed and commanded to be observed. Again was this piety and cult toward the Mother of God increased and propagated after the erection under this name, the Roman Pontiffs approving, of a religious Order and of confraternities, and the indulgences granted by the same, (this is that pious *sententia* which Muratori, in words, and at times for a lie, temerarily — not to say blasphemously — does not hesitate to declare can be mendacious) so that, very many of the more celebrated Academies also acceding, (Muratori presumes to know more, and better, than all these most celebrated Academies, and defines that our posterity, along with him, if they have any wisdom, will approve it) now almost all Catholics embrace it (from this number of Catholics Muratori is excluded, while he asserts that this opinion does not transcend the terms of a mere probability liable to error, nor is to be held with so great contention, since God could have willed otherwise, and it is still uncertain whether he willed it to be otherwise. Rare devotion of the man, most rare disposition of piety!) And because, on occasion of the contrary assertion in sermons, lectures, conclusions, and public acts — namely, that the Most Blessed Virgin MARY was conceived with original sin — there arose among the Christian people, with great offense to God, scandals, quarrels, dissensions (can not the same scandals arise from a book in which it is asserted that it is not certain that the Virgin Mother of God was preserved from original sin, nor that this can be defined?) Pope Paul V of happy memory, likewise our predecessor, forbade the opinion of these*

men, contrary to the aforesaid sententia, to be publicly taught or preached. Which prohibition Pope Gregory XV of pious memory, likewise our predecessor, extended also to private colloquies, commanding moreover, in favor of the same sententia, that in celebrating the most holy sacrifice of the Mass and the divine Office, both publicly and privately, all whosoever should use no other name than that of the Conception. {marg. Nota} Nevertheless, as the venerable Brethren the Bishops of almost all the Spains, with the Chapters of their Churches, have set forth in letters sent to us — with the added insinuation also of our most beloved son in Christ Philip, Catholic King of the same Spains, who upon this sent to us a special Orator, the venerable Brother Ludovicus, Bishop of Plasencia, through whom also were conveyed to us the supplications of the same Kingdoms of the Spains — certain assertors of that contrary opinion continue, against the aforesaid prohibitions, both privately and publicly, either to impugn or to pluck at the aforesaid sententia, (what else does Muratori do, when he calls it uncertain and indefinable?) and so to interpret the favor shown by the Roman Pontiffs to the cult and to the feast according to it, as to frustrate them; nay, they deny that the Roman Church favors this sententia, and the cult exhibited to the Blessed Virgin according to it, (of this fault too Muratori must be reckoned guilty. And how shall a sententia be deemed uncertain, which the Roman Church favors?) striving to dislodge the pious faithful of Christ from their, as it were, peaceful possession, (and who doubts that Muratori dislodges us from our peaceful and immemorial possession?) whence the offenses, scandals, and quarrels which Paul V and Gregory XV our predecessors wished to meet, endure still, (all these Alexander settled, but Muratori desires to stir them up) and on occasion of the same adversaries greater inconveniences than these are prudently and deservedly feared for the future. Wherefore upon these matters both the aforesaid Bishops with the Chapters of their Churches, and the aforementioned King Philip and his Kingdoms, have caused instant supplication to be made to us for an opportune remedy. We, considering that the holy Roman Church solemnly celebrates a feast of the Conception of the undefiled and ever Virgin MARY, and once ordained a special and proper Office upon this, according to the pious, devout, and laudable institution which then issued from our predecessor Sixtus IV; and wishing, after the example of the Roman Pontiffs our predecessors, to favor this laudable piety and devotion, and the feast and cult exhibited according to it — never changed in the Roman Church since the institution of that cult — and also to protect this piety and devotion of honoring and celebrating the Most Blessed Virgin as preserved from original sin by the prevenient grace of the Holy Spirit, (which the Church protects by constitutions so perspicuous: shall we not be able to profess it by oath?) and desiring to preserve in the flock of Christ the unity of spirit in the bond of peace, offenses and quarrels being settled and scandals removed: at the instance and prayers offered to us by the aforesaid Bishops with the Chapters of their Churches, and by King Philip and his Kingdoms, we renew the constitutions and decrees issued by the Roman Pontiffs our predecessors, and especially by Sixtus IV, Paul V, and Gregory XV, in favor of the sententia asserting that the soul of the Blessed Virgin Mary,

in her creation and in her infusion into the body, was endowed with the grace of the Holy Spirit and preserved from original sin, and also in favor of the feast and cult exhibited to the Conception of the same Virgin Mother of God according to that pious *sententia*, as aforesaid; and we command them to be observed under the censures and penalties contained in the same constitutions. And moreover, all and singular who shall continue so to interpret the aforesaid constitutions or decrees as to frustrate the favor shown by them to the said *sententia* and to the feast exhibited according to it; or who shall have dared to call this same *sententia*, feast, or cult into disputation, or in any way whatsoever, directly or indirectly, or under any pretext whatsoever — even that of examining its definability, (what else does Muratori attempt?) or of glossing or interpreting Holy Scripture, or the Holy Fathers, or the Doctors; or finally under any other pretext or occasion whatsoever, in writing or by word, to speak, preach, treat, dispute, by determining or asserting anything against them, or by bringing forward arguments against them and leaving them unresolved, or in any other conceivable manner (this manner Muratori has excogitated: directly against the oath, as illicit and superstitious; craftily and indirectly against the opinion upon which such an oath falls) to defer them — besides the penalties and censures, etc. Where it is specially to be noted that he subjects to the Tribunal of the Faith, that they may be punished with due penalties, all who shall have dared in any way to disapprove the aforesaid opinion, or to brand it with any mark. Let Muratori see whether he dares anything else, when he calls superstitious and obstinate the oath of this truth and most pious *sententia*, held today unshakenly by all the faithful, and held for true without any fear. To these things strength is added both by the Decree of Alexander VII himself, by which he ordered the feast of the Conception to be celebrated with an octave, and by the Decree of Clement XI establishing that the same feast be celebrated under precept. Which indeed most greatly persuade the sanctity of that most pure Conception. Who will be so demented as to take away from this *sententia* all moral certitude, and that proximate to faith, and to assert the oath for the defending of this truth to be superstitious and illicit? Muratori alone, daring far too inconsiderately against the more celebrated Academies and most Christian Kingdoms.

141 These things would be enough. But from superabundance it is urged, secondly. On this ground would that oath be illicit: because one would prodigally devote himself for the defending of a truth not yet defined by the Church. This is the foundation in which Muratori most greatly trusts. But not prodigally: therefore neither illicitly. From what has been said it is evident what is the Church's definition concerning the immaculate Conception, which may licitly and religiously fall under an oath. But that it is not prodigal, is shown. It is licit for a subject, for the defending of the King's honor, and for the defending of the possession of the Kingdom — which is founded not merely upon the more probable, but upon a right morally certain, and to which falsity cannot underlie — to shed his blood, and to expose his life to certain death, as is evident from the common opinion of the Doctors asserting that soldiers can, nay are bound, to fight in a

just war with certain danger of death, and not to desert the station assigned them by their Commander; nay, to set fire to their ship and to themselves, lest by victory the infidels be rendered more audacious and more wealthy, as Lessius holds *lib. 2. cap. 9. dub. 6. n. 34.*, Bonacina *disp. 2. q. ultim. punct. 5. num. 5.*, Trullench *lib. 5. cap. 3. dub. 3. n. 11.*, Malderus *2. 2. tract. 3. cap. 1. dub. 19.*, Fagundes in *Decalog. tom. 1. lib. 5. cap. 11. n. 14.*, in the Salmanticenses *tract. 13. de Restit. cap. 2. punct. 2. §. 3. n. 37.* Therefore also not prodigally, but licitly, can one, with certain expenditure of life, defend the honor of the Most Blessed Virgin by asserting her immaculate Conception: which honor indeed, as being of a far superior order, is more excellent than all Kingdoms and dominions; especially since in this there is given only a remote and far-off danger, and only an indirect slaying of oneself is found, which for a cause is licit, and which the examples adduced, and others like them, prove.

142 Nor will Muratori be able to escape this argument by asserting that the honor of the Blessed Virgin does not consist in *doubtful praises, nor in an imprudent sacrifice. Honor is to be paid to her, but prudently*, and care must be taken *lest we render the love and reverence due to the Virgin superstitious*. These praises will be doubtful to Muratori; to us they are not. To him the cause of our praises is uncertain, that after his own measure, with what dexterity he can, he may contradict Sixtus and Alexander: to us it is not, lest we seem to go against the Pontiffs themselves, who altogether prohibited every contradiction of our pious *sententia*. Our sacrifice cannot be called imprudent: for what imprudence can there be in this, that by our vows we honor that very thing which the Church honors, in that manner, and in that sense, in which she instituted it to be honored. We do not devote ourselves for the defending of a merely human, or Scotistic, opinion, as others prate and feign, but for the defending of a *sententia* which, although not yet defined of faith, the Church embraces as pious and more true, and decrees to be embraced. Our vows tend not to that opinion, as a pure opinion; but to venerating the Mother adorned with so signal an honor and privilege, and to venerating in the Mother the Son, who rendered her immune from the common contagion of all mortals. They are directed to the obeying of the Church, and of her supreme head, who commands that nothing be asserted, doubted, or determined against the *sententia* favoring the Marian immunity. We should contradict this most express precept, if at any time it should have pleased us to depart from that *sententia*. We swear, therefore — and licitly and prudently do we swear — to stand firmly for the *sententia* which the Church evidently receives, and in no way to go against it, or to determine anything for the contrary. Finally, we strive for this, that we may preserve the most holy parent of God in her immemorial possession, and that it may never be lawful for us to despoil her of that greatest honor — and such without doubt must it be reckoned — that she, among all the daughters of Adam, like a rose among thorns, was conceived unsullied.

143 But that the Blessed Virgin possesses the most excellent honor of immunity from original sin is evinced from the tradition thereof through each of the Church's centuries, which Fr. Ferdinandus de Salazar most eruditely proves, reviewing them one by one, *de Concept. supra citat. cap. 42. per totum*. And truly such is the tradition of all Spain, whatever the critics, whether out of a spirit of contradiction or out of envy, may detract. It is evident, secondly, from the almost common mind of the Fathers, concerning which the cited Salazar, Fr. Velasques de Conceptione, Fr. Ægidius a Præsentatione, and Fr. Vega in his *Theologia Mariana* show this most amply. But although those rivals interpret the passages of the Fathers at their pleasure, in this very thing they contravene the Alexandrine Constitution, where this is prohibited in the words: *Whether of glossing or interpreting Holy Scripture, or the Holy Fathers, or the Doctors*. It is evident, thirdly, from the Council of Trent, sess. 5. *de Peccato Originali*, where, although the immunity of the Blessed Virgin from original sin is not defined, nevertheless the Virgin is asserted to be immaculate, and the Council declares that it is not of its intention to comprehend her in the Decree where original sin is treated, and it confirms, and commands to be observed, the Constitutions of Sixtus IV. The words of the Council run thus: *This holy Synod declares, nevertheless, that it is not of its intention to comprehend in this Decree, where original sin is treated, the Blessed and Immaculate Virgin Mary, Mother of God; but that the Constitutions of Pope Sixtus IV are to be observed, under the penalties contained in those Constitutions, which it renews*.

144 Truly I know not what could be more express, or what nearer to a definition, than that the Council of Trent should define that all the children of Adam have incurred original sin, yet should not comprehend in this Decree the Most Blessed Virgin, and should name her immaculate — a name which, besides Christ and Mary, is found granted to no other Saint; which surely the Council would not do, if it did not judge her fortified by a singular privilege, nor acknowledge that that law had been laid down not for her, but for all the rest. But it is to be noted that Trent speaks not only of the Sixtine Constitution by which he approved the office of the Conception, and granted indulgences to those reciting it and celebrating the feast, but of the second one issued, by which he strikes with anathema those asserting that the Church celebrates the feast of the sanctification, and not of the Conception, of the Blessed Virgin. But that it may more openly appear what was the mind of the Fathers of the Council concerning the immunity of the Blessed Virgin, and why in the end its definition did not come forth, let Fr. Nicolaus Lancicius of the illustrious Society of JESUS be heard, *tom. 2. opusc. 11. de Praxi divin. præsent. cap. 13. pag. 49.*, who as an eyewitness says: *I read, and copied out, in the year 1549, from the original Acts of the Council of Trent (which are preserved in the Roman Castle of Sant'Angelo, and which, with the express license of Clement VIII, Supreme Pontiff, were shown for some hours by Cardinal Cæsius to the Rev. Fr. Petrus de Arrubal, Professor of Theology in the Roman College, and to me, his companion), from several Decades of the Bishops deputed to treat of this point of the Conception of the Blessed Virgin Mary, that all asserted that she was conceived without original sin; but on*

account of the most insistent entreaties of some Bishops and Theologians of Saint Dominic, who were present at that Council, begging that this time, on account of the mark which would be branded upon the Order of Saint Dominic by this Decree, they should not issue it, but should hold off, and defer it to another time. The Council held off, and did not publish that Decree, for this sole cause. So it stands in those Acts of the Council, which I read most diligently, and these things I then extracted. This same thing is related by the celebrated Dominican and Bishop of Minori, who took part in the Council, in the opusculum which he wrote on the Immaculate Conception, where he relates also a miracle experienced in his own person, by which he was moved to defend the Conception, though before he had not stood for that opinion — namely, Ambrosius Catharinus. The same is testified from the same Acts by Doctor Hieronymus Ormachea, in Cant. Prolegom. 3., under the word Concilium Tridentinum.

145 I know that Cardinal Pallavicino, praised among some with the name of a great historian, wrote this matter otherwise, and in his history of the Council of Trent, *lib. 7. cap. 7.*, asserted that there was no dispute at all about the immunity of the Blessed Virgin, but only about the formula by which the same Blessed Virgin should be excepted from the Decree on original sin. That Pallavicino is he whom Franciscus Farvacques, Castoriensis, Bonus Merbesius, Gaspar Jueninus, Avermans, and other writers of the same leaven hold in high esteem, to whom perhaps Muratori is to be reckoned in addition: he it is of whom Theologians of great name, among whom Joannes de Launoy and Maximilianus Le-Den, complain that he so composed his history as to excerpt from the Council whatever could confirm his own opinions, while keeping silence on certain things. Let the credit of that rest with those Doctors. I do not grasp why we should stand by Pallavicino rather than by Lancicius, and Arrubal, and Catharinus, and Ormachea, who examined the matter with diligence and depose as eyewitnesses. Yet it is strange that he himself should see from the Acts what Cardinal *de Monte*, and what Cardinal *Cervinus*, opined concerning the preservation of the Blessed Virgin, yet should have found nothing at all ascertained as to what the other Legate of Paul III, Cardinal Reginaldus of *Sancta Maria in Cosmedin*, thought — which reticence indeed already sets him in bad faith. But neither, if we love the truth, are Pallavicino and Lancicius diametrically opposed; for the former relates only the contention between the two Cardinal Legates about the form of issuing the Decree on original sin; the latter, the Decades held among the Bishops, and the unanimous consent of all concerning the defining of the Immaculate Conception of the Blessed Virgin. Nay, what Pallavicino himself relates plainly shows that the Fathers of the Council were of this *sententia*, namely that the Blessed Virgin was not to be comprehended in the Decree on original sin, and that they doubted only about the formula by which she was to be excepted from that Decree; which indeed only to bleary eyes will fail to seem enough for the true mind of the Church concerning the Immaculate Conception to appear evidently. I know not on what foundation some Bishops would then have resisted the formula which Pallavicino relates, namely: *That the Virgin is piously believed to have been conceived without*

original sin. For this formula, if it be rightly weighed, does not differ from the Sixtine Constitution confirmed in the same decree, in which protection is given to *those who should believe or hold that the same Mother of God was preserved from the stain of original sin in her Conception*. But since Sixtus speaks of this pious credibility, there was no reason why it should be spurned by those contradictors. And the formula of the Council related above, conceived in other words, contains the same, inasmuch as it expressly decreed that the Sixtine Constitutions were to be observed.

146 However that may be: Pallavicino himself confesses that the same formula was not endured by *the Bishops, and the others of the Dominican Order who took part, and they had followers* [?]; in which he coheres with Lancicius. Those Bishops and Theologians stood in the way on account of the mark which would be branded upon their Order, and on account of the opinion of St. Thomas, which they defended most keenly, and which he himself had followed in order to conform himself to the *sententia* which was then current in the University of Paris; as the same holy Doctor, appearing to a certain devotee of his, namely Friar Dominicus Rasola, General of the Discalced Carmelites, a man of eximious virtues, disclosed this cause of his opinion, and at the same time professed the truth of the Immaculate Conception, and that a time would come in which the Immaculate Conception would be defined. Certainly now they would not have stood in the way, especially the Spaniards and the Portuguese, who most gladly take the same oath in the Universities, in order to receive a degree. And especially they will in no wise stand in the way, if they remember that they, with their most holy Patriarch Dominic, were among the first who proclaimed that the Blessed Virgin was preserved from every stain. A thing worth the knowing. For when the same most holy Patriarch, who had earlier been a Knight of the Order of St. James, had instituted his own most renowned Order, just as he had carried over many ceremonies of the Jacobean Order into his new Order (such as are: to recite the Little Office of the Blessed Virgin standing; to begin Mass from the Angelic Salutation; to communicate not with the right, but with the left hand; and other like customs), so also he assigned the Jacobean Breviary and Missal to be observed, as in fact it is reported to have observed them for centuries. In the aforesaid Missal, therefore — first of the Jacobean, and then afterwards of the Dominican Order — just as today the feasts of the Blessed Virgin have their proper Preface, so then they had a proper Hymn *Gloria in excelsis*; for on the feasts of the most holy Mother of God, where the Hymn has *Son of the Father*, there was added *the First-born of Mary the Virgin Mother*. Where it has: *Receive our prayer*, there was adjoined *unto the glory of Mary*. Where it has: *Thou alone art holy, Thou alone art Lord, Thou alone art Most High*, it was read thus: *Thou alone art holy, sanctifying Mary; Thou alone art Lord, governing Mary; Thou alone art Most High, crowning Mary*. But on the feast of the Conception it was sung thus: *Thou alone, the Holy One, hast preserved Mary: Thou alone, the Lord, hast fashioned Mary: Thou alone, the Most High, hast exalted Mary*. So ancient is the wondrous devotion of this Military Order toward the most pure Conception of the Mother of God, received perhaps by tradition from its own Patron, who is also the

Patron of the Spains, whatever foreign Writers may too much detract from Spanish traditions. So ancient is the obligation of the illustrious Dominican Order to defend the Conception. Whoever desires to know more in this matter, whereby my Jacobean, and likewise my most dear Dominican Order, are ennobled, let him go to the Apology for the habit of Saint Dominic in the Order of St. James, given to the press in the Spanish tongue in the year 1725, and written by D. Josephus Lopes Arguleta, where he discusses the whole matter at length, confirms it, and shows that the holy Patriarch Dominic preached the mystery of the Conception. And the same is held by the distinguished Dogmatist Duvallius, in *Apice certitudinis Theologicæ*, and the most learned Nieremberg in the book *Exceptiones Tridentini pro omnimoda Deiparæ puritate cap. 22.*, Nigarol., Bernardinus de Bustos, and others, in whose copies of his life these words of the same holy Patriarch are found: *As the first Adam was formed from virgin earth, and never accursed, so it was fitting that it should be done in the second Adam.* These things it has pleased me to touch upon in passing, lest I pass over in silence this illustrious title of praise of that most renowned Order, and that I might publish abroad its *sententia* from its origin. To these things Muratori will not give his assent, accustomed as he is to deny all credit to those who do not favor his own opinion; but I commend these notices not to deaf ears, but to pious readers.

147 It is urged, thirdly, from the Synod of Jerusalem in the year 1672 against the Calvinists, in which 43 Fathers took part, which has as follows: *The most holy Virgin had no cause of her death from the contagion of sin, but only from those principles of nature of which man consisted even before sin; for he was by his very nature liable to death, although that nature was of the best. But God conferred upon him this benefit, that in this, nature in no wise working, but grace, he should win immortality for himself. This same thing befell also the most holy Mother of God, who, although she abounded in good things, and knew not sin even in the least, bore those same elements of nature which consign man to death, and likewise accordingly was mortal. But she obtained from God this grace, that she should never undergo death, if she had so willed, but should be borne into heaven while still possessed of life; yet she willed not to use this prerogative.* From which words it is clearly evident that those Fathers held that the Blessed Virgin was free from all contagion of original guilt. For as Adam in the state of original justice would be liable to death from the principles of nature alone, so Blessed Mary in the same state would be mortal from those same principles alone; and as Adam in the same state would attain immortality by a privilege of grace, so the Blessed Virgin by the same privilege would be made immune from death, had she not rather willed to be subjected to death.

148 It is urged, fourthly, from St. Pius V and Gregory XIII condemning proposition 69 of Michael Baius, which says thus: *No one besides Christ is without sin. Hence the Blessed Virgin died on account of the sin contracted from Adam, and all her afflictions in this life, as also those of the other just, were punishments of either actual or original sin.*

These, and other propositions, were transfixed with these censures: *Which opinions, as respectively heretical, erroneous, suspect, rash, scandalous, and impious, bringing offense to ears, we by the authority of these presents condemn, and circumscribe, and abolish.* Nor can it be said that the aforesaid proposition was condemned for this reason, that it asserted that the afflictions of this life which the Blessed Virgin suffered *were punishments of actual, or of original sin.* In which it seems to be intimated that the Blessed Virgin was liable not only to original, but to actual sin. For against this stands, first, that the condemnation is general and absolute, of the whole proposition, in which the principal assertion was that *the Blessed Virgin died on account of the sin contracted from Adam.* Against it stands, secondly, that Baius's proposition is disjunctive; and, that it be not false, it suffices that one of its parts rest upon truth. Therefore the Pontiffs, by condemning such a proposition absolutely, are seen to condemn both of its parts.

149 It is urged, fifthly, from the Decree of Gregory XV of 24 May 1622, enjoining silence, both in public and in private discourses and writings, upon those *daring* to assert that the Blessed Virgin was conceived with original sin: which, as regards public sermons, lectures, and disputations, had already before been provided by Paul V, and was afterwards confirmed by Alexander VII. Where it is to be noted that, whereas silence is so often imposed by the Supreme Pontiffs upon those asserting that the Blessed Virgin was conceived with original sin, in no wise is this silence enjoined upon those asserting, defending, or preaching that the same Blessed Virgin was preserved from original guilt; nay rather, that *sententia* is fostered by so many graces, indulgences, privileges, and constitutions. This is the *sententia* which Muratori says does not exceed the bounds of a pious opinion, can be subject to falsity, and is well-nigh indefinable. A wondrous demonstration indeed of that man's devotion and piety toward the Blessed Virgin! What prudent man, gazing upon his masks not at first view, but inspecting them to the marrow, will not recognize his crafty manner of writing, and his mind by no means pious?

150 It is urged, sixthly, from the Fathers of the Council of Basel, sess. 36., who by common vote decreed that the Blessed Virgin was immune from original sin, and established that her feast should be celebrated in the whole Church. Thus it stands in sess. 36.: *But we, having diligently inspected the authorities and reasons which now for many years have been alleged in public reports on behalf of each doctrine before this most holy Synod, and having seen also very many other things upon this matter, and weighed them with mature consideration, define and declare that that doctrine which maintains that the glorious Virgin MARY, Mother of God, by the singular prevenient and operating grace of the divine Godhead, never actually lay under original sin, but was ever immune from all original and actual guilt, and holy, and immaculate, is, as pious, and consonant with ecclesiastical worship, with the Catholic faith, with right reason, and with sacred Scripture, to be approved by all Catholics, to be held, and to be embraced; and that henceforth it is lawful for no one to preach or teach to the contrary, etc.* And these judgments of those Fathers are related in the history of the Council of Florence,

tom. 9. of the Councils, in these words: *The matters therefore having been diligently examined, they celebrate the thirty-sixth public session on the fifteenth day before the Kalends of October of the same year, in which after the solemn manner they declare that the glorious Virgin Mary, Mother of God, by the singular prevenient and operating grace of the divine Godhead, never actually lay under original sin, but was ever immune from all original and actual guilt, holy, and immaculate: and they judge that this doctrine is to be approved and held by all, decreeing that thereafter it is lawful for no one at all to preach or assert anything to the contrary. And they approved that her festivity should be celebrated on the sixth day before the Ides of December after the manner of the Roman Church.* Hence I marvel that the most learned Natalis Alexander asserted that the Fathers of the Council decreed nothing else than that this *sententia* is pious; whereas from both texts it plainly appears that they approved it as consonant with the Catholic faith and with sacred Scripture, and commanded it to be held by all. We do not intend hereby to attribute to the Synod of Basel any definitive authority of a true Council; for we know full well that that Synod, although legitimate at its beginning, as having been convoked by the Holy Father Martin V, afterwards became illegitimate, and, as celebrated in time of schism, was destitute of the weight of definition. Yet we demonstrate what was the mind of all those Fathers concerning the immunity of the Blessed Virgin. We wish it noted, however, that it is falsely asserted by some that all the decrees of the Council of Basel were reprobated, and that all Theologians devoted to the Holy See withdrew from them. Eugene IV rejected that Council as acephalous and schismatic; he rejected the decrees which had issued from the same Council against him, and against the Council first of Ferrara, and afterwards translated to Florence; he rejected what had been promulgated concerning the power of a Council above the Pope — which afterwards the Fifth Lateran Council under Leo X, sess. 11., also rejected, and all orthodox Theologians rejected. Many things were done in the aforesaid Council conformable to right faith, as concerning the propositions of the Bohemians, the errors of the Greeks, concerning ecclesiastical discipline, concerning the punishment of public sins, concerning communion under both species, and innumerable other things, which neither were condemned, nor could be condemned, from which the Theologians in no wise withdrew, nay rather retained them; not indeed because they had been decreed in a Council which had no authority of defining, but because on other grounds they were to be retained from the Pontifical Constitutions and the decrees of other Councils. As likewise Nicholas V afterwards, for the good of peace, confirmed many acts of that same Council. Likewise it is false, what a certain Anonymous writer asserted, namely that the aforesaid Decree on the Conception was rejected by the Apostolic See; for nowhere will there be shown any Constitution of the succeeding Roman Pontiffs in which that Decree is found either reprobated or corrected. And if, according to Natalis Alexander, the aforesaid Council pronounced that *sententia* only as pious, how should the Church reprobate what afterwards Sixtus, Clement, Pius, Paul, and Gregory most expressly decreed?

151 It is urged, seventhly, from the Council of Avignon celebrated in the year 1457, which is found in *tom. 9. Concil. ex collect. regia*, by the labor of Fr. Philippus Labbe and Fr. Gabriel Cossart, *pag. 1388.*, where from Fr. Hippolytus Maraccius it stands thus: *Petrus de Fuxo the Elder, a Frenchman, of the Order of Minors, adorned with the honor of the Cardinalate by Martin V, Supreme Pontiff, a man great in his own age, who in the Council of Constance with the Cardinals, and as Legate in Spain, blotted out the schism, confederated two Kings of Spain: and administered divers Provinces, as a father of his country, for thirty-two years with the highest praise. Among the other offices of piety by which he manifestly declared that the love of the Virgin Mother of God burned in his heart, in the year M.CCCC.LVII., as Legate a latere of the Apostolic See, he celebrated at Avignon a Provincial Council, in which among other ordinances he issued a statute of the following tenor: We decree that the Decree made in the Council of Basel concerning the Conception of the Most Blessed Virgin MARY be inviolably observed: strictly forbidding to all, under pain of excommunication, that anyone presume to preach, or publicly to dispute, anything to the contrary: and if anyone shall have done otherwise, we will that he incur the said sentence by that very fact: and we decree that the foregoing be published in the first Synod to be celebrated by each one throughout the Dioceses, and that it be enjoined upon the curates of the Churches to make these things known to the people. Given in the Cathedral Church of Avignon, on the vii. day of the month of September, in the year of the Lord's Incarnation MCCCC.LVII., in the third year of the Pontificate of our Lord Pope Callistus III: There subscribed to this statute not only Petrus himself, who presided over the whole Council, but also Alanus Coëtivus, Cardinal of the Holy Roman Church, of whom above: Robertus, Archbishop of Aix; Petrus, Bishop of Apt; Georgius of Senez; Gaucherius of Gap; Nicolaus of Marseilles; Petrus of Digne; Petrus of Glandèves; Palamedes of Cavaillon; Pontius of Vaison; Joannes of Riez; Stephanus of Trois-Châteaux; Michael of Carpentras; and Joannes of Orange. For the rest, this our Petrus rendered his soul to heaven in the year M.CCCC.LXIV. after the redemption of the human race, on the iii. day of December. It has pleased me to relate this to the letter, that from it I might show that this Council cannot be called supposititious, nor feigned by Maraccius, who made so particular a mention of it. Neither does Fr. Labbe call it supposititious, which he would do, as is his wont in other cases; nay rather he gave it credence, and asserted only that he had not seen the complete acts. I shall relate his words: *The Council of Avignon, celebrated for the restoration of ecclesiastical discipline under the presidency of Petrus de Fuxo, Bishop of Albano, Cardinal of the Holy Roman Church, Archbishop of Arles, and Legate of Avignon, is said to have existed in the library of the Most Illustrious Bishop of Vaison, and mention is made of it in the Purpura Mariana of the Rev. Fr. Hippolytus Maraccius, Clerk Regular, pag. 369.; wherefore we shall exhibit it here, §. XVI., until it shall have been possible to come upon those complete acts.* Not for that reason, however, do we attribute to this Council a definitive force, but an authoritative one, that we may demonstrate that this cult, and precept, of the Immaculate Conception is most ancient not only in Spain, but*

also in France: which wins for the Marian immunity the greatest certitude — not such as defined truths ought to have, but a moral certitude, and such that to deny it must be ascribed to temerity and impiety. And as for what certain flatterers say, namely that the aforesaid Council was rejected, I judge it said gratuitously; for no decree is produced from which this could be proved, especially since that very thing which that Council established was by the succeeding is found to have been established by the Supreme Pontiffs. Just as I also perceive that it was said without an author that the books of Maraccio on behalf of the immaculate Conception had been proscribed. For neither do I recall having read the name of Hippolytus Maraccio in the Expurgatory Index, nor do I remember having found the *Purpura Mariana* in the Index of prohibited books. Perhaps some things in his works might be expunged: yet that is not to proscribe books, but to delete certain unfitting things.

152 It is urged, eighthly, from the common consensus of the Bishops and of the whole Christian people, among whom the immunity of the Blessed Virgin could not be denied without grave scandal. Let Father James Granado, conspicuous for learning and sanctity, be heard, *tract. de Concept. disp. 3. q. 29., there: The singular devotion, the applause of the Christian people, the celebration of the Conception long since instituted, seem to cry out, and, as if by their own right, to demand a definition. And certainly there is scarcely any other dogma defined by the Church which before its definition was received with such acclamation.* Let Father Vasquez be heard, *3. part. q. 27. art. 2. disp. 117. cap. 2., there: All who profess the faith of the Christian name conspire in this judgment with one mind and affection in such wise that without great scandal of the people no one can now expound the opposite in sermons.* Let the illustrious Chancellor of Paris, Gerson, be heard, *in sermon. de Concept.: That Blessed MARY was not conceived in original sin is among those truths which have newly been revealed or declared, both through the miracles which are read, and through the greater part of the Church, which now holds this.* Let the most erudite Calmet be heard, who cannot be suspect to Muratori, *in dissert. Bibl.: JESUS Christ had for Mother a Virgin sober, alike modest and pure, the serenity of whose fancy no cloud induced by original sin could have darkened.* If the greater part of the Church holds it thus indubitably, why are we blamed, why are we accused, because we intrepidly swear to hold and to defend what almost all the Churches hold and maintain? Let Surius be heard, in the Appendix to the history of Nauclerus, against the impugnors of the immunity of the Blessed Virgin: *Let them see to it, (he says,) lest, while with the grave scandal and offense of many they derogate from the honor and privilege of the Mother, they provoke against themselves the severe judgment of her Son.* This Muratorius does not fear, when in the sight of the whole world, against the oath of this truth, he audaciously belches forth trifles (to say nothing worse): *They that elucidate me shall have life everlasting, saith the wisdom of God the Father: (36) which indeed the Church sings of the Blessed Virgin, the most pure Mother of Wisdom itself. {marg. (36) Eccles. 24.}* Whatever is said of the sublimity and immunity of the Blessed Virgin, it is beyond doubt that it pertains to the honor of her Son. But if they who elucidate the Son

in the Mother shall possess the glory of eternity, what will Muratorius be able to hope for, who does not elucidate, but blackens the immunity of MARY, when he proclaims it doubtful, uncertain, a matter of opinion, and indefinable?

153 I should stretch out an endless line if I were to commemorate all the illustrious Theologians who think thus; yet that Theologian, greater than all of these, will not assent to them: but let him hear a modern French Writer, and Cardinal of the Holy Roman Church, de Noailles, who assuredly, as if he were hearing Muratorius, reprehends his temerity. I shall give his words as written in French. The title runs thus: *Heures du C. de Noailles sur la Fete de la Conception de la Sainte Vierge*. The little book was printed in 12mo at Paris in the year 1707, where at pag. 267 it has thus: *This day is a day of joy: it announces the salvation which is to be brought to us by JESUS Christ, whose Mother is today conceived. At whatever moment we consider the holy Mother of God, let us remove from her, for the honor of her Son, every idea, every suspicion of sin. She whom the Church holds to have received from God a particular grace which preserved her from every fault, even venial, during the whole time of her life, could well have been preserved from the original stain by a singular privilege. This is the common sentiment, and the most authorized in the Church, although the Church has not made a decision upon it, and it is not an article of faith; and the Popes have forbidden the preaching and the public teaching of the contrary opinion. One cannot too much blame the temerity of those who, without having examined, and even without being capable of examining, the reasons on either side, straightway take the part which seems to them to contribute least to the glory of the holy Virgin. The simple faithful ought to respect and to receive with joy the pious sentiment which seems the more to honor the Mother and the Son; or at least to check their curiosity, to hold to what faith and piety teach them, and in no wise to doubt that God rendered Mary all pure and all holy, at the moment and in the manner which were the most fitting to the execution of his eternal designs, to the mercy which he willed to exercise toward her, and to the choice which he had made of her to be the Mother of JESUS Christ*. Lo, this is the opinion which the rash Muratorius hoots down as piously obstinate, and which, audacious and ill-advised, he derides as all too uncertain. Nor let him think to defend himself by asserting that he does not impugn the pious opinion, but the impious oath of defending it. We recognize the mask. If he himself believed piously, he would not impugn impiously. If that opinion were held by him not as an opinion, but as a morally certain judgment, he would not be so agitated against the oath of defending it. If, however, that judgment does not please him, let him hold what has smiled upon him; yet let him be silent, nor upbraid others, for this the decrees of the Pontiffs command; and let him leave our oath to them for condemning.

154 It is urged, ninthly, from the well-nigh infinite multitude of Doctors of all Orders, and likewise of Academies, maintaining the immunity of the Blessed Virgin. Let the most erudite Augustinus Barbosa be read, on the Council of Trent, *dict. sess. 5.*, on Original Sin, where, after he had alleged forty Doctors of great name (among whom are

counted the Abulensis, Albert the Great, and the Master of the Sentences), he says thus: „Whose opinion and judgment, as the more received, the more probable, and the more congruent with the piety and devotion of the faithful, we find today so received by almost all, Ecclesiastics and seculars, Prelates and subjects, and all the rest of whatever grade, dignity, and sex, that it would seem it must be said to attain the mark of truth: especially since all the illustrious Academies have not only received it, but have also with a public and solemn oath embraced its definition with cheerful brow, (*only Muratorius, and others of the same temper, receive it with indignation*) as of Cologne and Mainz Laurentius Surius testifies, *de rebus memorabilibus anno 1501*, and of the most ancient and famed Academy of the Parisians there wrote Canisius *lib. 1. Deiparæ cap. 7.*, Jacobus Gordonus *tom. 2. Chronolog. in annum 11. of Pope Urban VI, Cævall. d. q. 346. n. 18.*, and Balthasar Porreño in the place we lately cited, in *cap. 28.*, affirming moreover that both in the University of Salamanca, of Toledo, and of Alcalá, and in our Academy of Saragossa, and in those of Lérida, Tarragona, Barcelona, Seville, Valencia, and all the rest of Spain, it was established by special decree that access to the grade of the Doctorate should lie open to none unless he had first promised under oath that he would never oppugn this truth; and of Paris, Alcalá, and Valencia Father Joan. Baptist. Lozana affirms the same, in the cited *cap. 22. fol. 98.*, who not only by various authorities of Pontiffs and of most grave Doctors heaped up by him in *cap. 13. & seqq.*, but also by most urgent reasons brought forward in *cap. 35.*, ingeniously confirms this pious and most true assertion: which we also, thirty years ago, against the Gloss, at the word *Nativitas* in *cap. 1. de Consecrat. dist. 3.*, and at the word *Miraculo* in *cap. 2. de Consecrat. dist. 4.*, while we were publicly teaching these laws in our Academy, with willing mind followed, proving it by various reasons and foundations. And afterwards, in the year 1618, when we were exercising the supreme Consulship of this most noble City of Saragossa, together with the other governors of the same City, and a copious multitude of Nobles, Citizens, and Knights, in the Angelic Chapel of the most Serene Mother of God and immaculate Virgin, commonly called by our countrymen *del Pilar*, we confirmed by solemn oath the defense of the same pious assertion. Yet Muratorius does not hesitate to gainsay all these, as though he were wiser than all, leaning upon no reasons, upon no weight of authorities, but only upon his own phrases and declamations. For if what he writes be weighed, the whole of it consists in denying the certitude of the judgment which supports the immunity of the Blessed Virgin. For if he should confess it, it would needs be that the whole machine of his arguments be dissolved.

155 It is urged, tenthly, from the truth of the immunity taught from heaven, and revealed to St. Bridget, as is lucidly evident from *lib. 5. cap. 4.* How much deference is to be given to revelations of this kind is clear from this, that by the command of Gregory XI and Urban V they were reviewed, and at length by Boniface XI and Martin V committed to examination and to the balance, praised, and confirmed. The same immunity was revealed to St. Elisabeth, Queen of Hungary, as Pelbart says, *lib. 4. Stellarii p. 1. art. 3.* The same the most holy Virgin herself taught the Venerable Mother Maria de Agreda, as

is evident from her marvelous book *Mistica Ciudad de Dios*, long since permitted by the Holy See after accurate examination, and now, as we hope, to be approved. The apparitions of the Angelic Doctor and of the Mellifluous Bernard to certain of their devotees lend aid, as I touched upon above from Father Bernardes. Innumerable miracles favor it, which are found everywhere among pious writers; to deny all credence to which will be the crime of obstinate incredulity and of most tenacious blindness.

156 It is urged, eleventhly, because an oath is licit for defending with all one's strength some truth which by moral evidence is held as certain *de fide* and implicitly revealed in the sacred Scriptures. Of this kind are very many Theological conclusions which, though not expressly defined by the final judgment of the Church, are held among Theologians as certain. But it can licitly be believed with divine faith that the Blessed Virgin was immaculately conceived, and free from every original blemish, whenever it is morally evident to someone that this has been revealed in the Scriptures. Therefore, etc. The minor, in which the difficulty can lie, is not mine, but Father Viva's, *ad proposit.* 21. *Innocent. XI. n. 19.*, where he inquires: *Whether it can be believed with supernatural faith that the Mother of God was conceived without stain?* And he resolves thus: *For my part I judge that the immaculate Conception of the Virgin can be believed with divine faith by him to whom it is morally evident that it is implicitly revealed in the Scriptures: for according to the doctrine of Suarez, tom. 2. in 3. part. disp. 3. sect. 6., a Pontifical prohibition that some censure not be branded upon a proposition coheres well with the highest probability, and even with the moral certitude, of the opposite judgment: whence it does not prevent the judgment which cannot be censured from being able to be called altogether improbable, as Lugo has it, disp. 20. de Fide n. 104., from Hurtado.... Wherefore, just as that rustic can believe with supernatural faith, for example, the Incarnation as proposed by his Parish priest, to whom it is morally certain that the Parish priest neither deceives nor is deceived; but otherwise, if this be only probable and uncertain: so he can believe with supernatural faith that the Mother of God was conceived without stain, to whom it is morally evident that this is implicitly revealed in the Scriptures; but otherwise, if he think this to be only probable and uncertain. Whence Muratorius will not be able to believe this, to whom that judgment is only probable and uncertain, and liable to error. Since, however, there are so many authorities of sacred Scripture from which the Marian Theologians deduce the immaculate Conception of the Mother of God, and believe without misgiving that it is revealed in them, innumerable authorities of the holy Fathers aiding thereto; it is no wonder that thence results a certain moral certitude which makes altogether licit the aforesaid oath of defending the immaculate Conception of the Mother of God. Muratorius will perhaps reply, as other triflers do, that the aforesaid authorities are disfigured and distorted by our party. But who will be the judge of such an imposture? Muratorius? Has he been instructed with a higher light, so that he himself is not deceived, but we are deceived? I do not deny that many are obscure, and can bear another sense; but others are not so obscure that they*

cannot be adduced for the immunity of Blessed MARY; nay, we see that some are applied by the Church herself to the Conception, and that others are permitted to be applied. By no right, therefore, is Muratorius constituted arbiter of this question.

157 It is urged, twelfthly, because, the present state of the controversy being considered, the immunity of the Blessed Virgin is so true that in the reality of the thing falsity cannot underlie it, as Salazar proves at large, *cit. cap. 43. §. 4.*; so proximately and ultimately disposed for definition that, a Council not being awaited, the Pontiff can safely proceed to a definitive sentence, as the same *Salaz. cit. §. 6.* holds with many. From which it is concluded that the Blessed Virgin, established in the possession of her immunity, is not to be dislodged save by supreme injury: but to repel this injury from the Queen of Heaven and earth, even with the blood of her servants shed a thousand times, is licit and most religious. It is licit indeed—nay, he is extolled by the divine Oracle with the proclamation of greater love who *lays down his life for his friends* (37)—and shall it be called superstitious, obstinate, and illicit to lay down one’s life for defending the immunity of the Virgin, most beloved, far dearer than life? {marg. (37) Joan, 15. 15.} O unheard-of temerity! It was licit for Eleazar, the beast run through, to be crushed beneath his own triumph: *It is better for us to die in battle than to see the evils of our nation and of the holy places* (38)—and shall it be a crime, illicit and superstitious, to vindicate with one’s own blood the immunity of the most holy Virgin? {marg. (38) Machab. 3.} O unheard-of audacity! It is licit to lay down our lives for the brethren: *We ought to lay down our lives for the brethren* (39)—and shall it be superstitious and illicit to pour out one’s life for asserting the most singular privilege, most honorable to the Virgin, of the Mother of God and our most amiable Mother, confirmed by the authority of the Church, the testimony of the Fathers, and the consensus of the whole Christian people? {marg. (39) Joan. 1. 3.} O word unworthy to be uttered by a Christian mouth! It was licit for Samson, that he might weaken the enemies of the faithful people, to cry out: *Let my soul die with the Philistines* (40)—and shall it be pronounced illicit and superstitious to undergo death for averting injuries against the Marian immunity? {marg. (40) Judic. 16. 30.} O word teeming with impiety, injurious to the Mother of God, hateful to God, scandalous to Angels and to men!

158 Finally, the truth of our proposition is urged by the extrinsic reason already touched upon above. That oath is pious, licit, and religious which by most learned, pious, God-fearing men, conspicuous for religion, is not only approved, but employed and prescribed: such is the oath of defending the immunity of the Blessed Virgin from original sin: Therefore, etc. For the proof of the minor: the Theological faculty of Paris first bore forth the standard of the immaculate Conception in the year 1383, a decree being published that no one should seize a degree or the Doctor’s laurel who did not promise by oath that the immaculate Conception of the Virgin was to be defended by him. And although Natalis Alexander asserts that the mind of the *sacred faculty of Paris* is no other than that which is approved by the Council of Trent and by the Church, that

assuredly holds for all the other orthodox Academies. No one will be so crazed as to emit either a vow or an oath against the sense of the Church. Yet that judgment of Natalis is not contrary to the Decree above mentioned, nor to the oath emitted by all who take a degree, of defending, namely, that judgment, and with that cult, which the Church has approved and fortified with so many privileges. Which oath being posited, concerning a thing beyond doubt licit and laudable, I do not see why he may not licitly suffer death who is violently constrained to break a licit oath and to assert that the Virgin Mother was conceived in sin. Hence I marvel with what confidence it is asserted by some that after the Decree of Gregory XV, and at the beginning of the seventeenth century, this oath began to be introduced in the Spains, since it is evident that it was already observed at Paris in the fourteenth century.

159 The Academy of Cologne imitated that of Paris in the year 1451; Mainz followed Cologne in the year 1601; Valencia and the Academy of Osuna in Spain followed Mainz, and the rest which we recounted above, Coimbra and Évora in Portugal; whose footsteps at length pressing, most of the Academies of the Christian world in Germany, France, Italy, the Spains, and the Indies conspired into the same judgment. The most holy Orders add their assent, and first of all the Seraphic, under the leadership of the Most Subtle Doctor, that keenest champion of the immaculate Conception, which, the oath having been taken, proclaims the Marian immunity to the last breath of life. The Society of JESUS, where no one ascends the chair, or is adorned with the laurel, without being bound by a like religious obligation. Let them be counted man by man, and scarcely anyone will be found who does not surrender himself with like homage to the Blessed Virgin. The most ancient Order of the Carmelites follows the same homage toward the Mother of God, which indeed contends for the primacy in defending the immunity of the Blessed Virgin, and rests upon foundations not contemptible, on which see the Salmanticenses, and those cited there, *tract. 23. cap. 1. punct. 5. §. 4. n. 78*. Nor are there lacking the Military Orders of St. James (to which, as I touched upon above, the primacy of this due cult in the Spains is owed), of Calatrava, and of Alcántara in Spain, of Christ, of St. James, and of St. Benedict in Portugal, which are bound by the same oath. How many most holy and most learned men among these, then, are branded with the stain of superstition and of sin! And shall not St. Ignatius, St. Francis Xavier, and the first Fathers of the Society be called superstitious and guilty of sin, who all at Paris, for the taking of the laurel, emitted this oath? Did the youth most illustrious for sanctity, John Bukmans of the Society, sin, the vow of defending the Conception being daily renewed? Did so many lights of the Church sin—Pontiffs, Cardinals, Patriarchs, Archbishops, Bishops, and Doctors innumerable—who in the Academies where the precept is in force swore, for the taking of the laurel, that the Marian immunity was to be defended? Did so many most wise and most religious Academies sin, this solemn oath having been pronounced, and among these the Royal Portuguese, under the leadership of the most pious John V and the most serene Princes? The Cortes held in Portugal for the inauguration of John IV; likewise those held at Madrid under Philip IV in the year 1621, the oath of venerating

and professing the immunity of the Conception having been taken by the Procurators on behalf of the Peoples? But Muratorius alone is innocent, unpolluted, and set apart from sinners, who into the face of the Christian people vomits forth a proposition at the least absurd, and rash. The oath of defending the immunity of the Blessed Virgin from original sin is a superstitious and pious obstinacy! Let us rather say that his judgment is an audacious, irreligious, and most obstinate impiety.

160 Of this kind are the propositions (not to say blasphemies) into which he bursts forth, namely: *That our forefathers never dreamed of this*, although the piety and devotion of our forefathers toward the Conception is so ancient: *That our posterity, if they have any wisdom, will never approve it*, as if he thought, deceived by his own inflated wisdom, that this devotion and judgment, handed down from fathers to sons, is to be utterly blotted out by his well-composed eloquence: *That this is a light cause for which to squander one's life*; as if the eximious honor of the Virgin, and the peaceful possession of her immunity, are to be called a light cause: *That this opinion can be false, and is not necessarily to be defended*; as if it were not congruent with the honor of the Virgin, and with the love and omnipotence of God, to defend the immunity of His most pure and most amiable Mother, lest, the contrary opinion being admitted, we should say that God the Father omnipotent, though they could adorn her with this signal privilege—His Daughter first-begotten before every creature; the wise Son, His Mother elect from eternity; the loving Holy Spirit, His most beautiful Spouse—willed not to do so. How absurd! *That this judgment seems certain to man, a most fallacious creature*, as if he himself also were not a most fallacious man: *That it is liable to error*—the judgment, namely, which the Church approves, and acknowledges as pious, and adorns with so many privileges: *That that opinion cannot be called certain which the Church herself, though wearied by the prayers of so many pious persons, has not yet brought herself to decree certain—nay, by her silence has signified that it cannot be decreed*. As if the Church's delay in defining the immunity of the Conception could be an argument for its indefinability, or could detract anything from its intrinsic truth, if any be in it; since we know that many things revealed in the Scriptures long lay hidden from the Fathers. God has not hitherto willed to reveal this unfailingly to the Church; perhaps so that, unto the greater glory of Himself and of His Mother, that might be owed to devotion which would be owed to the precept of faith. Yet we hope, and confidently trust, that the Church will at last, at last, define it, that the mouths of the praters may be entirely stopped: *That this zeal is a base zeal* [?], *and a zeal without knowledge, an ill-advised zeal, and injurious to the counsels of prudence*. As if his own zeal should not be held the more imprudent, whereby, a rival of quarrels and contentions, he himself stirs up again this question, lulled asleep or wrapped in silence, and again arouses whirlwinds long since stilled: *That thence neither reward nor praise is to be hoped for. That the Mother of Christ should rather be angered (if the sense of anger could fall upon her), because we defend her immunity with the same ardor as the revelations of faith*. Has it been revealed to him that this our homage does not please God and His Mother? Will he ever recount that God, or

the Virgin Mother, has shown signs of her displeasure? On the contrary, there are many favors and benefits toward the defenders of the Marian immunity from the most holy Lady and most amiable Mother, which are evident from the histories. I for my part firmly hope for the patronage of the Blessed Virgin, because, though so slight, I have defended her according to my power. Thus I implore, with St. Augustine, and with the Church praying thus: (41) *Let all perceive thy aid, whosoever celebrate thy holy Conception.* {marg. (41) D. August. serm. 18. de Sanctis. quod Ecclesia recitat 2. die infra octavam in 2 nocturno lect. 3.} *If she is holy, how was she stained with original sin? That it is uncertain, because God could have willed otherwise, and it is still uncertain whether He willed it to be otherwise.* How is it uncertain? God created the Angels most pure in their creation, and would He create the Queen of Angels impure? In original justice He created Eve, who brought death upon the world, and would He create MARY impure, who brought life to the world? Should she be created with the original contagion who had been ordained from eternity, and, before the earth was made, was already predetermined and conceived in the divine mind, that she might be the Mother of Life itself? She was being prepared to be the temple of the living God and the dwelling-place of the Holy Spirit, and would she not come down from heaven as a bride adorned for her husband? Could the omnipotent God confer upon her so great a privilege, and is it to be believed that He willed not, or shall it be uncertain whether He so willed? Let Muratorius think that. I shall teach that it is never lawful for me to persuade myself of it, and with my Father Augustine, against the Manichean speaking in like manner, I shall say: *She whom thou despisest, O Manichean, is my mother, but she was fashioned by my hand.* (Was a work fashioned by the hand of the Most High ever made impure?) *If I could be defiled when I made her, I could be defiled when I was born of her. God saw all the things that He had made, and they were very good.* Would God make His own Mother with His own hand, and not make her very good, but deformed by the original stain? Surely God would be said by the heretics to be defiled, if He fashioned a defiled Daughter, Mother, and Spouse. Let Muratorius think that; for from us he will in no wise obtain what may smile upon him. These and other like things he has seemed to belch forth, which beyond doubt are not to be permitted by the Tribunal of the holy Office. Let that most upright Tribunal recall to memory the Decree of Alexander VII, establishing that like propositions, and their assertors, are to be proscribed. Which office it most expressly commends to the Inquisition of the holy Faith, most ample faculty for that purpose being given to it. Let it suffice to have said these things, without turning over many books, for recognizing the moderation of this man in the business of religion, and that his suspect character, masked by so many acts of homage toward the holy See, may become known to all; and that it may most clearly appear what manner of defender of their cause the Antisigillists did not hesitate to hire. A patron, namely, learned indeed, and seething with the pomp of eloquence, but, in my judgment and that of many, not wise unto the truth. Now to other matters.